



**LAW OF UKRAINE,**

Kyiv

**FROM SEPTEMBER 05, 2017**

**№ 2145-VIII**

# **LAW ON EDUCATION IS VALID**

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Draft adopted by Verkhovna Rada of Ukraine of 05.09.2017 with editing amendments (effective of 15.09.2017)

## **The Law of Ukraine**

### **On Education**

Education is a fundament of the intellectual, moral, physical and cultural development of an individual, their successful socialization, economic wellbeing, a guarantee of development of the society united by shared values and culture, and of the State.

A goal of the education is comprehensive development of the human being as a personality and as the supreme value of the society, development of its talents, intellectual, creative and physical abilities, formation of values and competences necessary for successful self-realization, raising responsible citizens capable to make a conscious choice and channel their activities for the good of other people

and the society, and enriching the intellectual, economic, creative, cultural potential of the Ukrainian people on this basis, improving an educational level of the people in order to ensure Ukraine's sustainable development and its European choice.

This Law regulates social relations arising in the process of realization of the constitutional human right for education, rights and responsibilities of physical and legal persons participating in implementation of this right, and establishes powers of the state authorities and bodies of local self-government in the area of education.

## **PART I. GENERAL PROVISIONS**

### **ARTICLE 1. MAIN TERMS AND THEIR DEFINITION**

1. In this Law, terms are used in the following meaning:

- 1) autonomy – a right of the agent of educational activity for self-governance, which resides in its self-dependence, independence and responsibility in making decisions regarding academic (educational), organizational, financial, staffing and other issues of activities implemented in the manner and limits established by laws of Ukraine;
- 2) academic freedom – self-dependence and independence of educational process participants during implementation of pedagogical, academic, scientific and/or innovative activities which is performed based on the principles of the freedom of speech, thought and creativity, dissemination of knowledge and information, free disclosure and use of scientific research results taking into consideration restrictions established by laws of Ukraine;
- 3) tuition-free education – education pursued by a person on expense of the state and/or local budgets in accordance with the legislation;
- 4) teaching activity – activity aimed at formation of knowledge, other competences, world outlook, development of intellectual and creative capacities, emotional, volitional and/or physical qualities of education seekers (lecture, seminar, training, course, master class, webinar etc.) and is performed by: an educational (academic) worker, a self-employed person (except for persons for which such form of educational activity is forbidden by the law) or another physical person based on the respective labour or civil agreement;
- 5) e-textbook (manual) – an electronic educational publication where material is presented in a systematized manner, in line with the curriculum, contains digital objects in various formats and enables interactive communication;
- 6) institution of education – a legal person of the public or private law whose main type of activity is the educational activity;

- 7) founder of the institution of education – a public authority on behalf of the state, a respective council on behalf of the territorial community (communities), physical and/or legal person by whose decision and out of whose assets an institution of education has been established, or who in other ways, in accordance to the law, acquired rights and responsibilities of the founder;
- 8) education seekers – pupils, students, cadets, course participants, trainees, aspirants (adjuncts), doctoral students, other persons who obtain education according to any type and any form of obtaining education;
- 9) individual educational trajectory – an individual path of achieving a personal potential of the education seeker, which is formed based on their capabilities, interests, needs, motivation, opportunities and experience, rests on the types, forms and pace of obtaining education, educational agents and educational programmes, academic disciplines and their complexity level, teaching methods and means selected by the seeker of education. An individual educational trajectory may be implemented in the institution of education via an individual educational plan;
- 10) individual development programme – a document that provides individualization of education of a person with special educational needs, establishes a list of required psychological, pedagogical, remedial needs/services for development of the child, and is developed by a groups of professionals which must engage parents of the child in order to define specific educational strategies and approaches to education;
- 11) individual educational plan – a document that defines a sequence, form and pace of mastering educational components of the educational programmes by the education seeker with a goal of implementing their individual educational trajectory, and is developed by the institution of education in cooperation with the education seeker subject to availability of necessary resources;
- 12) inclusive education – a system of educational services guaranteed by the State which is based on the principle of non-discrimination, human diversities, effective involvement and engagement of all participants of the educational process into this process;
- 13) inclusive educational environment – a totality of conditions, ways and means of their realization for co-education, upbringing and development of education seekers based on their needs and capabilities;
- 14) qualification – a standardized set of competences (learning outcomes ) achieved by the person, which is recognized by an authorized body and confirmed by a respective document;
- 15) competence – a dynamic combination of knowledge, skills, ways of thinking, opinions, values, other personal qualities, which recognizes person's ability to successfully socialize, perform professional and/or further educational activity;
- 16) educational process – a system of scientific, methodological and pedagogical measures aimed at development of the personality by means of forming and using their competences;



- 17) educational activity – activities of the educational actor aimed at organization, provision and implementation of the educational process in the formal and/or informal education;
- 18) educational service – a complex of actions of the educational agent, which are established by the legislation, educational programme and/or an agreement, have an established price and are aimed at achievement of expected learning outcomes by the education seeker;
- 19) educational programme – an integrated set of educational components (study subjects, disciplines, individual assignments, control activities, etc.), planned and organized in order to achieve established learning outcomes ;
- 20) person with special educational needs – a person that needs additional permanent or temporary support in the educational process in order to ensure their right to education;
- 21) pedagogical activity – an intellectual, creative activity of the educational (academic) worker or a self-employed person in the area of formal and/or informal education aimed at teaching, upbringing and development of the personality, their general cultural, civic and/or professional competences;
- 22) learning outcomes – knowledge, skills, mindset, values, other personal qualities gained in the process of education, upbringing and development, which may be identified, planned, evaluated and measured, and which a person can demonstrate after having completed an educational programme or individual educational components;
- 23) level of education – a final stage of education characterized by a level of difficulty of the educational programme, a totality of competences that are determined, as a rule, by the educational standard, and meet a certain level of the National Qualification Framework;
- 24) reasonable adjustment – introduction, when it is required in a particular case, of necessary modifications and adaptations, with a goal to ensure realization of their constitutional right to education by persons with special educational needs on a par with other persons;
- 25) educational system – a sum total of educational components, levels and degrees of education, qualifications, educational programmes, educational standards, licensing conditions, institutions of education and other educational agents, participants of the educational process, administrative bodies in the area of education, as well as laws and regulations that regulate relations among them;
- 26) special laws – the Laws of Ukraine “On Pre-School Education,” “On General Secondary Education,” “On Out-of-School Education,” “On Vocational Education,” “On Higher Education”;
- 27) educational agent – a physical or legal person (institution of education, enterprise, establishment, organization) that conducts educational activities;

28) universal design in the area of education – the design of objects, environment, educational programmes and services, that should make those to be suitable, to the greatest possible extent, for use by all persons without a need in adaptation or special design;

29) quality of education – compliance of learning outcomes to requirements established by the legislation, respective educational standards and/or an agreement on provision of educational services;

30) quality of educational activity – a level of organization, provision and realization of the educational process, which ensures obtaining high-quality education by persons and meets requirements established by the legislation and/or an agreement for provision of educational services.

2. Provisions of this and special Laws regarding parents are also relevant for other legal representatives of education seekers. Parents, other legal representatives implement provisions of this Law and special laws regarding persons who have not come of legal age, and in accordance to the legislation regarding persons with limited legal capacity.

## **ARTICLE 2. THE LEGISLATION OF UKRAINE ON EDUCATION**

1. The legislation of Ukraine on education is based on the Constitution of Ukraine and consists of this Law, special Laws, other pieces of legislation in the area of education and science and international agreements of Ukraine made in accordance with the procedure established by law.

2. Subordinate legislation cannot narrow the content and scope of the constitutional right to education, as well as autonomy of educational agents and academic freedoms of participants of the educational process as established by law.

Letters, policies, regulations, other documents by executive authorities, except for orders registered by the Ministry of Justice of Ukraine and documents that regulate inner activity of the authority, are not regulatory legal acts and cannot establish legal standards.

3. The educational agent has a right to independently make decisions on any issues within its autonomy established by this Law, special Laws and/or constituent documents, in particular regarding issues that are not regulated by the legislation.

## **ARTICLE 3. THE RIGHT TO EDUCATION**

1. Every person has a right to high-quality and affordable education. The right to education includes a right to obtaining education throughout life, a right to affordability of education, a right to tuition-free education in cases and according to the procedure specified by the Constitution and Laws of Ukraine.

2. Equal opportunities for access to education are created in Ukraine. No one can be restricted in their right to obtain education. The right to education is guaranteed regardless of the age, sex, race, health status, disability, nationality, ethnic origin, political, religious or other views, colour, place of residence, language, origin, social and material position, criminal record, as well as other circumstances and characteristics.
3. Individual's right to education can be exercised by means of its obtaining at different levels of education, in different forms and of different types, including by obtaining pre-school, complete general secondary, out-of-school, vocational, professional pre-higher, higher education and adult education.
4. Every person has a right to access to public educational, scientific and information resources, including Internet resources, e-textbook and other multimedia educational resources, according to the procedure established by the legislation.
5. The State performs social protection of education seekers in cases established by legislation, and ensures equal access to education for persons from socially vulnerable groups.
6. The State creates conditions for obtaining education by persons with special educational needs basing on their individual needs, capacities, abilities and interests, and provides for detecting and correcting facts that prevent exercising rights and meeting the needs of the above persons in the area of education.
7. Foreigners and stateless persons obtain education in Ukraine in accordance to the legislation and/or international agreements of Ukraine.
8. A person who is recognized as a refugee or as requiring additional protection according to the Law of Ukraine "On refugees and persons requiring additional or temporary protection" has a right to education on a par with citizens of Ukraine.
9. The right to education cannot be restricted by law. The Law may contain special conditions for access to a certain level of education, speciality (profession).

## **ARTICLE 4. ENSURING THE RIGHT TO TUITION-FREE EDUCATION**

1. The State ensures:

free-of-charge basis of the preschool, complete general secondary, vocational education and training , pre-tertiary vocational and higher education according to educational standards;

development of the preschool, complete general secondary, vocational education and training , professional pre-higher, higher and postgraduate education in accordance to the legislation.

2. The right to tuition-free education is ensured:

for seekers of the preschool and complete general secondary education – by means of development of the network of institutions of education of all forms of ownership and their financial provision according to the procedure established by the legislation and to the extent sufficient to ensure the right to education for all citizens of Ukraine, foreign citizens and stateless citizens who permanently or temporarily live in Ukraine;

for seekers of out-of-school, vocational education and training , pre-tertiary vocational and postgraduate education – at institutions of education or from other educational agents on expense of funding from the state and/or local budgets according to the order established by the legislation;

for seekers of higher education – at institutions of education on expense of funding from the state and/or local budgets according to the order established by the legislation.

3. The State guarantees obtaining the complete general secondary education according to education standards to all citizens of Ukraine and other persons legally residing in Ukraine.

The State guarantees free-of-charge provision with textbooks (including e-textbooks), handbooks for all seekers of complete general secondary education and educational workers according to the procedure established by the Cabinet of Ministers of Ukraine.

## **ARTICLE 5. THE STATE EDUCATIONAL POLICY**

1. Education is a state priority that ensures innovative, socio-economic and cultural development of the society. Funding education is an investment to the human potential and sustainable development of the society and the State.

2. The state educational policy is defined by the Verkhovna Rada of Ukraine and implemented by the Cabinet of Ministers of Ukraine, the central executive agency in the area of education and science, other central executive bodies and bodies of local self-government .

3. The state educational policy is shaped and implemented based on the scientific researches, international obligations, national and international experience with due regard to forecasts, statistical data and development indicators with a goal to meet needs of the human being and the society.

4. Documents of the state forecast and strategic planning of development of education are the forecast of development of education in Ukraine, the educational strategy of Ukraine, respective state, regional and local special programmes and action plans in the area of education of the government authorities. The government authorities ensure free access to above documents by means of their publication at official their websites.

5. The State creates conditions for obtaining civic education aimed at forming competences related to exercising rights and duties by a person as a member of the society, awareness about values of the civil (free democratic) society, the rule of law, human and civil rights and freedoms.

## **ARTICLE 6. PRINCIPLES OF THE STATE EDUCATIONAL POLICY AND PRINCIPLES OF EDUCATIONAL ACTIVITY**

1. Principles of the state educational policy and principles of the educational activity are:

human-centrism;

the rule of law;

ensuring quality of education and quality of educational activity;

ensuring an equal access to education without discrimination on any grounds, including on the ground of disability;

development of inclusive educational environment, including in institutions of education that are the most accessible and closest to the place of residence of persons with special educational needs;

ensuring the universal design and reasonable adjustment;

scientific nature of education;

diversity of education;

integrity and consistency of the educational system;

transparency and publicity in making and implementing managerial decisions;

responsibility and accountability of educational authorities and institutions of education, other educational agents, to the society;

institutional separation of the control (supervision) functions and institutions of education support functions;

integration with the labour market;

unbreakable ties with the world and national history, culture, national traditions;

freedom in choosing types, forms and pace of obtaining education, educational programme, education institution, other educational agents;

academic integrity ;

academic freedom;

financial, academic, staffing and organizational autonomy of institutions of education within the limits established by law;

humanism;

democracy;

unity of education, upbringing and development;

formation of patriotism, respect to cultural values of the Ukrainian nation, its historical and cultural heritage and traditions;

formation of a conscious need to observe the Constitution and Laws of Ukraine, intolerance to their violation;

formation of respect to human rights and freedoms, intolerance to humiliation of human honour and dignity, to physical or mental violence and discrimination on any grounds;

formation of the civic culture and culture of democracy;

formation of the culture of healthy lifestyles, environmental culture and caring attitude to the environment;

non-interference by political parties into the educational process;

non-interference by religious organizations into the educational process (except for instances established by this Law);

versatility and balance of information on political, worldview and religious issues;

public-social governance;

public-social partnership;

public-private partnership;

promoting life-long learning;

integration into the international educational and scientific space;

intolerance to corruption and bribery;

affordability of all forms and types of educational services offered by the State for every citizen.

2. Education in Ukraine should be built on the principle of equal opportunities for all.

## ARTICLE 7. THE LANGUAGE OF EDUCATION

1. The language of the educational process at institutions of education is the state language.

The State guarantees the right to obtain formal education at all levels (preschool, general secondary, vocational education and training, pre-tertiary vocational and higher), as well as out-of-school and postgraduate education in the state language at the state and communal institutions to each citizen of Ukraine.

Persons belonging to national minorities of Ukraine are guaranteed the right on education in municipal educational institutions of pre-school and primary education in the language of the national minority they belong to and in the official language of the State. This right is realized by creating (in accordance with the legislation of Ukraine) of separate classes (groups) with educational process in the language of the respective national minority group along with the official language of the State and is not applied to the classes (groups) with the Ukrainian language of educational process.

Persons belonging to indigenous peoples of Ukraine are guaranteed the right to study in municipal educational institutions of pre-school and general secondary education in the language of the respective indigenous people along with the official language of the State. This right is realized by creation (in accordance with the law) of separate classes (groups) with education in the language of the respective indigenous people of Ukraine along with the official language of the State and is not applied to classes (groups) with the education in the Ukrainian language.

Persons belonging to indigenous peoples, national minorities of Ukraine are guaranteed the right to study the language of the respective indigenous people or national minority in municipal institutions of general secondary education or in national cultural associations.

Hearing-impaired persons are given the right for education in a sign language as well as for studying of the Ukrainian sign language.

2. Institutions of education ensure mandatory study of the state language, in particular, at institutions of vocational education and training, pre-tertiary vocational and higher institutions of education, in the amount that allows to perform professional activity in the area of choice using the state language.

Appropriate conditions for study of the state language are created for individuals belonging to indigenous people, national minorities of Ukraine, foreigners and stateless persons.

3. The state promotes study of international languages, first of all, English, at the state and communal institutions of education.

4. One or more disciplines may be delivered at institutions of education according to the educational programme in two or more languages: the state language, in English, in other official EU languages.

5. If a person obtaining vocational education and training, pre-tertiary vocational education and higher education wishes so, the educational institutions create possibilities for him or her to learn a language of indigenous people, Ukraine's national minority as a separate discipline.

6. The State promotes the establishing and functioning abroad of educational institutions, in which the education is given in the Ukrainian language or the Ukrainian language is studied.

7. Peculiarities of usage of languages in certain types and at certain levels of education are determined by special laws.

## ARTICLE 8. TYPES OF EDUCATION

1. An individual exercises their right to life-long learning by means of formal, non-formal and informal education. The state recognizes those types of education, promotes development of educational agents offering respective educational services, and encourage obtaining all types of education.

2. Formal education is education obtained under educational programmes according to levels of education, fields of knowledge, specialities (professions) defined by the legislation, and assumes attaining by education seekers of learning outcomes of the respective level of education as defined by educational standards and gaining qualifications recognized by the State.

3. Non-formal education is education obtained, as a rule, according to educational programmes and does not assume awarding qualifications that are recognized by the State by levels of education, but may lead to awarding professional and/or partial educational qualifications.

4. Informal education (self-education) is education that assumes self-organized obtaining of certain qualifications by an individual, in particular, during their everyday activities related to professional, public or other activities, family or recreation.



5. Learning outcomes gained via non-formal and/or informal education are recognized in the system of formal education according to the procedure established by the law.

## ARTICLE 9. FORMS OF OBTAINING EDUCATION

1. An individual has a right to obtain education in different forms or by combining those forms.

Main forms of obtaining education are:

institutional (intramural (daytime, evening), extramural, distance, network);

individual (externship, family (home), pedagogic wardship, on-the-job (on the production site));

2. The intramural (daytime, evening) form of obtaining education is a way of organizing education of education seekers that envisages their immediate participation in the educational process.

3. The extramural form of obtaining education is a way of organizing education of education seekers by means of combining in-person education during short sessions and independent mastering of the educational programme in between those sessions.

4. The distance form of obtaining education is an individualized process of gaining education which occurs mainly under the mediated interaction of the separated in space educational process participants in the specialized environment that functions based on the modern psycho-pedagogical and information and communication technologies.

5. The network form of obtaining education is a way of organizing education of education seekers when mastering the educational programme occurs under participation of various educational agents that interact with each other on the contractual basis.

6. The externship form of obtaining education is a way of organizing education of education seekers when the education seeker master the educational programme completely independently, and evaluation of learning outcomes and awarding the educational qualification is performed in accordance with the legislation.

7. The family (home) form of obtaining education is a way of organizing educational process of children independently by their parents in order to gain formal (preschool, complete general secondary) and/or informal education. Responsibility for obtaining education by children at the level not lower that education standards rests with the parents. Evaluation of learning outcomes and awarding the educational qualification is performed in accordance with the legislation.

8. The pedagogical wardship is a way of organizing the educational process by educational worker that envisages that they ensure mastering an educational programme by the education seeker who, by their psychophysical status, or for other reasons established by the legislation, in particular, in order to ensure accessibility of education, needs such a form.
9. Obtaining education at the job is a way of organizing education of education seekers when mastering the educational programme (as a rule, vocational education and training , pre-tertiary vocational education ) takes place at the production site through education by practice, participation in performing duties and assignments at work under the supervision of practitioners involved into the educational process.
10. The dual form of obtaining education is a way of obtaining education that assumes a combination of education at institutions of education (other educational agents) with at-the-job education at enterprises, establishments and organizations in order to gain certain qualification, as a rule, on the basis of agreement.
11. Peculiarities of applying forms of obtaining education to different levels of education may be defined by special laws.
12. Provisions about forms of obtaining education are approved by the central executive authority in the area of education and science.

## **PART II. THE STRUCTURE OF EDUCATION**

### **ARTICLE 10. COMPONENTS AND LEVELS OF EDUCATION**

1. The following are inalienable components of education:

preschool education;

complete general secondary education;

out-of-school education;

specialized education;

vocational education and training ;

pre-tertiary vocational education

higher education;

adult education, including postgraduate education.

2. Levels of education are:

preschool education that corresponds to the zero level of the National Qualification Framework;

primary education that corresponds to the first level of the National Qualification Framework;

basic secondary education that corresponds to the second level of the National Qualification Framework;

field-specific education that corresponds to the third level of the National Qualification Framework;

first (initial) level of vocational education and training that corresponds to the second level of the National Qualification Framework;

second (basic) level of vocational education and training that corresponds to the third level of the National Qualification Framework;

third (upper) level of vocational education and training that corresponds to the fourth level of the National Qualification Framework;

non-tertiary vocational education that corresponds to the fifth level of the National Qualification Framework;

initial level (short cycle) of the higher education that corresponds to the sixth level of the National Qualification Framework;

first (bachelor) level of higher education that corresponds to the seventh level of the National Qualification Framework;

second (master) level of the higher education that corresponds to the eighth level of the National Qualification Framework;

third (educational-scientific/educational/creative) level of higher education that corresponds to the ninth level of the National Qualification Framework;

scientific level of higher education that corresponds to the tenth level of the National Qualification Framework.

3. Partial qualifications of the respective level of the National Qualification Framework may be achieved in the system of the out-of-school education and adult education (including post-graduate education).

Partial qualifications obtained in the system of out-of-school education can correspond to the zero to third levels of the National Qualifications Framework.

## ARTICLE 11. PRESCHOOL EDUCATION

1. A goal of the preschool education is to ensure comprehensive development of the child, their physical, intellectual and creative abilities through their upbringing, education, socialization and formation of the necessary life skills.
2. Children of the upper preschool age must be involved into the preschool education in accordance with the preschool education standard.
3. Responsibility for obtaining pre-school education by children rests with their parents.
4. Parents independently select ways and forms by which ensure exercising of the right to preschool education by their children.
5. Bodies of local self-government create conditions for obtaining preschool education by means of:  
formation and development of the network of institutions of education;  
ordering training of educational workers;  
implementing educational programmes of non-formal education for parents;  
implementing other measures.
6. Procedure, conditions, forms and details of obtaining preschool education are established by the special law.

## ARTICLE 12. COMPLETE GENERAL SECONDARY EDUCATION

1. A goal of the complete general secondary education is comprehensive development, upbringing and socialization of the person who is able to live in the society and interact with the nature in the civilized manner, strives for self-improvement, life-long learning, is ready for conscious life choice and self-realization, responsibility, labour activity and civic activism.

Achievement of this goal ensures formation of the key competences necessary for each modern individual for their successful functioning:

fluency in the state language;

ability to communicate in the native language (if different from the state one) and, at least, in one foreign language;

mathematic competence;

competences in the area of natural sciences, engineering and technologies;

innovativeness;

environmental competence;

information and communication competence;

capacity for life-long learning;

civic and social competences connected with ideas of democracy, justice, equity, human rights, wealth and healthy lifestyle, with awareness of equal rights and opportunities;

cultural competence;

entrepreneurship and financial literacy;

other competences envisaged by the educational standard.

Common for all competences are the following skills: reading with understanding, a skill to express one's opinion orally and in writing, critical and systemic thinking, ability to logically justify one's position, creativity, leadership, ability to manage emotions in a constructive way, assess risks, make decisions, solve problems, ability to cooperate with other people.

2. In Ukraine, the complete general secondary education is mandatory and is achieved in institutional or individual forms determined by the law, as a rule, at institutions of education.

3. The complete general secondary education has three levels:

primary secondary education lasting four years;

basic secondary education lasting five years;

field-specific secondary education lasting three years.

Primary, basic secondary and field-specific secondary education may be obtained at separate institutions of education or at structural units of the same legal person (institution of education).

4. Primary education is being obtained, as a rule, from the age of six years. Children who have turned seven by the beginning of the academic year should start obtaining primary education in that academic year.

5. Persons with special educational needs may start obtaining primary education at the different age, and the length of obtaining primary and basic secondary education by such persons may be extended while supplementing the educational programme with a special development component. Special aspects of obtaining complete secondary education by such persons are established by a special law.

6. At the levels of primary and basic secondary education, the educational process may be organized in cycles defined by a special law; division into cycles is performed based on age-specific physical, psychological and intellectual development of children.

7. Obtaining field-specific secondary education envisages two focuses:

academic – field-specific education based on a combination of the educational content defined by the standard of the field-specific secondary education and enhanced study of individual subjects based on abilities and educational needs of education seekers with an orientation on further education at higher levels of education;

professional – field-specific education, oriented on the labour market, and based on a combination of the educational content defined by the standard of the field-specific secondary education and a profession-oriented approach to education based on students' needs and abilities.

Obtaining the field-specific secondary education with any focus by no means restricts a right to obtain education at other levels of education.

Institutions of education may have educational programmes of the field-specific secondary education by one or both focuses.

8. Learning outcomes of education seekers at any level of the complete general secondary education are assessed by the state final assessment which may be conducted in different forms specified by the legislation, in particular, in the form of the external independent assessment.

The state final assessment of the seekers of primary education is performed exclusively with a goal of the quality monitoring of educational activity of the institutions of education and/or quality of education.

The procedure, forms and list of educational subjects in which the state final assessment is conducted are stipulated by the central authority in the area of education and science.

9. The procedure, conditions, forms and special aspects of obtaining complete general secondary education are specified by the special law.

# ARTICLE 13. THE TERRITORIAL ACCESSIBILITY OF THE COMPLETE GENERAL SECONDARY EDUCATION

1. To ensure territorial accessibility of the complete general secondary education, local bodies of self-governance create and support a network of institutions of education and their branches.

Every individual has a right to obtain primary and basic secondary education at an education institution (its branch) which is the most accessible and close to the individual's place of residence.

A right of the individual to obtain primary and basic secondary education at the state or communal institution of education (or its branch), to which the serviced territory is assigned, is guaranteed, without prejudice to the individual's right to choose another institution of education.

2. In order to create conditions to obtain complete general secondary education, introduction of the field-specific education, ensuring comprehensive development of the individual, efficient and effective use of available resources and facilities of educational institutions, their modernization, an educational district is created.

An educational district is a totality of institutions of education (their branches), including out-of-school institutions, cultural institutions, and sports institutions, which ensure accessibility of education for individuals living in the respective territory.

A consolidated institution of education is an institution of general secondary education which has a convenient location for to transport children from other localities, provided with qualified educational staff, has modern infrastructure and learning and teaching facilities and is able to ensure obtaining field-specific education at a proper level.

The regulations about the educational district and the consolidated institution of education is approved by the Cabinet of Ministers of Ukraine.

3. In order to make a place of study of children closer to their place of residence, a branch of the institution of education may be created in the respective locality. A branch of the institution of education is a territorially detached structural unit of the educational institution, which is a non-legal entity, acts on the basis of the regulations approved by the founder of the respective institution of education based on the regulations template approved by the central authority in the area of education and science.

The primary school can provide obtaining primary education by children (irrespective of their number) of the same age or different ages, who may be grouped into one class (group) or different classes (groups). At such school, the educational process may be organized both by a single teacher, and by several teachers, or in any other form which will be the most convenient and appropriate for ensuring that children obtain primary education in accordance with the standard of primary education.

4. Individuals who obtain complete general secondary education, live in the rural area and need transportation to the institution of education and back, are provided with such transportation on expense of local budgets, including accessibility of transportation for visually impaired individuals, hearing-impaired persons, individuals with musculoskeletal disorders and other low mobility population groups.

5. Bodies of local self-government of different administrative and territorial units have a right to make a joint decision, based on needs and propositions of territorial communities, about organization of obtaining primary, basic and field-specific secondary education at the institution of education (its branch) and providing transportation of education seekers to that institution and back.

## **ARTICLE 14. OUT-OF-SCHOOL EDUCATION**

1. A goal of the out-of-school education is development of capabilities of children and youth in the area of education, science, culture, physical culture and sports, technical and other creativity, acquiring initial professional knowledge and skills necessary for their socialization, further self-fulfilment and/or professional activity.

2. The out-of-school education may be pursued alongside with obtaining preschool, complete general secondary, vocational education and training and pre-tertiary vocational education. Competences gained under programmes of out-of-school education may be taken into account and recognized at the respective level of education.

3. Obtaining out-of-school education is provided by institutions of out-of-school education of different types, forms of ownership and subordination, other institutions of education, family, non-governmental associations, enterprises, establishments, organizations and other legal entities and physical persons.

4. State institutions of out-of-school education are established by central executive authorities and funded from the state budget. Other institutions of out-of-school education are established by bodies of local self-government, enterprises, establishments, organizations, including religious organizations, whose statutes are registered according to the procedure established by the law, other legal entities and physical persons, subject to availability of necessary infrastructure and facilities, educational and other workers.

5. The out-of-school education is funded on expense of the founder, state and/or local budgets, parents, from other legal sources.

6. Bodies of local self-government create conditions for accessibility of the out-of-school education by means of forming, maintaining and developing an network of institutions of out-of-school education in accordance with educational, cultural and spiritual needs and requests of the population.

7. The procedure, conditions, forms and special aspects of obtaining out-of-school education are specified by the special law.



# ARTICLE 15. VOCATIONAL EDUCATION AND TRAINING

1. a goal of the vocational education and training is the formation and development of professional competences of the individual necessary for their professional activity under certain profession in a respective field, ensuring their competitiveness at the labour market and mobility and life-long career prospects.

2. Vocational education and training is obtained on the basis of the basic or complete general secondary education. Obtaining vocational education and training on the basis basic secondary education is performed alongside with obtaining filed-specific secondary education and obtaining a respective document about complete general secondary education.

Institutions of vocational education and training can may also provide training of professionals under separate professions without obtaining complete general secondary education.

Individuals who for certain reasons are not able to obtain complete general secondary education alongside with obtaining a profession, or do not have basic secondary education, as well as those in need of rehabilitation, have a right to obtain vocational education and training .

3. Levels of vocational education and training are:

the first (initial) level of vocational education and training ;

the second (basic) level of vocational education and training ;

the third (upper) level of vocational education and training .

4. At the first (initial) level of vocational education and training the individual can obtain qualifications that correspond to the second level of the National Qualifications Framework.

At the second (basic) level of vocational education and training the individual can obtain qualifications that correspond to the third level of the National Qualifications Framework.

At the third (upper) level of vocational education and training the individual can obtain qualifications that correspond to the fourth level of the National Qualifications Framework.

Institutions of vocational education and training have a right to train, according to the respective standards, professionals whose competences correspond to the fifth level of the National Qualifications Framework. Licensing of such educational activity and accreditation of respective educational programmemes are performed according to the general procedure.

5. An individual who obtained vocational education and training of the respective level may continue education at further levels of education, including by a shortened programme, in cases and according to the procedure stipulated by the legislation.
6. Institutions of vocational education and training perform training, re-training and professional development of individuals on expense of the state and/or local budgets, as well as under agreements with enterprises, establishments, organizations, individual physical persons and/or legal entities.
7. The procedure, conditions, forms and special aspects of obtaining vocational education and training are specified by the special law.

## ARTICLE 16. PRE-TERTIARY VOCATIONAL EDUCATION

1. Pre-tertiary vocational education is aimed at formation and development of educational qualification that confirms individual's ability to perform typical tasks in a certain field of professional activity, related with performing job assignments of advanced complexity and/or performing limited managerial functions which are characterized by some uncertainty of conditions and require application of principles and methods of respective science, which leads to achieving respective educational and/or professional qualification.
2. Pre-tertiary vocational education is obtained on the basis of complete or basic secondary education. Obtaining pre-tertiary vocational education on the basis of basic secondary education is performed alongside with obtaining complete general secondary education and receiving a respective document about complete general secondary education.
3. A system of pre-tertiary vocational education assume obtaining qualifications that correspond to the fifth level of the National Qualifications Framework.
4. Institutions of pre-tertiary vocational education have a right to train, according to respective standards, professionals whose competences correspond to the third and fourth levels of the National Qualifications Framework. Licensing of such educational activity and accreditation of respective educational programmes are performed according to the general procedure.
5. Institutions of pre-tertiary vocational education may establish learning and teaching, educational, research and production consortia by industrial or professional principles.
6. An individual who obtained a degree of pre-tertiary vocational education may continue education at levels of higher education, including under a shortened programme of study.
7. The procedure, conditions, forms and special aspects of obtaining pre-tertiary vocational education are specified by the special law.

## ARTICLE 17. HIGHER EDUCATION

1. A goal of higher education is attaining by an individual of a high level of scientific and/or creative artistic, professional and general competences necessary for activities in certain speciality or in some field of knowledge.
2. Higher education is obtained on the basis of complete general secondary education.

Levels, degrees of higher education, a procedure, conditions, forms and special aspects of obtaining higher education are specified by a special law.

3. Scientific, research and development, and innovative activity of institutions of higher education (artistic activity for institutions of higher education of culturological and artistic focus) is a mandatory and inalienable component of their educational activity.
4. Assistantship-traineeship is a component of the educational programme of higher education with artistic focus. It is conducted at universities and academies on the basis of the master degree and is the main form of training of artistic performing professionals of highest qualification.

## ARTICLE 18. ADULT EDUCATION

1. Adult education is a component of the life-long education aimed at exercising a right to continuous education by each person that achieved legal age, based on their personal needs, social development priorities and needs of economy.
2. State authorities and bodies of local self-government create conditions for formal, non-formal and informal adult education.
3. Components of adult education are:
  - postgraduate education;
  - professional training of workers;
  - re-training and professional development courses;
  - continuous professional development;
  - any other components envisages by the legislation, offered by an educational agent or independently indicated by an individual.
4. An individual has a right to free choice of the institution of education, establishment, organization, other educational agent, types, forms, pace of obtaining education and educational programme under obtaining adult education.

5. Postgraduate education assumes obtaining new and improving already gained competences based on the received higher, vocational education and training or pre-tertiary vocational education and practical experience.

6. Postgraduate education includes:

specialization – a field-specific specialized training with a goal of gaining by an individual an ability to perform some tasks and duties that have some special aspects within the profession;

retraining – adult education aimed at professional training with a goal of mastering other profession(s);

professional development – attaining by an individual new and/or improving previously gained competences in the framework of professional activity or a field of knowledge;

traineeship – gaining by an individual of a practical experience regarding performing tasks and duties of a certain professional activity or a field of knowledge.

7. Postgraduate education in the area of health care also includes:

internship;

residency.

Internship is conducted at universities, academies, institutes, scientific institutions, health care facilities recognized by the central executive authority in the area of health care as an internship base and is a mandatory form of the initial specialization of individuals under medical and pharmaceutical specialities for obtaining a qualification of a medical doctor-specialist or a pharmacist-specialist.

Medical residence is conducted at universities, academies, institutes, scientific institutions, health care facilities recognized by the central executive authority in the area of health care as an internship base and is a medical residence base and is a form of specialization of medical doctors-specialists in certain medical specialities in accordance with a list of medical specialities approved by the central executive authority in the area of health care.

8. Principles of professional education are stipulated by the law.

9. Professional development courses are conducted with a goal of gaining new competences by an education seeker in the framework of the professional activity or a field of knowledge.

10. Continuous professional development is a continuous process of education and improvement of professional competences of professionals after achieving higher education and/or postgraduate education, which provides opportunities for a professional to maintain or improve standards of professional activity and lasts throughout the whole period of his/her professional activity of professionals.

11. Institutions of education that perform educational activity in the area of professional development which is deemed mandatory by law must secure a license for respective activity and/or accredit respective educational programmes.

Workers of institutions of postgraduate education that have licenses for educational activity are pedagogical, academic and/or scientific and other staff.

## **ARTICLE 19. EDUCATION OF PERSONS WITH SPECIAL EDUCATIONAL NEEDS**

1. State authorities and bodies of local self-government create conditions to ensure rights and opportunities of persons with special educational needs to gain education at all its levels based on their individual needs, capabilities and interests.

2. The state ensures training of professionals for work with persons with special educational needs at all levels of education.

3. Education is provided to persons with special educational needs on a par with other persons, including by means of creation of the independent financial, staffing, infrastructure and provision of reasonable adjustment based on the individual needs of such persons identified in the individual development programme.

4. Types and forms of education that are used for education, professional training or retraining of persons with special educational needs, are based on their needs and individual capabilities.

5. State authorities, bodies of local self-government and institutions of education create conditions for gaining education by persons with special educational needs by providing reasonable adjustment and universal design.

6. Education and upbringing of persons with special educational needs, in particular those caused by developmental disorders and disabilities, at institutions of preschool, out-of-school and secondary education are performed on expense of educational subventions, state and local budgets, other legal sources, including based on the needs of the child indicated in the individual development programme.

7. Enrolment of persons with special educational needs to special institutions of education, transfer from one type of institution to another type and their expulsion are performed according to the procedure established by the central executive authority in the area of education and science.

8. Categories of persons with special educational needs are defined by regulations of the Cabinet of Ministers of Ukraine.

## ARTICLE 20. INCLUSIVE EDUCATION

1. If needed, institutions of education create inclusive and/or special groups and classes for education of persons with special educational needs. In case of application of the person with special educational needs or their parents, establishment of such group and class is mandatory.

2. Institutions of education with special and inclusive groups and classes create conditions for study of persons with special educational needs in accordance with the individual development programme and based on their individual needs and capacities.

3. Persons with physical, mental, intellectual developmental disorders and sensor impairments are provided with auxiliary aids for study at institutions of education.

4. Persons with special educational needs are provided with psychological and pedagogic, as well as correctional and developmental services according to the procedure stipulated by the central executive authority in the area of education and science.

Psychological and pedagogical services are a comprehensive system of measures of organizing the educational process and development of the person with special educational needs envisaged by the individual development programme and provided by educational workers of institutions of education and rehabilitation institutions of the system of health care, social protection, and by professionals of the inclusion resource centre .

Correctional development services (assistance) is a comprehensive system of follow-up of a person with special educational needs in the process of education aimed at correcting impairments through development of a person, their cognitive activities, emotional-volitional sphere and speech.

5. State authorities and bodies of local self-government create inclusion resource centres with a goal to ensure exercising the right to education and psychological and pedagogical follow-up of children with special educational needs.

Psychological and pedagogical follow-up is a comprehensive system of measures on organizing educational process and development of a child envisaged by the individual development programme.

6. Buildings, facilities and premises of institutions of education should meet accessibility requirements in accordance with construction norms and standards.

7. Design, construction and reconstruction of buildings, facilities and premises of institutions of education are performed based on principles of universal design and/or reasonable adjustment.

## ARTICLE 21. SPECIALIZED EDUCATION

1. Specialized education is education in the focus area of fine arts, sports, military art or science, which may be gained in the framework of formal, non-formal, informal education and aimed at obtaining competences in the respective sphere of professional activity during education in the continuous integrated educational process at several or all levels of education and requires early detection and development of individual aptitudes.

The State creates conditions for gaining education in the focus area of fine arts, sports, military art and science, including at special institutions of education of all levels.

2. Artistic education envisages attaining special aptitudes, aesthetic experience and value orientations in the process of vigorous artistic activity, gaining by an individual of a complex of professional, including performing, competences, and aimed at professional artistic creative self-fulfilment of an individual and obtaining qualifications in different kinds of fine arts.

Artistic education includes:

primary artistic education, which is obtained alongside the primary and/or basic secondary education and involves gaining by an individual of the initial level competences in the selected branch of art;

field-specific artistic education, which is obtained on the basis of the primary artistic education alongside the complete general secondary education and oriented at continuing education at the next level of artistic education;

pre-tertiary vocational artistic education which is obtained at the basis of primary artistic and basic secondary education alongside complete general secondary education or based on complete general secondary education and involves gaining by the education seeker of professional competences under certain artistic profession;

higher artistic education, which is obtained based on the field-specific or pre-tertiary vocational artistic education and complete general secondary education and involves gaining by a higher education seeker of the competences of respective level of higher education (junior bachelor, bachelor, master, Philosophiae Doctor/Doctor of Arts, Doctor Habilitatus) under certain artistic speciality.

Individual obtaining artistic education at special artistic education institutions alongside complete general secondary education, are provided free of charge with places at dormitories (boarding schools), food, skill acquisition equipment and stipends in accordance with the legislation.

Regulations about special artistic education institutions are approved according to the procedure specified by special laws.

3. Athletic education involves mastering an educational programme on a respective sport with a goal of gaining a complex of professional competences in the area of physical culture and sports, formation and development of individual capacities of an individuals, advanced mastering of a specialization in the selected sport, which is obtained alongside secondary, vocational education and training , professional pre-higher or higher education.

Educational programmes in a respective sport are developed by all-Ukrainian federations of sports and approved by the central authority in the area of physical culture and sports.

Individuals obtaining athletic education at specialized institutions of athletic education, are provided free of charge with places at dormitories (boarding schools), food, standard parade and training uniform, sports equipment and stipends in accordance with the legislation.

Regulations about specialized institutions of athletic education with specific learning environment are approved by the Cabinet of Ministers of Ukraine by submission from the central authority in the area of physical culture and sports..

4. Military education involves mastering an educational programme on military training with a goal of obtaining a complex of professional competences, formation and development of individual capacities and advanced mastering of the military specialization which is gained alongside with secondary, vocational education and training, pre-tertiary vocational or higher education.

Educational programmes in military training are developed by specialized institutions of education of military (military-sports) concentration and approved by state authorities whose jurisdiction includes respective institutions of education.

The structure of military training includes:

pre-conscription training that involves gaining initial general military and special competences;

training in military technical and military medical specialities;

professional military training of rank and file, non-commissioned (enlisted) personnel of compulsory military service and military service under contract, which is performed based on the basic, filed-specific secondary, vocational education and training of pre-tertiary vocational education;



training of non-commissioned (enlisted) contracted military personnel alongside with obtaining higher education, which is performed on the basis of complete general secondary education;

officer's training which is performed based on the complete general secondary education, vocational education and training, pre-tertiary vocational or higher education with a goal to obtain respective levels of higher education and levels of military education (tactical, operational-tactical or operational-strategic).

Individuals who obtain military education at specialized institutions of education of military (military and sports) profile, are provided free of charge with places at dormitories (boarding schools), food, special clothing and stipends in accordance with the legislation.

Regulations about institutions of special military (military and sports) education are approved by state authorities whose jurisdiction includes such institutions of education.

Regulations about military units of institutions of education are approved by the central authority in the area of education and science and the central authority in the area of defense.

Principles of military education are stipulated by this Law, the Law of Ukraine «On the Military Service Duty and Military Service» and special laws.

5. Science-oriented education is a type of specialized education based on research-oriented study and aimed at advanced study of field-specific subjects and attaining competences necessary for further research and experimental, engineering, inventive activities.

Science-oriented education is obtained at two levels:

basic science-oriented education is obtained at specialized institutions alongside with basic secondary education and involves gaining initial competences for research, experimental, engineering, inventive and rationalization activity;

field-specific science-oriented education is obtained at specialized institutions alongside with complete general secondary education and aimed at continuing education at further levels of education.

Individuals obtaining science-oriented education at specialized education institutions of science-oriented profile alongside with basic secondary education and complete general secondary education, are provided free of charge with places at dormitories (boarding schools), food, skill acquisition equipment and stipends in accordance with regulations on specialized education institutions of science-oriented profile.

Regulations on specialized education institutions of science-oriented profile are approved by the Cabinet of Ministers of Ukraine by submission from the central authority in the area of education and science.

The state creates conditions for involving students into scientific and engineering activities, including through a network of institutions of specialized education of science-oriented profile, in particular, Junior Academy of Sciences of Ukraine, whose status and principles of activity are defined by the Law of Ukraine «On the Scientific and Engineering Activity”.

6. Standards of specialized education, except for standards of higher education, are approved by central authorities that provide formation and implement public policy in respective areas.

7. Institutions of specialized education perform their activities according to their own educational programmes, including comprehensive, or typical educational programmes approved by central authorities whose jurisdiction includes respective institutions of education.

Accreditation of all educational programmes of specialized education, institutional audit and/or institutional accreditation of specialized institutions of education are performed under mandatory involvement of representatives of the respective area.

Seekers of specialized education who obtain education by comprehensive educational programmes, enter next level of education according to the procedure defined by the central authority in the area of education and science by agreement with central authorities whose jurisdiction covers respective institutions of education.

8. Obtaining specialized education is funded from the state budget, including through providing educational subventions to local budgets, from local budgets and other legal sources.

## **PART III. INSTITUTIONS OF EDUCATION**

### **ARTICLE 22. ORGANIZATIONAL AND LEGAL STATUS OF INSTITUTIONS OF EDUCATION**

1. A legal entity has a status of the institution of education under condition that its main type of activity is educational activity.

A physical person – private entrepreneur or a structural unit of a legal entity under the private or public law, whose main type of activity is educational activity, also enjoys rights and duties of institutions of education envisaged by this Law and other laws of Ukraine. A physical person – private entrepreneur or a structural unit of a legal entity under the private or public law, whose educational activity ceases to be its main type of activity, loses rights and duties, including rights to privileges, envisaged by the legislation for an institution of education.

The educational activity is considered to be the main type of activity if incomes for this type of activity or/and from this type of activity amount to more than half of the total income of this legal person (private entrepreneur).

2. The institution of education as an economic agent may operate in one of the following statuses:

state-funded institution;

non-commercial institution of education;

commercial institution of education.

3. The institution of education, depending on its founder, may operate as the state, communal, private or corporate one.

4. The institution of education perform, at the same time, educational activities at all levels of education and by different types of education, and create structural units for that purpose.

5. To carry out its statutory activity, the institution of education may, on the contractual basis, to cooperate with other legal entities, creating educational, academic, scientific, training and production and other associations where each participant maintains its status of a legal entity.

6. The status, organization and legal form, type of institution of education are determined by the founder and indicated in the statutory documents of the institution of education.

7. Institutions of education of all forms of ownership have equal rights and duties in providing educational activity in accordance with the legislation.

8. Institutions of education act based on their statutory documents approved by their founders in accordance with the legislation.

## **ARTICLE 23. AUTONOMY OF THE INSTITUTION OF EDUCATION**

1. The State guarantees academic, organizational, financial and staffing autonomy of institutions of education.

2. The scope of autonomy of institutions of education is established by this Law, special laws and statutory documents of the institution of education.

## ARTICLE 24. MANAGEMENT OF THE INSTITUTION OF EDUCATION

1. A system of management of institutions of education is stipulated by laws and statutory documents.

The statutory documents of the institutions of education should envisage separation of competence of the founder(s), other governing bodies of the institution of education and its structural units in accordance with the legislation.

2. Management of an institution of education is performed, within powers established by the laws and statutory documents of this institution, by:

founder(s);

head of the institution of education;

collegial governing body of the institution of education;

collegial body of self-governance;

other bodies envisaged by special laws and/or statutory documents of the institution of education.

## ARTICLE 25. RIGHTS AND DUTIES OF THE FOUNDER OF THE INSTITUTION OF EDUCATION

1. Rights and duties of the founder regarding management of the institution of education are established by this Law and other laws of Ukraine, statutory documents of the institution of education.

2. The founder of the institution of education or their authorized person:

approves statutory documents of the institution of education, their new version and amendments;

concludes a terminable labour agreement (contract) with a head of the institution of education selected (appointed) according to the procedure prescribed by the law and statutory documents of the institution;

terminates a terminable labour agreement (contract) with a head of the institution of education on the grounds and according to the procedure stipulated by the legislation and statutory documents of the institution of education;

approves a budget and accepts the financial report of the institution of education in cases and according to the procedure stipulated by the legislation;

oversees financial and economic activity of the institution of education;

oversees adherence to the statutory documents of the institution of education;

ensures creation of the inclusive educational environment, universal design and reasonable adjustment at the institution of education;

oversees prevention of privileges or restrictions (discriminations) on the grounds of race, skin color, political, religious and other views, gender, age, disability, ethnic and social origin, family and property status, place of residence, language or other attributes;

exercises other rights envisaged by the legislation and statutory documents of the institution of education.

3. The founder or their authorized person shall not be entitled to interfere in activities of the institution of education performed within its autonomous rights established by the law and statutory documents.

4. The founder or their authorized person may delegate their individual powers to the governing body of the institution of education and/or to the supervisory board (board of trustees) of the institution of education.

5. The founder is entitled to create an institution of education that performs its activity at different levels of education.

6. The founder undertakes to:

provide maintenance and development of the infrastructure of their established institution of education at the level sufficient to meet requirements of standards of education and licensing conditions;

in case of reorganization or liquidation of the institutions of education, ensure that education seekers can continue education at the respective educational level;

ensure, in accordance to the legislation, creation at the institution of education of the unobstructed environment for participants of the educational process, in particular, for persons with special educational needs.

## **ARTICLE 26. THE HEAD OF THE INSTITUTION OF EDUCATION**

1. The head of the educational institution provides management of the institution and is responsible for educational, financial and economic and other activity of the institution of education.

Powers (rights and duties) and responsibility of the head of institutions of education are established by the law and statutory documents of institutions of education.

The head is a representative of the institutions of education in their relations with state authorities, bodies of local self-government, legal entities and physical persons, and acts without power of attorney within powers envisaged by the law and statutory documents of the institution of education.

2. The head of the institution of education is appointed by the founder according to the procedure established by Laws and statutory documents, from candidates who are fluent in the national language and have higher education.

Additional qualification requirements to the head and a selection (appointment) procedure are established by special laws and statutory documents of the institution of education.

3. The head of the institution of education, within their powers:

organizes activity of the institution of education;

deals with issues of financial and economic activity of the institution of education;

appoints and dismisses workers, defines their terms of reference;

ensures organization of the educational process and control over fulfilling educational programmes;

ensures functioning of the internal quality assurance system;

provides conditions for effective and open public control over activities of the institution of education;

supports and promotes activities of self-government bodies at institution of education;

promotes healthy lifestyles of education seekers and staff of institution of education;

performs other duties envisaged by law and statutory documents of the institution of education.

## **ARTICLE 27. COLLEGIAL GOVERNING BODIES OF INSTITUTIONS OF EDUCATION**

1. The main collegial governing body of the institution of education is a scientific or pedagogical council created in cases and according to the procedure envisaged by special laws.
2. Main powers, responsibility, a procedure of forming and operation of the collegial governing bodies of the institution of education are established by the legislation and statutory documents of the institution of education.

## **ARTICLE 28. PUBLIC SELF-GOVERNMENT AT THE INSTITUTION OF EDUCATION**

1. Public self-government at the institution of education is a right of participants in the educational process both directly and via bodies of public self-government to decide collectively on the issues of organization and provision of the educational process at institutions of education, protection of their rights and interests, organization of recreation and health promotion, participate in public supervision (control) and management of the institution of education within powers defined by law and statutory documents of the institution of education.

Public self-government at the institution of education is implemented based on principles stated in paragraph 8 of Article 70 of this Law.

The following bodies may function at the institution of education:

bodies of self-government of the staff;

bodies of self-government of education seekers;

bodies of self-government of parents;

other bodies of self-government of the educational process participants.

2. The supreme collegial body of public self-government of the institution of education is the general meeting (conference) of the staff of the institution of education.
3. Powers, responsibility, principles of formation and activity of bodies of public self-government are stipulated by special laws and statutory documents of the institution of education.

## ARTICLE 29. THE SUPERVISORY BOARD (BOARD OF TRUSTEES) OF THE INSTITUTION OF EDUCATION

1. The supervisory board (board of trustees) of the institution of education is created by a decision of the founder according to special laws. The procedure of formation of the supervisory board (board of trustees), its responsibility, terms of reference and term of service, as well as its operating procedures are stipulated by special laws and statutory documents of the institution of education.
2. The supervisory board (board of trustees) of the institution of education contributes to solving perspective tasks of its development, attracting financial resources to provide its activity in main areas of development and to executing control over their use, efficient interaction of the institution of education with state authorities and bodies of local self-government , scientific community, civil society organizations, legal entities and physical persons.
3. Members of the supervisory board (board of trustees) of the institution of education can participate in activities of collegial bodies of the institution of education in a consultative capacity.
4. Education seekers and staff members of the institution of education cannot be members of its supervisory board (board of trustees).
5. The supervisory board (board of trustees) is entitled to:
  - participate in setting the development strategy of the institution of education and supervise its implementation;
  - contribute to attracting additional sources of funding;
  - analyze and assess activities of the institution of education and its head;
  - monitor implementation of the budget of the institution of education and make respective recommendations and proposals which are mandatory for consideration by the head of the educational institution;
  - make a submission to the founder of the institution of education regarding a commendation or dismissal of the head of the institution of education on the grounds stipulated by the law;
  - exercise other rights stipulated by special laws and/or statutory documents of the institution of education.

## ARTICLE 30. TRANSPARENCY AND INFORMATIONAL OPENNESS OF THE INSTITUTION OF EDUCATION



1. The institutions of education form open and accessible resources with information about their activities and make such information publicly available. Access of visually-impaired persons to such information may be provided in different forms based on possibilities of the institution of education.
2. The institutions of education that have a license to implement educational activity undertake to ensure open access to the following information and documents at their web site (if such web sites are not available, at their founders' web sites):
  - the statute of the institution of education;
  - licenses for implementing educational activities;
  - accreditation certificates of educational programmes, institutional accreditation certificated of the higher education institution;
  - a structure and governing bodies of the institution of education;
  - staff of the institution of education according to the licensing conditions;
  - educational programmes delivered at the institution of education and a list of educational components envisaged by a respective educational programme;
  - the serviced territory assigned to the institution of education by its founder (for institutions of preschool and general secondary education);
  - a licensed number and an actual number of individuals studying at the institution of education;
  - language(s) of instruction;
  - availability of vacancies, a procedure and terms of a competition for their appointment (in case of holding a competition);
  - physical infrastructure of the institutions of education (according to licensing conditions);
  - areas of scientific and/or artistic activity (for institutions of higher education);
  - availability of dormitories and free beds there, cost of accommodation;
  - outcomes of education quality monitoring;
  - annual report about activities of the institution of education;
  - admission regulations of the institution of education;

accessibility conditions of the institution of education for study of persons with special educational needs;

tuition fee for study, training, retraining, professional development of education seekers;

a list of additional educational and other services, their cost and procedure of their provision and payment for them;

other information disclosed by a decision of the institution of education or in accordance with requirements of the legislation.

3. Institutions of education that receive public funds and their founders undertake to disclose on their web sites their budget and financial report about all receipts and payments, information about a list of goods, works and services received as a charitable assistance, with indication of their cost, as well as about funds received from other legal sources.

4. Information and documents envisaged by paragraphs 2 and 3 of this Article, if they are not deemed restricted information, are posted for open access not later than in ten working days after their approval or making amendments to them, if otherwise is not envisaged by the laws of Ukraine.

5. A list of additional information mandatory for disclosing by institutions of education may be specified by special laws.

## **ARTICLE 31. SPECIAL ASPECTS OF RELATIONS BETWEEN INSTITUTIONS OF EDUCATION AND POLITICAL PARTIES (ASSOCIATIONS) AND RELIGIOUS ORGANIZATIONS**

1. State and communal institutions of education are separate from church (religious organizations), and are secular.

2. Private institutions of education, in particular those established by religious organizations, are entitled to define the religious focus of their educational activity.

3. Political parties (associations) may not interfere in educational activities of the institutions of education.

Creation of party chapters and functioning of any political associations is forbidden at the institutions of education.

4. Administration of institutions of education, pedagogic, academic and scientific workers, state authorities and bodies of local self-government, their officials may not involve education seekers into participation in events organized by religious organizations (except for institutions of education defined in paragraph 2 of this Article) or political parties (associations), except for events envisaged by the educational programme.

5. Administration of institutions of education, state authorities and bodies of local self-government, their officials may not involve staff members of the institutions of education into participation in events organized by religious organizations (except for institutions of education defined in paragraph 2 of this Article) or political parties (associations).
6. Education seekers may not be restricted in their right to obtain education in the state and communal institutions of education due to their belonging or not belonging to religious organizations of political parties (associations).
7. Additional requirements to pedagogical (academic) activities at institutions of education, specified in paragraph 2 of this Article, are established by their statutory documents.

## **PART IV. EDUCATIONAL STANDARDS, EDUCATIONAL PROGRAMMES, QUALIFICATIONS AND DOCUMENTS ABOUT EDUCATION**

### **ARTICLE 32. EDUCATIONAL STANDARDS**

1. The educational standard specifies:

requirements to mandatory competences and learning outcomes of the education seeker of the respective level;

general academic load of education seekers;

other components envisaged by special laws.

2. Educational standards are developed according to the National Qualification Framework.

3. Educational standards are developed and approved according to the procedure stipulated by special laws and other regulations.

4. Central state authorities, which are entitled to approve educational standards by this Law, post the following at their web sites:

respective draft standards with a goal of their public discussion;

educational standards no later than 10 days from the date of their approval.

## ARTICLE 33. EDUCATIONAL PROGRAMME

1. The educational programme is developed based on the educational standard of the respective level (if available).
2. The educational programme contains:  
  
requirements to individuals who can start education under this programme;  
  
a list of educational component and their logical sequence;  
  
total academic load and expected learning outcomes of education seekers.
3. Educational programmes are developed by institutions of education, scientific institutions, other educational agents, and are approved in accordance to this Law and special laws.

Educational programmes should envisage educational components for free selection by education seekers.

Institutions of education may use typical or other educational programmes that are developed and proved in accordance to this and special laws.

Specialized institutions of education, educational associations and institutions of education that implement educational activities at different levels of education may use comprehensive educational programmes that cover different levels of education and are developed and approved (accredited) in accordance to this Law and special laws.

4. Educational programmes may contain a correction and development component for children with special educational needs.

## ARTICLE 34. QUALIFICATIONS

1. Qualifications are divided into complete and partial by their scope, and into educational and professional by their content.
2. The qualification is deemed complete in case the individual obtained a complete list of competences at the respective level of the National Qualification Framework that are specified by the respective standard.
3. The qualification is deemed partial in case the individual obtained part of competences at the respective level of the National Qualification Framework that are specified by the respective standard
4. Unless stated otherwise, in this Law, the term 'qualification' means the complete qualification.

5. An educational qualification is a totality of learning outcomes (competences), that are established by the educational standard and obtained by an individual, recognized by the institution of education or an authorized educational agent and confirmed by a respective document about education.
  6. A professional qualification is a standardized totality of competences (learning outcomes ) obtained by an individual, which allow to perform certain type of work or implement professional activity, that is recognized by a qualification centre , educational agent or other authorized agent and confirmed by a respective document about education.
  7. Learning outcomes and competences necessary for awarding educational and/or professional qualifications may be achieved and obtained in the system of formal, non-formal or informal education.
  8. Educational qualifications are awarded, recognized and confirmed by institutions of education or other educational agents.
- Professional qualifications are awarded, recognized and confirmed by agents authorized by the legislation, in particular, educational agents.
9. Qualification centre s are agents authorized to assess and recognize learning outcomes of individuals (in particular obtained via non-formal or informal education), award and/or confirm respective professional qualifications.
  10. Procedures of awarding and confirming qualifications, as well as a procedure of establishing and operation and a legal status of agents performing activities on evaluation and recognition of educational and/or professional qualifications are specified by special laws and other regulations.

## ARTICLE 35. QUALIFICATION FRAMEWORKS

1. The following qualification frameworks are in effect in Ukraine:

the National Qualification Framework;

industry-specific qualification frameworks.

2. The National Qualification Framework is a systemic and structured by competences description of its levels. The National Qualification Framework is approved by the Cabinet of Ministers of Ukraine.
3. The National Qualification Framework is intended to be used by state authorities and bodies of local self-government, establishments and organizations, institutions of education, employers, other legal entities and physical persons with a goal of developing, identifying, relating, recognizing, planning and developing qualifications.

4. The National Qualification Framework is based on the European and national standards and principles of educational quality assurance, on labour market requirements to competences of employees, and is introduced with a goal of harmonizing requirements of the legislation in the area of social and labour relationships, promotion of the national and international recognition of qualifications obtained in Ukraine, and effective interaction between the sphere of education and the labour market.
5. The industry-specific qualification framework provide detailed description of their levels in terms of competences peculiar to qualifications in the certain filed of knowledge and/or type of economic activity.
6. Levels of industry-specific qualifications framework must correspond to respective levels of the National Qualification Framework.
7. The industry-specific qualifications framework are approved by the Cabinet of Ministers of Ukraine.

## **ARTICLE 36. LEVELS OF THE NATIONAL QUALIFICATION FRAMEWORK**

1. The National Qualification Framework defines eleven levels which may contain sublevels.

Each level of the National Qualification Framework is determined by a special set of individual's competences that are typical to qualifications of the respective level, which also includes individual's readiness for life-long study.

2. The zero level of the National Qualification Framework defines ability of an individual to act in an adequate manner in the known simple situations under direct supervision of another individual.
3. The first level of the National Qualification Framework defines ability of an individual to fulfill simple assignments in typical situation in a strictly defined structures sphere of work or study, perform assignments under immediate supervision of another individual.
4. The second level of the National Qualification Framework defines ability of an individual to fulfill typical ordinary assignments in typical situation in a strictly defined structures sphere of work or study, perform assignments under immediate supervision with elements of independence.
5. The third level of the National Qualification Framework defines ability of an individual to fulfill labour or study assignments of medium complexity by predefined algorithms and established time and quality standards.
6. The fourth level of the National Qualification Framework defines ability of an individual to independently fulfil complex specialized labour or study assignments in a certain field of professional activity or in the process of education, in particular, in non-standard situations.

7. The fifth level of the National Qualification Framework defines ability of an individual to independently fulfil complex specialized labour or study assignments in a certain field of professional activity or in the process of education, be responsible for results of one's activity and control other persons in certain situations.
8. The sixth level of the National Qualification Framework defines ability of an individual to solve typical specialized problems in a certain field of professional activity or in the process of education, which involves application of principles and methods of the respective science and is characterized by some uncertainty of conditions, be responsible for results of one's activity and control other persons in certain situations.
9. The seventh level of the National Qualification Framework defines ability of an individual to solve complex specialized tasks and practical problems in a certain field of professional activity or in the process of education, which involves application of some theories and methods of respective science and is characterized by complexity and uncertainty of conditions.
10. The eighth level of the National Qualification Framework defines ability of an individual to solve complex tasks and problems in a certain field of professional activity or in the process of education, which involves doing research and/or making innovations and is characterized by uncertainty of requirements and conditions.
11. The ninth level of the National Qualification Framework defines ability of an individual to solve complex problems in the area of professional and/or research and innovative activity, which involves deep rethinking of the available and creation of the new integral knowledge and/or professional practice.
12. The tenth level of the National Qualification Framework defines ability of an individual to determine and solve socially significant systemic problems in in a certain area of activity, which re key to ensuing sustainable development and require creation of new the area of professional and/or research and innovative activity, which involves deep rethinking of the available and creation of the new system-forming knowledge and progressive technologies.

## **ARTICLE 37. THE NATIONAL QUALIFICATIONS SYSTEM**

1. The National Qualifications System is a totality of institutions and legal regulations which regulate processes of forming educational and/or professional requirements to individuals in line with needs of the society and labour market, assessment of the qualification level.
2. The structure and operation of the National Qualifications System are stipulated by the law.

## **ARTICLE 38. THE NATIONAL QUALIFICATIONS AGENCY**

1. The National Qualifications Agency is a permanent collegial body authorized to implement the public policy in the area of qualifications.

The National Qualifications Agency is formed on a parity basis from representatives of central authorities in the area of education and science, social policy, economic development, joint representative body of all-Ukrainians associations of employers organizations and a joint representative body of representative all-Ukrainian trade union associations.

2. The National Qualifications Agency:

participates in development of laws and regulations in the area of qualifications;

ensures interaction, coordination and enhanced efficiency in activities of stakeholders in the area of qualifications;

follows up introduction of the National Qualifications Framework with requirements of this Law;

performs international cooperation in the area of qualifications, including with a goal of harmonizing the National Qualifications Framework with similar international documents;

coordinates efficiency assessment of state policy in the area of qualifications;

provides forecasting needs of the labour market in qualifications;

performs follow-up of the information provision of the National Qualifications System and the National Qualifications Framework;

creates and maintains the Qualification Registry;

develops a draft procedure of development, enforcement and review of professional standards and submits it to the Cabinet of Ministers of Ukraine for approval;

registers professional standards and ensures open access to standards;

coordinates development of professional standards;

participates in development of educational standards;

performs accreditation of the qualification centre s;

develops recognition criteria and procedures for qualification gained in other countries;

forms requirements to qualifications awarding procedures, recognition of outcomes of non-formal and informal education;



interacts with bodies and establishments of quality assurance in education;

performs other powers envisaged by the law.

3. The National Qualification Agency is a legal entity of public law that is established by the Cabinet of Ministers of Ukraine and operates on the basis of a statute approved by the Cabinet of Ministers of Ukraine.

## **ARTICLE 39. PROFESSIONAL STANDARDS**

1. A professional standard are requirements to employees' competences approved in accordance with established procedure, that serve as a basis for formation of professional qualifications.

2. Professional standards may be developed by employers, their organizations and associations, state authorities, scientific institutions, industry-specific councils, public associations, other stakeholders.

3. A procedure of development, enforcement and review of professional standards is approved by the Cabinet of Ministers of Ukraine after submission by the National Qualifications Agency.

## **ARTICLE 40. DOCUMENTS ABOUT EDUCATION**

1. After successful completion of study according to the educational programme, education seekers (except for children in institutions of preschool education) receive respective document about education.

By request of the education seeker (a person with visual impairment), a document about education is produced with securing accessibility of information reproduced in it (using Braille type).

2. Documents about education are issued by institutions of education and other educational agents.

A procedure of production, issuing and registration of documents about education, requirements regarding their design and/or contents are stipulated by the legislation.

A procedure of production, issuing and registration of documents about education envisaged by special laws, requirements regarding their design and/or contents are approved by the central authority in the area of education and science based on requirements of those laws.

3. Information about issued documents about secondary, vocational education and training, pre-tertiary vocational and higher education is entered into the Single State Registry of Documents about Education according to the procedure stipulated by the central authority in the area of education and science.

## **PART V. QUALITY ASSURANCE IN EDUCATION**

### **ARTICLE 41. QUALITY ASSURANCE SYSTEM IN EDUCATION**

1. A goal of development and operation of the system of quality assurance in education in Ukraine is to:

guarantee quality of education;

form confidence of the society in the system of education and institutions of education, educational authorities;

ensure permanent and consistent increase in quality of education;

provide assistance to institutions of education and other educational agents in increasing quality of education.

2. The system of quality assurance in education is composed of:

a system of quality assurance at institutions of education (internal system of quality assurance in education);

a system of external quality assurance in education;

a system of quality assurance in activities of educational authorities and establishments providing external quality assurance in education.

3. A system of quality assurance at institutions of education (internal system of quality assurance in education) may include:

a strategy (policy) and procedures of quality assurance in education;

a system and mechanisms of ensuring academic integrity ;

- disclosed criteria, rules and procedures of assessment of education seekers;
- disclosed criteria, rules and procedures of assessment of pedagogical (academic) activity of educational and academic workers;
- disclosed criteria, rules and procedures of assessment of administrative activities of the executive personnel of institutions of education;
- ensuring availability of necessary resources for organization of the educational process, including those for individual work of education seekers;
- ensuring availability of information systems for efficient management of the institution of education;
- creation of the inclusive educational environment, universal design and reasonable adjustment at the institution of education;
- other procedures and measures stipulated by special laws or document of the institution of education.

4. The system of external quality assurance in education may include:

1) instruments, procedures and measures of quality assurance and improvement in education, in particular:

- standardization;
- licensing of the educational activity;
- accreditation of educational programmes;
- institutional accreditation;
- public accreditation of institutions of education;
- external independent assessment of learning outcomes ;
- institutional audit;
- educational quality monitoring;
- assessment of educational workers;
- certification of educational workers;
- public supervision;

other instruments, procedures and measures stipulated by special laws;

2) specified by this Law and special laws bodies and establishments responsible for quality assurance and authorized establishments that conduct external independent assessment;

3) independent institutions of assessment and quality assurance in Ukraine.

5. A system of quality assurance in activities of governing bodies and institutions providing external quality assurance in Ukraine, includes:

the policy and procedures of quality assurance in their own activity;

necessary resources to organize processes and procedures;

external independent audit of activities (processes and procedures) of respective bodies and institutions.

6. Special aspects of functioning of the quality assurance system at each level of education are stipulated by special laws.

## ARTICLE 42. ACADEMIC INTEGRITY

1. Academic integrity means ethical principles and rules stipulated by the law, which should be followed by participants of the educational process during study, teaching and implementation of scientific (creative) activities in order to ensure confidence in learning outcomes and/or scientific (creative) achievements.

2. Observing the academic integrity by pedagogic, academic and scientific workers involves:

referencing sources of information in case of using ideas, developments, statements, data;

observing requirements of legislation on the copyright and related rights;

provision of accurate information on research methods and results, sources of information used and one's own pedagogic (academic, creative) activities;

control over observing academic integrity by education seekers;

objective assessment of learning outcomes .

3. Observing the academic integrity by education seekers involves:

doing study assignments, assignments of regular and final control of learning outcomes by the education seeker independently (this requirement is applied to persons with special educational needs taking into consideration their individual needs and capacities);

referencing sources of information in case of using ideas, developments, statements, data;

observing requirements of legislation on the copyright and related rights;

provision of accurate information on results of one's own study (scientific, creative) activities, used research methods and sources of information.

4. The following is deemed to be violations of academic integrity:

academic plagiarism – release (completely or partially) of scientific (creative) results obtained by other individuals as results of one's own research (creative activity) and/or reproduction of published texts (released works of art) of other authors without attribution;

self-plagiarism – release (completely or partially) of one's own scientific results that have been published earlier as new scientific results;

fabrication – devising data or facts used in educational process or scientific research;

falsification – conscious substitution or modification of existing data regarding the educational process or scientific research;

cribbing – doing written works using external sources of information other than those allowed for use, in particular, during assessment of learning outcomes ;

deceit – provision of knowingly false information regarding one's own educational (scientific, creative) activity or organization of the educational process; forms of deceit include, in particular, academic plagiarism, self-plagiarism, fabrication, falsification and cribbing;

bribery – giving (receiving) by a participant of the educational process or an offer to give (receive) money, property, services, privileges or any other tangible or intangible goods with a goal to receive an unjustified advantage in the educational process;

biased assessment – conscious overestimation or underestimation of learning outcomes of education seekers.

5. For violating academic integrity, educational, academic and scientific workers of institutions of education may be held accountable in the following ways:

denial of awarding the scientific degree or an academic title;

deprivation of the awarded scientific (educational creative) degree or awarded academic title;

denial of awarding, or deprivation of the awarded pedagogic title, qualification category;

deprivation of a right to participate in activities of bodies specified by the law or hold positions specified by the law.

6. For violating academic integrity, education seekers may be held accountable in the following ways:

a new assessment (a test, exam, etc.);

a new study of the respective educational component of the educational programme;

expulsion from the institution of education (except for individuals gaining general secondary education);

cancellation of the academic stipend;

cancellation of fee privileges granted by the institution of education.

7. Types of academic responsibility (including additional and/or detailed ones) of educational process participants for specific violations of academic integrity are stipulated by special laws and/or internal regulations of the institution of education, which should be approved (agreed) by a collegial governing body of the institution of education and agreed with respective bodies of self-government of education seekers in their part of responsibility.

8. A procedure of detecting and establishing facts of violating academic integrity is defined by the authorized collegial governing body of the institution of education based on this Law and special laws.

If a question was initiated regarding violation of academic integrity by an individual, such individual is entitled to:

get familiar with all inspection materials regarding establishing facts of violation of academic integrity, submit comments in their regard;

in person or through a representative, provide oral and written explanation or refuse to provide any explanations, participate in examination of evidences of academic integrity violations;

know about the date, time and place and be present during consideration of the question regarding establishing a fact of violation of academic integrity and holding this person academically liable;

appeal the decision about holding academically accountable to the body authorized to deal with appeals, or to the court.

9. Forms and types of academic responsibility of institutions of education are established by special laws.

10. For actions (inaction) recognized by this Law as the violation of academic integrity, an individual may be held accountable in other ways on the grounds and according to the procedure stipulated by Law.

## ARTICLE 43. LICENSING OF EDUCATIONAL ACTIVITY

1. Licensing of the economic activity is a procedure of recognizing capability of the legal entity or physical person to provide educational services at certain level of education in accordance to licensing conditions.

2. Educational activity is performed based on the license issued by a licensing body in accordance to the legislation:

for institutions of higher, postgraduate, pre-tertiary vocational education, vocational education and training – by the central executive authority in the area of education and science;

for institutions of preschool and general secondary education – by the Council of Ministers of the Autonomous Republic of Crimea, oblast, Kyiv and Sevastopol City state administrations.

3. Licensing conditions are stipulated separately for each level of education. Licensing conditions are formed with due regard to special accessibility conditions for persons with special educational needs. Requirements to licensing conditions are stipulated by special laws.

4. Licensing, control over observing the licensing conditions, issuance and revocation of license for educational activity are performed according to the procedure stipulated by the legislation.

## ARTICLE 44. ACCREDITATION OF THE EDUCATIONAL PROGRAMME

1. Accreditation of the educational programme is an assessment of the educational programme regarding its correspondence to the educational standard, as well as capability of the institution of education to ensure that education seekers achieve education outcomes envisaged in the educational programme.

2. Accreditation of the educational programme is voluntary and is performed by initiative of the institution of education.

The educational programme should be accredited if it is envisaged by a special law.

Grounds for accrediting educational programmes are established by special laws.

3. The educational programme of respective level of education is accredited by the quality assurance body specified by the special law and/or accredited non-governmental professional associations or other accredited legal entities which perform independent assessment of quality of education and educational activities of institutions of education.

## ARTICLE 45. THE INSTITUTIONAL AUDIT

1. The institutional audit is a comprehensive external inspection and evaluation of educational and administrative processes at the institution of education (except for institutions of higher education) which ensures its effective operation and sustainable development.

2. A goal of the institutional audit is evaluation of quality of educational activity of the institution of education and development of recommendations regarding:

enhancing quality of the educational activity of the institution of education and improvement of the internal system of quality assurance;

bringing the educational and administrative processes in line with requirements of the legislation and licensing conditions.

3. Outcomes of the institutional audit are disclosed at websites of the institution of education (if available), its founder (except for the founder of the private institution of education) and the body that performed the institutional audit.

4. The institutional audit is performed by the central executive authority in quality assurance.

5. The institutional audit is performed routinely if so envisaged by a special law.

Institutions of education which have a valid certificate about public accreditation of the institution of education are deemed such as have successfully passed routine institutional audit.

6. The institutional audit is performed on an unscheduled basis at the institution of education which has low quality of educational activity.

The unscheduled institutional audit may also be initiated by the founder, head, collegial governing body, supreme collegial body of local self-government or the supervisory board (board of trustees) of the institution of education.

7. Based on the outcomes of the institutional audit, a report is provided about quality of educational activity of the institution of education, an internal system of quality assurance, and recommendations on improvement of activities of the institution of education.



In the event of discovery of non-compliance of educational activities of the institution of education to the legislation and/or licensing conditions, the body which conducts the audit sets timeframe to remove issues and violations in activities of the institution of education. After expiration of this period, results of removal of respective issues and violations are expected. If outcomes of such inspection are negative, recommendations regarding replacement of the head of the institution of education, cancellation or reorganization of the institution of education may be given to the founder of the institution of education.

8. Special aspects of performing institutional audit at the respective level of education are specified by special laws.

## **ARTICLE 46. INSTITUTIONAL ACCREDITATION**

1. Institutional accreditation is an assessment of quality of educational activity of the institution of education higher.
2. The institutional accreditation is voluntary and may be initiated by the institution of higher education.
3. The institutional accreditation is performed by the National Agency of Quality Assurance in Higher Education in cooperation with national and international experts, as well as by international institutions performing activities in the area of quality assurance in higher education and recognized by the National Agency of Quality Assurance in Higher Education.
4. Principles of the institutional accreditations are specified by the special law.

## **ARTICLE 47. THE EXTERNAL INDEPENDENT ASSESSMENT**

1. The external independent assessment is an assessment of learning outcomes gained by an individual at a particular level of education conducted by an authorized state agency (organization).
2. The external independent assessment is performed based on programmes of the external independent assessment approved by the central executive authority that provides formation of and implements the public policy in the respective sphere. A content of programmes of external independent assessment should correspond to standards of education of the respective level and be available for information not later than 1.5 years before the external independent assessment.
3. The external independent assessment is conducted on the following principles:  
  
validity (relevancy and suitability of assessment methods and technologies for specific purposes);  
  
openness and transparency;  
  
objectivity;

reliability;

accessibility;

responsibility.

4. Procedures and forms of conducting the external independent assessment are specified by the central executive authority which provides formation of and implements public policy in the respective sphere, taking into account capacities of persons with special educational needs, and are to be made publicly available at least six months before the external independent assessment.

5. The external independent assessment of learning outcomes is performed on expense of the state budget and on expense of other legal sources.

The external independent assessment of learning outcomes of individuals that are finishing obtaining basic and filed-specific secondary education is performed on expense of the state budget.

6. Regulations about the authorized institution (organization) is approved in accordance to the legislation.

7. Principles of the external independent assessment which are not stipulated by this Law are specified by special laws.

## **ARTICLE 48. EDUCATION QUALITY MONITORING**

1. The education quality monitoring is a system of consistent and systemic measures implemented in order to detect and track tendencies in development of educational quality in the state, in its separate territories, at institutions of education (other educational agents), establish correspondence of the actual learning outcomes to the declared goals, and to assess a level, direction and reasons of deviations from goals.

2. The education quality monitoring may be internal and external.

The internal education quality monitoring is performed by institutions of education (other educational agents).

The external education quality monitoring may be performed by any bodies, enterprises, establishments, organizations, other legal entities that perform independent assessment of educational quality and educational activity. Participation of the institutions of education (other educational agents) and educational process participants in the external education quality monitoring is voluntary, except for cases stipulated by the legislation.

3. The procedure, types and forms of the education quality monitoring are approved by the central executive authority in the area of education and science.

4. The central executive authority in the area of education and science organizes participation of the institutions of education in comparative international studies of educational quality.

## **ARTICLE 49. PUBLIC ACCREDITATION OF THE INSTITUTION OF EDUCATION**

1. Public accreditation of the institution of education is an assessment of the institution of education regarding effectiveness of its internal system of educational quality assurance and ensuring that education seekers gain learning outcomes envisaged by educational programmes and educational standards.

Public accreditation of the institution of education is conducted with a goal to recognize quality of educational activity of the institution of education and form its positive image and reputation.

2. Public accreditation of the institution of education is performed on the voluntary basis upon request of the institution of education.

3. Public accreditation of the institution of education is performed by professional public associations accredited as appropriate, other accredited legal entities that perform independent assessment of educational quality and educational activity.

4. Outcomes of the public accreditation of the institution of education may be taken into consideration during accreditation of educational programmes and institutional accreditation.

5. Successful outcomes of the public accreditation of the institution of education are acknowledged with a respective certificate issued for a period of up to 10 years.

## **ARTICLE 50. PERFORMANCE APPRAISAL OF EDUCATIONAL WORKERS**

1. Performance appraisal of educational workers is a system of measures aimed at a comprehensive assessment of educational activity of educational workers.

2. Performance appraisal of educational workers may be regular or unscheduled. The educational worker undergoes the performance appraisal at least once every five years, except for cases envisaged by the legislation.

3. Based on the performance appraisal outcomes, job relevance of the educational worker is established, and qualification categories and pedagogical titles are awarded. A list of categories and pedagogical titles of educational workers is specified by the cabinet of Ministers of Ukraine.
4. A decision of the performance appraisal commission may cause dismissal of the educational worker according to the procedure established by the legislation.
5. Regulations about performance appraisal of educational workers are approved by the central executive authority in the area of education and science.
6. Regulations about performance appraisal of educational workers that provide professional competences of specialized education are approved by central executive bodies that ensure formation of and implement public policy in the respective sphere.

## **ARTICLE 51. CERTIFICATION OF EDUCATIONAL WORKERS**

1. Certification of educational workers is an external assessment of professional competences of the educational worker (including in pedagogy and psychology, practical skills of using modern educational methods and technologies) that is performed by means of independent testing, self-assessment and review of the practical work experience.
2. Certification of the educational worker is performed on a voluntary basis and may be initiated by this worker only.
3. Formation and operations support of the certification system of educational workers is performed by the central executive authority in the area of education and science.

The certification procedure of educational workers is performed by establishments specially authorized by the State; regulations about such establishments is approved by the Cabinet of Ministers of Ukraine.

4. Based on successful outcomes of the certification of an educational worker, the individual is issued a certificate which is valid for three years. Successful certification is counted as successful performance appraisal of the educational worker.
5. Educational workers who receive additional allowance for successful certification, introduce and disseminate methods of competence teaching and new educational technologies.

Educational workers who have a certificate may be involved into the institutional audit at other institutions of education, development and accreditation of educational programmes and to other procedures and measures related with quality assurance and introduction of innovations, pedagogic innovations and technologies in the system of education.

6. Regulations about certification of educational workers are developed by central executives authorities, whose jurisdiction includes respective institutions of education, and approved by the Cabinet of Ministers of Ukraine.

## **PART VI. PARTICIPANTS OF THE EDUCATIONAL PROCESS**

### **ARTICLE 52. CATEGORIES OF THE PARTICIPANTS OF THE EDUCATIONAL PROCESS**

1. Participants of the educational process are:

education seekers;

educational, academic and scientific workers;

parents of education seekers;

other individuals who carry out educational activity;

other individuals envisaged by special laws and involved into educational process according to the procedure established by the institution of education.

### **ARTICLE 53. RIGHTS AND OBLIGATIONS OF EDUCATION SEEKERS**

1. The education seekers are entitled to:

life-long education and academic mobility;

individual educational trajectory which is implemented, in particular, ся, through free choice of types, forms and pace of obtaining education, institutions of education and educational programmes they offer, educational disciplines and a level of their complexity, methods and means of study;

high-quality educational services;

just and unbiased assessment of learning outcomes ;

recognition of successes in their activity;

freedom of creative, athletic, recreational, cultural, awareness-raising, scientific and technical activities, etc.;

safe and harmless conditions of study, care and labour ;

respect to human dignity;

protection, during the educational process, from humiliation of honour and dignity, any forms of violence and exploitation, discrimination on any grounds, propaganda and campaigning that are harmful to health of the education seeker;

use the library, educational, scientific, production, cultural, sports, recreational infrastructure of the institution of education and services of its structural units according to the procedure established by the institution of education in accordance to special laws;

access to information resources and communications used in the educational process and scientific activities;

provision with stipends according to the procedure established by the Cabinet of Ministers of Ukraine;

off-hour labour activity;

protection of the place of study during compulsory military service and/or mobilization, during a special period;

participation, in-person or through legal representatives, in the public self-government and administration of the institution of education;

other conditions necessary for obtaining education, including for persons with special educational needs and from socially vulnerable groups.

2. For the period of the in-service training and apprenticeship, education seekers are provided with workplaces, safe and harmless working environment in accordance with educational programmes and agreements between institutions of education and enterprises, establishments, organizations that provide places for the in-service training and apprenticeship. During the in-service training and apprenticeship, labour of education seekers cannot be used for purposes that are not foreseen by the educational programme.

3. Education seekers undertake to:

fulfil requirements of the educational programme (the individual education plan if available) while observing a principle of academic integrity, and achieve learning outcomes envisaged by the educational standard for respective level of education;

respect dignity, rights, liberties and legal interests of all participants of the educational process, observe ethical standards;

treat one's own health, health of other individuals, environment with responsibility and care;

observe statutory documents, internal rules of conduct of the institution of education, as well as terms of the agreement about provision of educational services (if available).

4. The education seekers have other rights and responsibilities envisaged by the legislation and statutory documents of the institution of education.

5. Involvement of education seekers into works or events that are not related with the educational programme, during the educational process, is forbidden, except for cases envisaged by a decision of the Cabinet of Ministers of Ukraine.

## **ARTICLE 54. RIGHTS AND RESPONSIBILITIES OF EDUCATIONAL, ACADEMIC AND SCIENTIFIC WORKERS, OTHER PERSONS INVOLVED IN THE EDUCATIONAL PROCESS**

1. Educational, academic and scientific workers are entitled to:

academic freedom, including freedom of teaching, freedom from intervention into pedagogical, academic and scientific activities, free choice of forms, methods and means of teaching that correspond to the educational programme;

pedagogic initiative;

development and introduction of authorial educational programmes, projects, educational methodologies and technologies, methods and means, first of all, methodologies of competence education;

use the library, educational, scientific, production, cultural, sports, recreational infrastructure of the institution of education and services of its structural units according to the procedure established by the institution of education in accordance to special laws;

professional development, retraining;

free choice of educational programmes, forms of education, institutions of education, establishments and organizations, other educational agents that provide professional development and retraining of educational workers;

access to information resources and communications used in the educational process and scientific activities;

recognition of successes in their professional activity;

just and unbiased assessment of their professional activity;

protection of professional honour and dignity;

individual educational (scientific, creative, artistic and other) activities outside of the institution of education;

sabbatical for a period of up to one year no more than once every 10 years that is added to the length of service;

first-priority provision with housing, privileged credits for individual and cooperative construction;

provision with employer-rented housing with all utilities according to the procedure established by the legislation;

safe and harmless conditions of work;

extended paid leave;

participation in the public self-government of the institution of education;

participation in activities of collegial governing bodies of the institution of education.

2. Educational, academic and scientific workers undertake to:

constantly improve their professional and general cultural levels and pedagogical skills;

fulfil the educational programme to make sure that education seekers achieve its envisaged learning outcomes ;



- contribute to development of capacities of education seekers, formation of healthy lifestyle skills, care about their physical and mental health;
  - observe academic integrity and ensure its observance by education seekers in the educational process and scientific activities;
  - observe pedagogical ethics;
  - respect dignity, rights, liberties and legal interests of all participants of the educational process;
  - by instruction and personal example, assert respect to public morality and social values, in particular, truth, justice, patriotism, humanism, tolerance, industriousness;
  - form in education seekers realization of the need to observe the Constitution and Laws of Ukraine, protect sovereignty and territorial integrity of Ukraine;
  - develop in education seekers respect to the state language and state symbols of Ukraine, national historical, cultural values of Ukraine, careful attitude to the historical and cultural heritage of the state and the natural environment;
  - form in education seekers aspirations towards mutual understanding, peace, cohesion among all nations, ethnic, national and religious groups;
  - protect education seekers, during the educational process, from humiliation of honour and dignity, any forms of violence and exploitation, discrimination on any grounds, propaganda and campaigning that are harmful to health of the education seeker, prevent use of alcohol, drugs, other harmful habits at the territory of institutions of education by them and other persons;
  - observe statutory documents and internal regulations of the institutions of education, perform their employment duties.
3. Educational, academic and scientific workers have other rights and responsibilities envisaged by the legislation, collective agreement, labour agreement and/or statutory documents of the institution of education.
  4. Rights and duties of other persons involved into the educational process are stipulated by the legislation, respective agreements and/or statutory documents of the institution of education.
  5. Distraction of educational, academic and scientific workers from their professional duties is not allowed, except for cases envisaged by legislation.
  6. Individuals guilty in the violation of this article bear responsibility in accordance with law.

## **Article 55. Rights and obligations of parents of education seekers**

1. Upbringing in the family is a key pillar of child's development as a personality. Parents have equal rights and obligations regarding education and development of the child.

2. Parents of education seekers are entitled to:

protect rights and legitimate interests of education seekers in accordance to the legislation;

contact institutions of education, educational authorities regarding issues of education;

choose the institution of education, educational programme, type and form of obtaining respective education by their children;

participate in public self-government of the institution of education, in particular, select and be selected to bodies of public self-government of the institution of education;

receive information about all scheduled and unscheduled pedagogical, psychological, medical, sociological events, studies, investigations, pedagogic experiments at the institution of education in a timely manner and give their agreement for participation of their child in those activities;

participate in development of the child's individual development plan and/or individual education plan;

in good time receive information about activities of the institution of education, learning outcomes of their children (children whose legal representatives they are) and outcome of quality assessment at the institution of education and its educational activities.

3. Parents of education seekers should:

instill in their children respect to human dignity, rights, freedoms and legitimate interests, laws and ethical norms, responsible attitude to their own health, health of other people and environment;

assist the child in fulfilling the educational programme and achieving its envisaged learning outcomes ;

respect dignity, rights, freedoms and legitimate interests of the child and other educational process participants;

care about physical and mental health of the child, support developments of their abilities, form healthy lifestyle skills;

form a culture of the dialogue, a culture of living in mutual understanding, peace and cohesion among all peoples, ethnic, national, religious groups, representatives of different political and religious views and cultural traditions, different social origin, family and property status;

by instruction and personal example, assert respect to public morality and social values, in particular, truth, justice, patriotism, humanism, tolerance, industriousness;

form in education seekers realization of the need to observe the Constitution and Laws of Ukraine, protect sovereignty and territorial integrity of Ukraine;

develop in the child respect to the state language and state symbols of Ukraine, national historical, cultural values of Ukraine, careful attitude to the historical and cultural heritage;

abide by the statutory documents and internal regulations of the institutions of education, as well as terms and conditions of the agreement about provision of educational services (if available).

4. The State provides parents of education seekers with assistance in performing their duties, protects rights of the family.

State authorities and bodies of local self-government should protect the right of parents to raise their children in accordance to their religious and philosophical views, and educational agents should take respective views into consideration when organizing and implementing the educational process without prejudice to rights, freedoms and legitimate interests of other participants of the educational process.

5. Other rights and responsibilities of parents may be established by the legislation, statutory documents of the institution of education, and the agreement about provision of educational services (if available).

#### **Article 56. The state guarantees to education seekers**

1. Individuals that obtain complete general secondary education at education institutions away from their place of residence are provided with dormitories and/or transportation for the period of study.

2. Bodies of local self-government provide travel privilege for pupils, boarders, students and educational workers to the place of study and back home in the form and in the amount stipulated by the above bodies on expense of respective local budgets.

3. State authorities and bodies of local self-government, directly responsible for state and communal institutions of education provide free meals to:

orphaned children, children deprived of parental care, children with special educational needs who study at the special and inclusive classes (groups) and children from families that receive assistance according to the Law of Ukraine "On the State Social Assistance to Low-Income Families," who study at preschool, general secondary, vocational education and training or pre-tertiary vocational education;

other categories of individuals as stipulated by the legislation and/or decisions of the body of local self-government .

4. Individuals obtaining education at institutions of vocational education and training are provided with dormitories, stipends, special clothing for the period of study according to the procedure established by the Cabinet of Ministers of Ukraine.

5. Individuals obtaining education at institution of pre-tertiary vocational and higher education are provided with dormitories for the period of study and have a right to receive stipend according to the procedure established by the Cabinet of Ministers of Ukraine.

6. The State guarantees to persons who study a right for additional leave at their place of work, reduced working hours and other privileges envisaged by laws for individuals combining work and study.

7. In order to obtain education, seekers of vocational education and training, pre-tertiary vocational education and higher education may be provided, in accordance to the legislation, with the state financial support, soft loans, guarantees for receiving loans, partial reimbursement of credit interest rate, etc.

## **ARTICLE 57. THE STATE GUARANTEES TO EDUCATIONAL AND ACADEMIC WORKERS**

1. The state provides educational and academic workers with:

appropriate work environment and medical care;

payment for professional development;

legal, social, professional protection;

differentiation of official salaries (wage rates) in accordance to qualification categories, establishing increased official salaries (wage rates) for pedagogical titles, bonuses for honourable titles, supplement for scientific degrees and scientific titles;

payment to educational workers with annual wage incentive in the amount of up to one official salary (wage rate) for conscientious work, exemplary performance of their assigned duties;

payment to educational and academic workers of a supplement for health improvement in the amount of a monthly official salary (wage rate) when granting annual leave;

provision of soft long-term loans for construction (reconstruction) or purchase of housing or provision of the employer-rented housing as envisaged by the Cabinet of Ministers of Ukraine;

pension for length of service;

other guarantees stipulated by the Laws of Ukraine.

2. In the event of sickness of the educational or academic workers, that makes performing their duties temporarily impossible and restricts possibility of being present in the group of individuals who study, or temporary transfer to another job under such or other circumstances, or performing compulsory military service during mobilization, such worker retains previous average earnings. In case of sickness or disability, previous average earnings are paid until restoration of performing capacity or until disablement is established.

3. Educational workers working in rural areas and retired individuals who have worked as educational workers in rural areas and live there, are provided by the State in accordance to the legislation with free use of housing with heating and electric power within the established norms. Those privileges are provided subject to the condition that an amount of the average monthly per person income of the family for the previous six months does not exceed the income which entitles to the social tax privileges as stipulated by the Cabinet of ministers of Ukraine.

Those workers are entitled to obtain free ownership of a land plot within the land share of a member of an agricultural enterprise, agricultural establishment and organization located at the territory of the respective council, from the lands of the agricultural enterprise, agricultural establishment or organization that are being privatized, or the land reserve, but not more that the norms of granting of land plots to citizens established by the law for private plot activities.

The effect of the second sub-paragraph of this paragraph shall not apply to citizens who have gained a right to the land share and lend plots for private plot activities or private farming activities, except for cases of inheriting a right to the land share, land plots for private plot activities or private farming activities as envisaged by the Laws of Ukraine.

4. Educational and academic workers may be awarded for distinguished service with state awards, granted national awards of Ukraine, recognized with signs, commendations, other types of moral and material incentives.

## **PART VII. EDUCATION, PROFESSIONAL DEVELOPMENT AND REMUNERATION OF EDUCATIONAL AND ACADEMIC WORKERS**

# ARTICLE 58. REQUIREMENTS TO THE EDUCATION AND PROFESSIONAL QUALIFICATION OF AN EDUCATIONAL WORKER OF AN INSTITUTION OF EDUCATION

1. The pedagogical activities at the pedagogical institutions are performed by individuals holding positions of educational workers.
2. Individuals whose physical and mental condition allows to perform pedagogical activities and who have educational and/or professional qualification which corresponds to qualification requirements to respective positions of educational workers established by the legislation, in particular, by the professional standard (if available) are employed for positions of educational workers.
3. Individuals who obtained higher, pre-tertiary vocational or vocational education and training with a specialization in pedagogy (pedagogical education), are conferred professional qualification of the educational workers by a respective institution of education. Pedagogical education envisages training of an education that results in gaining competences in speciality (subject speciality, specialization), pedagogy, psychology, including through teaching practicum, necessary for provision of the educational process, forming and development of the personality, including that of the person with special educational needs, monitoring of pedagogical activity and analysis of pedagogical experience, educational measurements, use of educational technologies and teaching methods, effective ways of cooperation among all participants of the educational process.
4. Individuals who obtained higher, pre-tertiary vocational or vocational education and training in a different speciality, may be conferred by this institution of education a professional qualification of the educational worker if this is envisaged by the educational programme.
5. Individuals who obtained higher, pre-tertiary vocational or vocational education and training in different speciality and who have not been conferred professional qualification of the educational worker, may be appointed for a position of the educational worker for a one-year period.

The individuals may continue working at respective positions of educational workers of the system of preschool, out-of-school, vocational education and training, pre-tertiary vocational, higher and postgraduate education after their successful assessment according to the procedure established by the legislation.

Individuals who provide obtaining of complete general secondary education, may be conferred a qualification of the educational worker by an institution of higher or professional development education or a respective qualification centre after one year of work in positions of educational workers who provide obtaining of complete general secondary education, and subject to successful outcomes of the qualification test in accordance with qualification requirements to the educational worker or a respective professional standard (if available).

# ARTICLE 59. PROFESSIONAL DEVELOPMENT AND ADVANCED TRAINING OF EDUCATIONAL AND ACADEMIC WORKERS

1. Professional development of educational and academic workers envisages permanent self-education, participation in advanced training programmes and any other types and forms of the professional growth. Institutions of education that employ the educational and academic workers, support their professional development and advanced training.

2. Advanced training may take place in different types (study under the educational programme, traineeship, participation in certification programmes, trainings, seminars, workshops, alignment meetings, training workshops, webinars, master classes, etc.) and in different forms (institutional, dual, in-service, etc.).

Educational and academic workers are entitled to receive advanced training at institutions of education that have a license to provide advanced training or conduct educational activities under the accredited educational programme. Outcomes of advanced training at such institutions of education do not require special recognition and confirmation.

Educational and academic workers are entitled to receive advanced training with other educational agents, physical persons and legal entities. Outcomes of advanced training of the educational (academic) worker with such educational agents are recognized by a separate decision of the pedagogical (scientific) council. The terms and procedure of recognition of the advanced training outcomes at such agents are recognized in accordance to paragraph six of this Article.

A type, form and agent of the advanced training are selected by the educational (academic) worker.

3. Based on the propositions from the educational (academic) workers, the pedagogical (academic) council of the institution of education approves the annual advanced training plan of educational (academic) workers (in- or off-service).

4. Advanced training is an obligatory requirement of the assessment of the educational worker is taken into consideration during competitive selection for a position of the educational worker.

5. A total number of hours of advanced training of the educational (academic) worker that are funded from respective budgets, is stipulated by the legislation.

Funds for advanced training of the educational (academic) workers are received by the institution of education, which distributes those according to the decision of the pedagogical (academic) council of the institution.

Advanced training of the educational (academic) worker may be funded by the founder of the institution of education where this individual works, by the educational (academic) worker, and by other physical persons and legal entities.

During the off-service advanced training in the amount stipulated by the legislation, the employment (position) and the average salary are retained by the educational (academic) worker.

6. Terms and procedures of advanced training of educational (academic) workers, including terms and procedures of payment, terms and procedure of recognizing advanced training outcomes, are approved by the Cabinet of Minister of Ukraine.

## **ARTICLE 60. WORKING HOURS OF EDUCATIONAL AND ACADEMIC WORKERS**

1. Working hours of the educational worker include performing educational, upbringing, methodological, organizational work and other pedagogical activities envisaged by the labour agreement.

2. Working hours of the academic worker include performing educational, methodological, scientific and organizational work.

3. A specific list and scope of types of works of the educational and academic worker is established by the labour agreement in accordance to the legislation.

4. Norms of pedagogical (teaching) load of educational (academic) worker per wage is established by special laws.

5. The founder or a body authorized by the founder, heads of institutions of education and their units cannot demand from the educational and academic workers to perform work which is not envisaged by the labour agreement.

## **ARTICLE 61. REMUNERATION OF EDUCATIONAL AND ACADEMIC WORKERS**

1. Remuneration of educational and academic workers is performed on expense of the state and/or local budgets, funds of founders, incomes of institutions of education, grants, and other legal sources.

2. The position salary of the educational worker (of the lowest qualification category) is established in the amount of three minimum salaries.

The position salary of the educational worker of every following qualification category is increased by at least 10 percent.



The lowest position salary of the academic worker is established 25 percent higher than the position salary of the educational worker of the lowest qualification category.

Every following position salary of the academic worker is increased by at least 10% from the previous one.

The position salary schemes of educational and academic workers of the state and communal institutions are approved by the Cabinet of Ministers of Ukraine based on norms of this Law.

The founder of private institutions of education may establish other size and conditions of remuneration, salary and assistance for educational and academic workers than those envisaged by this Law. Public funds received by the private institution of education are distributed according to the procedure stipulated by the legislation for the state and communal institutions of education.

3. Bonuses for scientific degrees and academic titles to educational, academic and scientific workers are established in accordance with law.

4. Monthly long service bonuses are established for educational and academic workers in the amounts:

over three years – 10 percent;

over 10 years – 20 percent;

over 20 years – 30 percent of the position salary.

5. The educational worker who passed certification, receives a monthly bonus in amount of 20 percent of the position salary in proportion to the amount of pedagogical load during the validity period of the certificate.

6. The institution of education may, on expense of its revenues and other legal sources, establish allowances, supplements, bonuses and other types of incentives for educational and academic workers.

7. The head of the institution of education, in accordance to the legislation, statutory documents and a collective agreement, is entitled to establish allowances, supplements, bonuses for the educational and academic workers for the use of foreign languages, modern technologies in the educational process, implementation of innovative projects, etc.

8. Educational and academic workers may be provided with the financial assistance on expense of revenues of institutions of education to deal with social and domestic issues. Terms of provision of such assistance are stipulated by statutory documents of institutions of education or by the collective agreement.

# **PART VIII. MANAGEMENT AND CONTROL IN THE EDUCATIONAL SPHERE**

## **ARTICLE 62. AUTHORITIES IN THE EDUCATIONAL SPHERE**

1. Authorities in the educational sphere include:

Cabinet of Ministers of Ukraine;

central executive authority in the sphere of education and science;

central executive authority for quality assurance in education;

permanent collegial body in the area of quality assurance in higher education;

state authorities in charge of institutions of education;

Supreme Council of the Autonomous Republic of Crimea;

Council of Ministers of the Autonomous Republic of Crimea;

bodies of local self-government.

## **ARTICLE 63. POWERS OF THE CABINET OF MINISTERS OF UKRAINE**

1. The Cabinet of Ministers of Ukraine:

takes measures to ensure a constitutional right of each person to education;

provides implementation of the public policy in the sphere of education;

approves a strategy of development of education in Ukraine;

develops, approves and implements state special programmes in the area of education;

exercises powers of the founder of the state institutions of education or delegate those powers to the authorized body;

ensures equal conditions for development of institutions of education of all forms of ownership;

stipulated a procedure for formation and allocation of education subvention among the budgets in accordance to this Law and based on Article 94 of the Budgetary Code of Ukraine;

establishes a procedure for state funding of the vocational education and training and pre-tertiary vocational education

approves state priorities regarding training of professionals, academic and regular workers, advanced training and retraining in with a breakdown by knowledge areas;

approves the list of subject areas and professions for training employees for higher, pre-tertiary vocational, vocational education and training;

approves a list of positions of academic and educational workers of institutions of education;

approves licensing conditions for performing educational activities;

approves assessment indicators of the status of education in Ukraine and its regions;

appoints licensing bodies of institutions of preschool and general secondary education;

performs other powers envisaged by law.

## **ARTICLE 64. POWERS OF THE CENTRAL EXECUTIVE AUTHORITY IN THE SPHERE OF EDUCATION AND SCIENCE**

1. The central executive authority in the sphere of education and science:

ensures formation and implements the public policy in the sphere of education and science;

develops a strategy of development of education in Ukraine, other strategic documents, state special programmes in the sphere of education and science and participates in their implementation;

performs normative and legal support for functioning of the educational system within the powers stipulated by laws of Ukraine;

organizes collection and processing of educational statistics, performs its analysis and forecasts development of the educational system;

approves the procedure, types and forms of monitoring of educational quality;

ensures operation of the Uniform State Electronic Database on Education and other state information systems in education;

approves educational standards and publishes those standards on its official web site;

implements international cooperation in the sphere of education and science;

approves a recognition procedure for documents about education obtained at foreign institutions of education;

approves a form and content of the state-recognized documents about education;

forms recommendations about the amount of educational subventions, state funding of the secondary, vocational and higher education, and the stipend fund;

distributes educational subventions and state funding of secondary, vocational education and training, pre-tertiary vocational and higher education, and of the stipend fund of institutions of education it is responsible for;

provides methodological recommendations regarding educational activity and management of institutions of education;

by agreement with the central executive authority that ensures formation and implements public policy in the area of economic development, submits to the Cabinet of Ministers of Ukraine for its consideration recommendations about the state priorities regarding training of professionals, academic and regular workers, advanced training and retraining in with a breakdown by knowledge areas;

develops and approves enrolment requirements;

develops licensing conditions for educational activities and submits those condition for approval of the Cabinet of Ministers of Ukraine;

performs licensing of educational activities of institutions of higher, postgraduate, pre-tertiary vocational education, vocational education and training, as well as verification of compliance with licensing conditions;

forms and ensures operation of the educational workers certification system, provides conditions for their advanced training, approves regulations about accreditation of educational workers certification centre s;

ensures development of the physical culture and sports at the institutions of education;

approves a procedure of institutional audit of the institution of education;

approves model educational programmes;

approves accreditation procedure of educational programmes, other measures related to educational quality control stipulated by laws of Ukraine;

under the instruction of and within limits established by the Cabinet of Ministers of Ukraine, performs duties of the founder regarding state institutions of education;

approves regulations about its permanent or ad hoc consultative, advisory and other supplement bodies;

performs other powers envisaged by the Constitution, this and other Laws of Ukraine.

2. Statements of the central executive body in the sphere of education and science adopted within its mandate are mandatory for the state authorities, authorities of the Autonomous Republic of Crimea, bodies of local self-government, who are responsible for management of institutions of education, and for institutions of education regardless of their form of ownership.

## **ARTICLE 65. MANDATE OF PUBLIC AUTHORITIES RESPONSIBLE FOR INSTITUTIONS OF EDUCATION**

1. Public authorities responsible for institutions of education:

participate in implementation of the educational policy;

participate in development of enrolment conditions at vocational education and training, pre-tertiary vocational and higher education;

distribute state funding and the stipend fund of institutions of education under their responsibility;

analyse and monitor quality of educational activities of institutions of education they are responsible for;

take part in forming educational standards;

under the instruction of and within limits established by the Cabinet of Ministers of Ukraine, perform duties of the founder regarding state institutions of education;

perform other powers envisaged by this and other Laws.

# ARTICLE 66. THE MANDATE OF BODIES OF LOCAL SELF-GOVERNMENT AND SUPREME COUNCIL OF THE AUTONOMOUS REPUBLIC OF CRIMEA

1. Supreme Council of the Autonomous Republic of Crimea, regional (oblast) councils, Kyiv and Sevastopol city councils:

are responsible for implementation of the public policy in the area of education and quality assurance in education in the respective territory, ensuring accessibility of the complete general secondary education and vocational education and training;

plan and ensure development of the network of institutions of field-oriented secondary, vocational education and training and out-of-school education, specialized educational institutions, institutions of postgraduate education, special institutions of education for individual with special educational needs, research and methodological, and learning and teaching institutions;

can establish institutions of education, including those for individuals with special educational needs, and to reorganize and dissolve those institutions;

provide seekers of field-oriented secondary and vocational education and training who study away from their place of residence with dormitories and/or transportation (with vehicles adapted for wheel chair users, if needed);

disclose official reports about all received and used funds, as well as a list and cost of goods, works and services, that address needs of each of institutions of education established by them, and all other expenses in the area of education;

ensure equal conditions of development for institutions of education of all forms of ownership;

perform other powers in the sphere of education as envisaged by the law.

2. District and city councils and councils of amalgamated communities:

are responsible for implementation of the public policy in the area of education and quality assurance in education in the respective territory, ensuring accessibility of the complete general secondary education and vocational education and training

plan and ensure development of the network of institutions of preschool, initial and basic secondary and out-of-school education;

plan and ensure development of the network of field-oriented secondary education with the academic focus (city council of cities with populations over 50 thousand – independently, city council of cities with populations under 50 thousand – upon agreement with the oblast council);

can establish institutions of education, reorganize and dissolve those institutions;

assign serviced territories to institutions of preschool and basic secondary education (except for cases stipulated by special laws);

ensure accessibility of preschool and secondary education for all citizens living in the respective territory and take steps to meet the demand for preschool and secondary education;

provide and fund transportation of pupils and educational workers to institutions of primary and basic secondary education and back (with vehicles adapted for wheel chair users, if needed);

register children of preschool and school-going age according to the procedure approved by the Cabinet of Ministers of Ukraine;

disclose official reports about all received and used funds, as well as a list and cost of goods, works and services, that address needs of each of institutions of education established by them, and all other expenses in the area of education;

ensure equal conditions of development for institutions of education of all forms of ownership;

perform other powers in the sphere of education as envisaged by the law.

### 3. Village councils:

are responsible for implementation of the public policy in the area of education and quality assurance in education in the respective territory, ensuring accessibility of preschool and primary education;

can establish institutions of education, reorganize and dissolve those institutions, provide their activities and development;

disclose official reports about all received and used funds, as well as a list and cost of goods, works and services, that address needs of each of institutions of education established by them, and other expenses in the area of education;

perform other powers in the sphere of education as envisaged by the laws.

## ARTICLE 67. THE MANDATE OF BODIES OF QUALITY ASSURANCE IN EDUCATION

### 1. Bodies of quality assurance in education are:

the central executive authority for quality assurance in education;

permanent collegial body in the sphere of quality assurance in education – the National Agency of Quality Assurance in Higher Education.

2. The central executive authority for quality assurance in education and its territorial chapters:

perform the institutional audit of institutions of education;

give recommendations to institutions of education (except for institutions of higher education) regarding organization and operation of the internal quality assurance system;

based on the expertise outcomes, approve educational programmes for preschool and general secondary education (except for the model ones and those developed based on the model ones);

monitor quality of educational activity and educational quality according to the procedure established by the legislation;

accredit public professional associations and other legal entities performing independent educational quality assessment of institutions of education (except for institutions of higher education), maintain their register;

within their mandate envisaged by the law, perform public oversight (control) of institutions of education regarding their compliance to the legislation;

on behalf of the central executive authority in the area of education and science, perform control over compliance to requirements regarding organization of external independent assessment;

perform other powers as envisaged by laws.

3. The mandate of the permanent collegial body in the sphere of quality assurance in higher education is established by a special law.

## **ARTICLE 68. OPENNESS OF THE EDUCATIONAL AUTHORITIES**

1. Authorities in the sphere of education shall disclose all public information in accordance to the Laws of Ukraine “On Access to Public Information” and “About the Openness in Use of Public Funds.”

2. Authorities in the sphere of education ensure mandatory public discussion of draft laws and regulations regarding the system of education and participation of the public in drafting and adopting those documents.



## **ARTICLE 69. THE STATE SUPERVISION (CONTROL) IN THE SPHERE OF EDUCATION**

1. The state supervision (control) in the sphere of education is performed with a goal to implement the unified public policy in this sphere and is aimed at ensuring interests of the society regarding adequate quality of education and educational activity.
2. The state supervision (control) in the sphere of education is performed by the central executive authority on quality assurance in education and its territorial chapters.
3. The central executive authority on quality assurance in education and its territorial chapters act on the basis, within the mandate and in a way as prescribed by this and other laws of Ukraine.
4. The central executive authority on quality assurance in education and its territorial chapters conduct institutional audit of institutions of education in accordance to this Law and unscheduled inspections as envisaged by the Law of Ukraine «On Main Principles of the State Supervision (Control) in Economic Operations.”

## **ARTICLE 70. PUBLIC SELF-GOVERNMENT AND THE STATE-PUBLIC GOVERNANCE IN EDUCATION**

1. Public self-government in education is a right of participants of the educational process, public associations, other civil society institutions, which statutory documents envisage activities in the sphere of education and/or social protection of persons with special educational needs, to deal with issues in the sphere of education both directly and through bodies of public self-government, participate in management of the institution of education, local and state affairs in the area of education regarding issues that lie within their cognizance.
2. Public self-government in education is implemented:
  - 1) at the institution of education in accordance to Article 28 of this Law;
  - 2) at the local (territorial) level;
  - 3) at the national (all-Ukrainian) level.
3. Bodies of public self-government in the sphere of education are created:

at the institution of education – by initiative of educational process participants;

at the local (territorial) level – by initiative of physical persons and/or public associations, other civil society institutions, which statutory documents envisage activities in the sphere of education and/or social protection of persons with special educational needs in accordance to the legislation;

at the national (all-Ukrainian) level – by initiative of public associations, other civil society institutions, which statutory documents envisage activities in the sphere of education and/or social protection of persons with special educational needs in accordance to the legislation.

Bodies of public self-government in the sphere of education are:

bodies of public self-government of the institution of education;

conferences (forums, congresses) of educational process participants, institutions of education, their associations that are convened at the territory of the respective settlement, amalgamated territorial community, district, oblast, the Autonomous Republic of Crimea, the State;

the All-Ukrainian congress of educational process participants and their associations, which is convened according to the procedure approved by the central executive authority in the sphere of education and science.

The All-Ukrainian congress of educational process participants and their associations approves the strategy of development of education of Ukraine for the respective period and addresses other issues envisaged by special laws.

4. Bodies of public self-government have rights (powers) stated by special laws and/or statutory documents of the institutions of education, and may exercise other legal rights.

5. The state-public governance in education is cooperation of the authorities, bodies of local self-government with public associations, other institutions of civil society with a goal to make effective managerial decisions and meet social interests in the sphere of education.

6. To ensure state-public governance in education, representative public associations and other civil society institutes may be organized, which will represent, inter alia:

pedagogical, academic, scientific workers;

education seekers;

parents;

institutions of education;

employers;

associations of those categories of individuals.

7. Bodies of state-public governance in education are established by a decision of the central executive authority in education and science, other authorities, bodies of local self-government in the form of workgroups, advisory, public, expert and other bodies.

Bodies of state-public governance in education have powers envisaged by documents about their establishments.

8. Public self-government and state-public management in education are performed on the principles of:

priority of human and civil rights and freedoms;

the rule of law;

mutual respect and partnership;

representation of bodies of public self-government, public associations and other civil society institutions and legal capacity of their representatives;

obligatoriness of consideration of proposals of the parties;

priority of coordination procedures;

transparency, openness and publicity;

obligatoriness of agreements achieved;

mutual responsibility of parties.

## **ARTICLE 71. PUBLIC SUPERVISION (CONTROL) IN EDUCATION**

1. Public supervision (control) in the system of education is performed by public supervision (control) agents – public associations and other civil society institutions whose statutory documents envisage activities in the area of education and/or social protection of persons with disabilities, professional associations of educational and academic workers, associations of education seekers, associations

of parents' committees and bodies, to which they delegate their representatives.

2. Public supervision (control) agents are entitled to:

1) initiate researches in the area of education, participate in such studies and publish their results;

2) conduct monitoring and publish its results, in particular regarding:

quality of learning outcomes , including monitoring of the state final assessments, exams and other forms of learning outcomes evaluations;

quality of textbook and other educational materials;

distribution of educational funding and intended use of funds from the state and local budgets and other legal sources;

3) take part in the public debate, public consultations and perform public expertise, including that of textbooks (their drafts), in accordance to the legislation;

4) perform other measures in the area of education in accordance to the –legislation and exercise other legal rights.

3. Public supervision (control) may take place at the institution of education solely on the permission of the head of the institution of education, except for cases stipulated by the legislation.

## ARTICLE 72. EDUCATIONAL STATISTICS

1. Educational statistics includes:

statistical data of the central executive authority in statistics about the educational system and labour market;

statistical data received by means of processing depersonalized information about education seekers;

statistical information obtained by results of monitoring studies of educational quality;

statistical values that reflect the status of the educational system.

2. The central executive authority in statistics collects raw statistical data in the area of education and processes it. A list of indicators, collection procedure and processing methods of statistical information in the sphere of education are agreed with the central executive authority in education and science.

3. Depersonalized statistical data are posted in the Internet for free access in the format convenient for copying and processing.

### **Article 73. The institute of education ombudsman**

1. To ensure proper conditions for implementation of the right to education, education ombudsman functions in the system of education. Education ombudsman is guided in his / her activities by the Constitution of Ukraine and Laws of Ukraine, as well as a regulation on education ombudsman adopted by the Cabinet of Ministers of Ukraine.

2. Education ombudsman is an official who is charged by the Cabinet of Ministers of Ukraine with the duties regarding the protection of rights in the sphere of education.

3. Education ombudsman is appointed for the position by the Cabinet of Ministers of Ukraine for the term of five years without the right of re-appointment.

4. Education ombudsman in accordance with his / her duties has the right:

to consider complaints and review (check) facts presented in the complaints submitted by education seekers, their parents, legal representatives, as well as educational, academic and scientific workers;

to obtain from institutions of education and education governance bodies information necessary to perform his / her functions, including information of limited access;

following the results of undertaken reviews (checks), to take decisions on the justification or non-justification of a complaint and on this basis to provide recommendations to institutions of education and education governance bodies, to inform law enforcement bodies on the revealed facts of the violation of the law;

without obstacles, in accordance with due procedure to visit state authorities, bodies of local self-government, institutions of education of all levels regardless of ownership status, as well as take part in accordance with due procedure in the sessions of state authorities within its competences;

to address state authorities, law enforcement bodies regarding the revealed facts of the violation of the right to education and education legislation;

to provide consultations to education seekers, their parents, legal representatives, as well as persons who teach;

to present the interests of a person in court.

**Part IX. EDUCATIONAL INFRASTRUCTURE****ARTICLE 74. THE UNIFIED STATE ELECTRONIC DATABASE ON EDUCATION**

1. The Unified State Electronic Database on Education is an automated system with functions of collection, verification, processing, storage and protection of information about the system of education, which operates in the system of education.
2. The mandatory components of the Unified State Electronic Database on Education is the Registry of Educational Agents, Registry of Documents about Education, Registry of External Independent Assessment Certificates, and Registry of Student's (Pupil's) Identification Cards. A list and scope of information contained in the registries, and a procedure of their maintenance, are established by the central executive authority in education and science.
3. All information contained in the Unified State Electronic Database on Education, except for personal data and restricted information, is accessible in the open data format, including based on the needs of persons with visual impairments. An individual enjoys full access to all information about this individual which is stored in the Unified State Electronic Database on Education.
4. Free and open access to information contained in the Unified State Electronic Database on Education is exercised through the official web site of the central executive authority in education and science.
5. The owner of the Unified State Electronic Database on Education is the central executive authority in education and science.
6. The regulations about the Unified State Electronic Database on Education is approved by the central executive authority in education and science.

**ARTICLE 75. THE SCIENTIFIC AND METHODOLOGICAL SUPPORT TO EDUCATION**

1. The scientific and methodological support to education is performed by the central executive authority in education and science, the National Academy of Sciences of Ukraine, national special academies of sciences of Ukraine, educational quality assurance bodies, central executive authorities responsible for institutions of education, academic, industry research institutes, institutions of education,

other scientific and methodological institutions in cooperation with respective businesses, creative unions, associations, societies, public associations, including professional organizations (professional associations), employer associations, independent assessment and quality assurance institutions, which can:

develop proposals regarding guiding principles of educational policy, forecasts, information and analytical materials, recommendations regarding humanitarian development of the state and improvement of the educational sphere;

take part in scientific and methodological support for educational quality assessment and monitoring, in particular, under international programmes;

conduct sociological surveys of perception of the educational policy in the society;

organize publication of textbooks (manuals), including electronic ones;

perform other functions envisaged by the legislation and their statutory documents.

2. The National Academy of Educational Sciences of Ukraine is a self-governing scientific organization in the area of education, based on the state ownership, which:

1) conducts fundamental and applied scientific researches and innovations in education, pedagogy and psychology, participates in discussion of scientific grounds of development of education based on scientific, technical and socio-economic progress of the society, national and cultural traditions, and on the world trends of development and international experience;

2) provides scientific, methodological, consultative support to respective authorities with a goal to fulfil tasks set by the state priorities in education;

3) involved into the independent scientific expertise of:

draft forecast and programme documents, other strategic planning documents, draft laws, state decisions and programmes, educational innovations, provides conclusions that are mandatory for consideration by authorities and bodies of local self-government when making respective decisions;

educational and methodological literature (except for literature for higher education), based on outcomes of such expertise, provides conclusions (recommendations) regarding expediency of its using in the educational process, which are mandatory for consideration by authorities and bodies of local self-government when making respective decisions;

4) takes part in development of teaching methods, educational standards, model educational programmes, textbooks;

- 5) performs development and experimental verification of innovative models of education;
  - 6) conducts organizational, coordination and scientific and methodological measures to support social pedagogy and practical psychology in education;
  - 7) performs psychological expertise of educational standards, model educational programmes, textbooks, methodological materials, etc.;
  - 8) conducts educational activities on training and advanced training of executive, pedagogic and academic staff related with implementation of educational policy;
  - 9) performs other activities related with scientific and methodological provision of education stipulated by the legislation and statutory documents of the National Academy of Educational Sciences of Ukraine.
3. Special aspects of development and approval of scientific and methodological support to education for separate levels may be defined by special laws.
4. Scientific and methodological support to education performed on expense of the state and/or local budgets, as well as conclusions of the independent scientific expertise are published in open access on the web site of the implementer.
5. The central executive authority in education and science ensures creation and operation of the special information resource in the Internet, where all free electronic versions of textbooks or electronic textbooks for obtaining complete general secondary education are posted in their entirety in open access.

## **ARTICLE 76. THE PSYCHOLOGICAL SERVICE AND SOCIO-PEDAGOGICAL PATRONAGE IN THE SYSTEM OF EDUCATION**

1. The psychological service, regulations about which is approved by the central executive authority in education and science, operates in the system of education. Psychological support to the educational process at institutions of education is performed by psychologists-practitioners.
2. The socio-pedagogical patronage in the system of education contributes to cooperation between the institutions of education, the family and the society in upbringing education seekers, their adaptation to the social environment, provides consultative assistance to the parents. The socio-pedagogical patronage is performed by social pedagogues.
3. By their status, psychologists-practitioners and social pedagogues of institutions of education belong to the educational workers.



## **ARTICLE 77. ORGANIZATION OF MEDICAL SERVICES IN THE SYSTEM OF EDUCATION**

1. Organization of the medical services in the system of education is provided in accordance to sources of funding of institutions of education of each level of education stipulated by the legislation, is performed by institutions of the central executive authority that performs formation and supports implementation of the public policy in health care, and by other health care institutions as prescribed by the legislation.

## **PART X. FINANCIAL AND ECONOMIC RELATIONS IN EDUCATION**

### **ARTICLE 78. FUNDING OF THE SYSTEM OF EDUCATION**

1. The state provides assignments for education in the amount of at least 7 percent of the gross domestic product from funds of the state and local budgets and other legal sources of funding.
2. Funding of institutions, establishments and organizations of the system of education is performed on expense of respective budgets as well as other legal sources not forbidden by law.
3. The state and communal institutions of education are entitled to provide educational and other services according to the list approved by the Cabinet of Ministers of Ukraine. Founders of respective institutions of education have a right to approve lists of commercial educational and other services that have not been included into the list approved by the Cabinet of Ministers of Ukraine.
4. The State creates conditions for enduring funding for obtaining education by individuals in the amount necessary to achieve learning outcomes envisaged by educational standards, and for fulfilling licensing conditions by institutions of education of the state and communal ownership.
5. Funding of preschool and out-of-school education is conducted from funds of the state and/or local budgets, as well as from other legal sources. The state may contribute to development of preschool and out-of-school education via allocating respective educational subventions.

6. Obtaining complete general secondary education is funded from the state budget, including by means of providing educational subventions to local budgets, from the local budget and other legal sources.

A procedure of distribution of the educational subvention among the local budgets is established according to the formula based on the number of education seekers who study in the respective territory, taking into account the following factors:

a level of education;

a category of the territory where the institution of education is located;

presence of education seekers with special educational needs;

special aspects of study of education seekers from ethnic minorities;

the necessity of transportation of education seekers to an institution of education and back;

other factors.

7. Funding of the vocational education and training and pre-tertiary vocational education is performed from the state budget, including via provision of respective educational subventions, from local budgets and other legal sources. Expenditures covered on expense of respective educational subventions are specified by a special law.

8. Funding of higher and post-graduate education is performed from the state and local budgets and other legal sources.

Advanced training of educational and academic workers in the amount specified by the legislation is covered from the state and local budgets.

The amount of funds additionally allocated from the state budget for advanced training of educational and academic workers of state institutions of education cannot be less than 2 percent of the salary fund of those workers.

The amount of funds additionally allocated from the state budget for advanced training of educational workers whose salary is paid on expense of the educational subvention, cannot be less than 2 percent of the respective educational subvention. The amount of funds that are allocated additionally from local budgets for advanced training of other educational and academic workers of communal institutions of education cannot be less than 2 percent of the remuneration fund of those workers.

9. The state provides funding of education of persons with special educational needs from the state and local budgets by means of transferring the amount of funds reserved for those persons to the institution of education selected by the person with special educational needs and their parents.

10. The state funds obtaining by a person of the general secondary education at the private or corporate institution of education which has a license to perform educational activities in the area of general secondary education, from the state and local budgets, by means of transferring dedicated funds in the amount of the financial standard (with due consideration to correcting coefficients) of the fiscal provision of one pupil obtaining complete general secondary education, and according to the procedure established by the Cabinet of Ministers of Ukraine.

11. Special aspects of funding education of different levels are specified by special laws.

12. Institutions of education are entitled to receive funding in different forms and from different sources that are not prohibited by the law. State and communal institutions of education are entitled to deposit their revenues at current accounts, and deposit temporarily surplus funds on deposits in the state-sector banks, and to manage revenue from those funds independently with a goal of implementing activities envisaged by the statutory documents.

## **ARTICLE 79. FINANCIAL AND ECONOMIC ACTIVITIES OF INSTITUTIONS OF EDUCATION, EDUCATIONAL ESTABLISHMENTS, ORGANIZATIONS AND ENTERPRISES OF THE SYSTEM OF EDUCATION**

1. Sources of funding of educational agents in accordance to the legislation may be:

the state budget;

local budgets;

payment for provision of educational and other services according to agreements concluded;

payment for scientific and research works (services) and other works performed on commission of enterprises, establishments, organizations, other legal entities and physical persons;

incomes from sales of products of production-and-training workshops, enterprises, shops and farms, from the rent of premises, buildings, and equipment;

grants from Ukrainian and international organizations;

dividends from securities, interests on deposits and depositing special funds on the current accounts of the state-sector banks;

voluntary contributions in the form of money, tangible and intangible assets, received from enterprises, establishments, organizations, physical persons;

other legal sources.

2. Funding of educational activities from the state budget may be performed by means of provision of educational subventions, which, according to the Budgetary Code of Ukraine and the Law of Ukraine about the State Budget for a respective year may be directed at:

obtaining complete general secondary education;

obtaining vocational education and training ;

obtaining education at other levels of education;

obtaining specialized education;

obtaining out-of-school education;

obtaining education by persons with special educational needs;

advanced training of educational workers;

other purposes.

3. Funding of additional psychological and educational, as well as correction and development services, as well as purchase of special means of correction of psychophysical development specified by the individual development programme of the person with special educational needs, is performed on expense of the subvention from the state budget to the local budgets for provision of assistance to persons with special educational needs, funds of local budgets, and other legal sources.

4. Payment for study, training, retraining, advanced training of education seekers, for provision of additional educational services is established by the educational agents in hryvnas. For education seekers who are not residents of Ukraine payment may be established in the foreign currency.

5. The size and terms of payment for study, training, retraining, advanced training or provision of additional educational services is established by the agreement.

Payment may be made for the whole period of study, training, retraining, advanced training, provision of additional educational services in full as a lump sum or in installation – on a monthly, semester or annual basis.

The institution of education may change payment for education (in a part of the balance of the unpaid amount) in a manner stipulated by the agreement, no more than once a year and no more the officially established inflation level for the previous calendar year.

The agreement is established between the institution of education and the education seeker (their legal representatives) and/or the legal entity or legal person that makes the payment.

Other issues of payment for study, training, retraining, advanced training, provision of additional educational services at institutions of education are governed by the law.

6. Budgetary allocations for education, including funds of educational subventions, extrabudgetary funds and funds received by the institution of education as payment for study, training, retraining, advanced training, provision of additional educational services, cannot be turned into revenue of the state or local budgets. Those funds are directed for activities envisaged by statutory documents of the institution of education.

7. Funds, tangible and intangible assets received by educational and scientific institutions and establishments in the form of non-repayable financial assistance, other revenues, voluntary contributions of legal entities and physical persons, including those from non-residents, for performing educational, scientific, recreational, sport, cultural activities, are not considered to be revenue.

8. In case of receipt of funds from other sources, the state and industry funding of the institutions of education, enterprises, establishments, organization of the system of education are not reduced.

9. Institutions of education independently manage incomes from performing economic and other activities envisaged by their statutory documents.

## **ARTICLE 80. PROPERTY OF THE INSTITUTIONS OF EDUCATION, EDUCATIONAL ESTABLISHMENTS, ORGANIZATIONS, ENTERPRISES OF THE SYSTEM OF EDUCATION**

1. The following items belong to the property of institutions of education, educational establishments, organizations, enterprises of the system of education:

real estate and movable assets, including building, constructions, land plots, communications, equipment, vehicles, houses, etc.;

property rights, including rights of intellectual property for intellectual property objects, in particular, information systems, objects of copyright and/or related rights;

other assets as envisaged by the legislation.

Property of institutions of education, educational establishments, organizations, enterprises of the system of education belongs to them based on rights established by the legislation.

2. The procedure, conditions and forms of obtaining land titles by institutions of education are established by the Land Code of Ukraine.

3. Main funds, current assets and other property of state and communal institutions of education cannot be seized, except for cases specified by the laws of Ukraine.

4. Objects and property of state and communal institutions of education cannot be privatized or used for purposes other than educational.

5. Money obtained from the use of vacated premises of liquidated state and communal institutions of education are used for educational needs only.

Institutions of education of all forms of property registered as appropriate have equal rights to use real estate of the state or communal ownership which is rented.

All funds received from the rent of real property of the state or communal institutions of education are used exclusively for needs of this institution of education.

6. Property of the institution of education that is not used in educational process, may serve as a contribution to joint activities or be used in accordance with Article 81 of this Law.

## **ARTICLE 81. THE PUBLIC-PRIVATE PARTNERSHIP IN EDUCATION AND SCIENCE**

1. Legal grounds for the public-private partnership in education and science are determined by the Constitution of Ukraine, the Civil Code of Ukraine, Commercial Code of Ukraine, the Law of Ukraine "On Public-Private Partnership", this Law, other laws of Ukraine and international treaties of Ukraine ratified by the Verkhovna Rada of Ukraine.

2. The public-private partnership in education and science is implemented based on agreements between the government authorities and private partners, that are convened in accordance with due procedure identified by the Cabinet of Ministers of Ukraine.

3. The public-private partnership in education and science may foresee:

joint funding of institutions of education, as well as legal entities and physical persons implementing educational activities;

creation and/or joint funding and development of practical training facilities;

creation and/or joint funding and maintenance of innovative enterprises (innovative centre, technological park, technopolis, innovative business incubator etc.) at existing institutions of education;

development and advancement of modern education, learning technologies;

vocational-practical training;

implementation of joint funding programmes for professional training etc.;

implementing measures regrading social protection and improvement of housing of educational system workers and education seekers;

4. Funding of the public-private partnership in education may be performed on expense of:

private partner funds;

funds loaned as appropriate;

funds of the state and local budgets;

other legal sources.

5. The public-private partnership regarding objects of the state and communal ownership is performed without changes in the form of ownership of those objects.

6. Assignment to private partners into management as rent, concession, operational management etc. of movable and immovable state and/or municipal property, including land plots, is forbidden.

Movable and immovable state and/or municipal property, including land plots, assigned into management to a private partner cannot be used as a collateral, penalty or repayment of debt, and the above property cannot be subject to deeds resulting in the secession of state or municipal ownership on the above objects.

## PART XI. INTERNATIONAL COOPERATION

### ARTICLE 82. INTERNATIONAL COOPERATION IN EDUCATION

1. Institutions of education, scientific, research and production establishments of the system of education, educational authorities have a right to conclude agreements about cooperation, establish direct links with institutions of education, enterprises, establishments, organization, scientific establishments of the educational system of foreign countries, international enterprises, establishments, organizations, foundations, etc.
2. Institutions of education and scientific, research and development establishments, governmental authorities and bodies of local self-government have a right to implement international economic activities in accordance with the legislation based on agreements concluded by them with foreign legal entities, physical persons, have their own bank account in foreign currency, conduct joint activities, including via establishing joint enterprises (establishments).
3. The central executive authority in education and science performs work related with establishing equivalency of certificates and diplomas (credentials assessment), international recognition of educational courses, qualifications, academic titles and scientific degrees, except for cases envisaged by special laws.
4. The State supports international cooperation of institutions of education and educational authorities, provides them with respective foreign currency allocations and grants a remission of taxation and customs duty for educational, scientific and production equipment and accessories that arrives for them from abroad for educational and scientific purposes.
5. Currency, material earnings from performing international economic activities are used by the institutions of education, scientific, research and production establishments of the system of education to provide their own activities specified by the statutory documents in accordance with the legislation.
6. The institutions of education, educational, academic and scientific workers, education seekers may participate in implementation of international projects and programmes.
7. The State contributes to the international cooperation in education via:



implementing measures aimed at development and consolidation of international cooperation;

creation of appropriate legal, financial and economic conditions for international cooperation, in particular, making respective allocations in the state budget and funding membership fees in international organizations, business trips abroad for participants of international programmes and projects in accordance with terms of respective agreements;

support to raising funds from international funds, establishments, civil society organizations, etc., to implement scientific, educational and other programmes and projects;

popularization and coordination of activities related with international cooperation, creation of respective information centres, including abroad;

provision of consultative support on international cooperation in education and science;

implementation of other activities in accordance with the law.

## **ARTICLE 83. PARTICIPATION IN INTERNATIONAL STUDIES OF QUALITY IN EDUCATION**

1. The state, with a goal of independent assessment of quality in education, ensures participation in international comparative studies of quality in education.
2. Decisions about participation in international comparative studies of quality in education are made by the Cabinet of Ministers of Ukraine within respective budgetary allocations.
3. Results of international comparative studies of quality in education must be published and are taken into account by the state authorities during formation of the public policy in education.

## **ARTICLE 84. INTERNATIONAL ACADEMIC MOBILITY**

1. The State creates conditions for:

realization of rights of educational process participants for academic mobility;

development of joint educational and scientific programmes with foreign institutions of education, scientific establishments, organizations;

involvement of foreign citizens into study and teaching at institutions of education of Ukraine.

2. The State promotes participation of education seekers, pedagogical academic and scientific workers in the bilateral and multilateral international exchange programmes.

## **PART XII. CONCLUDING AND TRANSITIONAL PROVISIONS**

This Law enters into force on the day following the day of its publication, except for:

Article 38 and Article 59, paragraph 2, subparagraph 3 of this Law that enter into force on January 1, 2018;

Article 61, paragraph 2, subparagraphs 1 and 3 of this Law that enter into force on January 1, 2018 and are implemented in accordance with item 6, sub-item 1 of this Part;

Article 43, paragraph 3 of the Law of Ukraine "On General Secondary Education" (in the wording of this Law) that enters into force on January 1, 2019;

Paragraph 2, item 4, sub-item 5 of this Part that enters into force from January 1, 2030.

2. Acknowledge as invalid:

The Law of Ukraine "On Education" (Bulletin of the Supreme Council of URSR, 1991, No. 34, Art. 451 with further amendments);

Regulation of Verkhovna Rada of Ukrainian SSR "On the Order of Enactment of the Law of Ukrainian SSR "On Education" (Bulletin of the Supreme Council of URSR, 1991, No. 34, Art. 452; Bulletin of the Supreme Council of URSR, 1992, No. 12, Art.168).

3. Establish that:

- 1) until bringing the legislation and statutory documents of institutions of education in line with this Law, terms “educational institution” and “institution of learning” are identical, and all authorities and educational institutions are governed by all provisions of this Law regarding institutions of education and by provisions of the legislation regarding educational institutions so far as they are not inconsistent with this Law;
- 2) the term “educational institution” used in this and special Laws is consistent with the term “ institution of education” used in the Constitution of Ukraine;
- 3) study of pupils according to programmes of the twelve-year complete general secondary school shall start on:  
for primary education – on September 1, 2018;  
for basic secondary school – on September 1, 2022;  
for field-specific secondary school – on September 1, 2027;
- 4) since on September 1, 2027, a term of obtaining field-specific secondary education by all education seekers is three years. Starting from this period, lyceums function as independent legal entities, except for institutions of specialized education. Until 2027, introduction of educational programmes of the three-year field-specific school is possible by a decision of the central executive authority in education and science, and subject to availability of the respective standard of field-specific secondary education and a respective model educational programme;
- 5) until 2027, provisions of this Law regarding field-specific secondary education are in force regarding institutions of education providing complete general secondary education in the framework of the two-year high school in accordance with the legislation;
- 6) state and communal institutions of education of the system of preschool and general secondary education acting on the day of entry into force by this Law receive a license without being subject to the licensing procedure. Institutions of education of all forms of ownership that are created after entry into force by this Law shall be licensed in accordance with the general procedure;
- 7) existing boarding schools for orphaned children and children deprived of parental care, boarding schools for children who need social assistance, shall be transformed, until December 31, 2021, into children’s homes and passed to the control of the central executive authority in social protection, or into institutions of pre-school, general secondary education, other institutions of education or social protection institutions according to the decision of oblast councils, Supreme Council of the Autonomous Republic of Crimea, City Councils of Kyiv and Sevastopol;
- 8) institutions of higher education of accreditation levels 1 and 2, which carry out training under educational programmes of higher education and grant a degree of junior specialist are funded according to the rules in force on the day of adoption of this Law;

- 9) institutions of preschool and out-of-school education in settlements which do not have their own budget are funded from the district budget until the process of amalgamation of territorial communities is concluded;
- 10) individuals who obtained secondary special education prior to entry into force of the Law of Ukraine “On Education” of May 23, 1991 No. 1060-XII, preserve their existing professional rights after entry into force by this Law;
- 11) individuals who, on the day of entry into force by this Law, hold positions of educational workers, preserve their existing professional rights;
- 12) the amount of salary of educational and academic workers cannot be reduced after entry into force by this Law, if those workers continue to hold respective positions, perform respective duties and preserve respective qualification category;
- 13) re-issue of statutory documents by institutions of education with a goal to bring them in line with this Law is conducted within five years from the day of entry into force by the Law;
- 14) on the day this Law enters into force, the powers of the members of the National Agency for Quality Assurance in Higher Education delegated by the National Academy of Sciences of Ukraine, national sector academy of sciences, elected by congresses from the representatives of higher education institutions of Ukraine of state, municipal and private ownership, joint representative body of all-Ukrainian association of employers’ organizations, congress of representatives of students’ self-governments from higher education institutions from persons who seek higher education, are terminated;
- 15) until approval of professional standards of educational workers envisaged in Article 58, items 2 and 5 of this Law, qualification requirements to educational workers are specified by the Procedure of Awarding the Professional Qualification of the Educational worker approved by the central executive authority in education and science upon agreement with central executive authorities in charge of respective institutions of education;
- 16) the educational activities at the educational and qualification level of the junior specialist initiated prior to entry into force by this Law is continued within the period of study according to the respective programme with awarding a junior specialist diploma. The last admission for obtaining higher education at the educational and qualification level of junior specialist shall be performed in 2019.
- Individuals who started their study by a programme for junior specialist’s training before 2019 inclusive, in case of successful completion, receive a junior specialist diploma, which is considered equivalent to the junior bachelor diploma. Individuals who will begin their study by a programme of junior specialist’s training starting from 2020, in case of successful completion of their study, shall receive a junior specialist diploma which attests to obtaining a qualification of pre-tertiary education.
- 17) after entry into force by this Law, Article 26, paragraph 2 of the Law of Ukraine “On General Secondary Education” is applied to positions that became vacant according to the procedure stipulated by the labour legislation.

18) Persons who belong to indigenous people, national minorities of Ukraine and entered into general secondary education before September 1, 2018, until September 1, 2020 continue to obtain the above education in accordance with rules effective before this Law came into force, with gradual increase of the number of subjects that are taught in the Ukrainian language.

4. Introduce amendments to the following laws and regulations of Ukraine:

**1) Article 92, paragraph 2, subparagraph «r» of the Land Code of Ukraine** (The Bulletin of the Verkhovna Rada of Ukraine, 2002, No. 3-4, p. 27) shall be revised to read:

“r) institutions of education, regardless of their form of ownership”;

**2) in the Law of Ukraine “On General Secondary Education”** (The Bulletin of the Verkhovna Rada of Ukraine, 1999, No. 28, p. 230 with further amendments):

Article 3, paragraph 3 shall be revised to read:

“The general secondary education is aimed at achieving comprehensive development of the personality by means of study, upbringing and development based on the general human values and principles specified by the Law of Ukraine «On Education”;

In Article 6, paragraph 3, words “of the State Standard” shall be replaced with words “of the state standards”;

Articles 8, 9, 10, 11, 14 and 15 shall be revised to read:

«Article 8. The institution of general secondary education

1. The institution of general secondary education is an institution of education whose main type of activity is educational activity in the area of general secondary education.

The institution of education carries out its activity at a certain level of the general secondary education subject to availability of the respective license issued to it according to the procedure prescribed by the legislation.

2. The institution of general secondary education acts based on the statute approved by its founder or the body authorized by the founder.

3. Institutions of general secondary education may create, as part of their structure, classes (groups) with the evening (extramural), distance form of study, classes (groups) with enhanced study of individual subjects, special and inclusive classes for study of children with special educational needs.

Institutions of general secondary education, regardless of subordination, types and form of ownership, may have in their composition structural units, including branches, boarding school with partial or full board, including on expense of the fonder.

To carry out statutory activities, the institution of general secondary education may, on a contractual basis, join other legal entities to create educational, academic, scientific, training and production alliances where every participant maintains its legal entity status.

The institution of general secondary education may be a part of the educational districts and have a status of the consolidated one. Regulations about the educational district and consolidated institution of general secondary education are approved by the Cabinet of Ministers of Ukraine.

#### Article 9. Types of institutions of education that provide general secondary education

##### 1. General secondary education is provided by:

primary school – a level I institution of education (or a structural unit of another institution of education) that provides primary education;

gymnasium – a level II secondary institution of education (or a structural unit of another institution of education) that provides basic secondary education;

lyceum – a level III secondary institution of education (or a structural unit of another institution of education) that provides field-specific secondary education

The primary school, the gymnasium and the lyceum may function as separate legal entities or as structural unit of another institution of education (in particular, of the general secondary educational institution of levels I-II, II-III or I-III). Lyceums operate, as a rule, as separate legal entities.

An institution of general secondary education that implements educational programmes at different levels of secondary education has a type of the highest educational level at which the educational activities are carried out.

##### 2. Complete general secondary education may be obtained also at the following institutions:

special school – an institution of general secondary education for children that need correction in their physical or mental development;

sanatorium school – an institution of general secondary education with respective specialization with children who need long-term medical treatment;

social rehabilitation school – an institution of general secondary education for children who, by the court decision, need special upbringing conditions;

education and rehabilitation centre – an institution of general secondary education for children with special educational needs caused by developmental disorders.

The above institutions of education may operate at a single and at several levels of general secondary education.

Regulations about such institutions of education are approved by the Cabinet of Ministers of Ukraine.

3. Obtaining of general secondary education may also be provided by institutions of vocational education and training, pre-tertiary vocational education, higher and other education, in particular, inter-school resource centres (inter-school work training centres) that have a license to provide educational activities in the sphere of general secondary education.

Regulations about the inter-school resource centre is approved by the central executive authority in education and science.

4. In the system of specialized education, obtaining of the general secondary education is provided by:

specialized art school (boarding school) – an institution of specialized level I-III or II-III education in the field of fine arts;

boarding school (boarding school-lyceum) in the field of sports – an institution of specialized level I-III or II-III education in the field of sports (the institution with specific conditions of study);

professional college (college) in the field of sports – an institution of education in the field of sports (the institution with specific conditions of study);

professional college (college) in the field of culture or fine arts – an institution of specialized education providing professional artistic education;

military (navy) lyceum, lyceum with enhanced military and physical training – an institution of specialized level II-III or III education in the military field for children 13 years old and over;

scientific lyceum, scientific boarding school – an institution of specialized level II-III or III education in the field of science.

Regulations about specialized institutions of education shall be approved by the Cabinet of Ministers of Ukraine based on submission of the central executive authorities that ensure formation and implement public policy in the respective sphere.

Article 10. The status of the institution of general secondary education

1. The institution of general secondary education is a legal entity.

The form of ownership of the institution of general secondary education is established in accordance to the legislation. Institutions of general secondary education may be established on the principles of public-private partnership (a corporate institution of general secondary education).

2. The status of the state one belongs to the institution of general secondary education established under the state ownership.

3. The status of the communal one belongs to the institution of general secondary education established under the communal ownership.

4. The status of the private one belongs to the institution of general secondary education established under the private ownership.

5. The status of the corporate one belongs to the institution of general secondary education established by several founders of different forms of ownership on the principles of public-private partnership; special aspects of its management are specified by its foundation agreement and statute, which, in particular, may stipulate issues of immovable and movable assets management.

Article 11. Creation, reorganization, liquidation and conversion of the institution of general secondary education

1. A decision about creation, reorganization, liquidation or conversion (in particular, change of type) of the institution of general secondary education regardless of its subordination, type and form of ownership, is made by its founder(s).

A founder of the institution of general secondary education may be a state authority on behalf of the state, a respective council on behalf of the territorial community (communities), physical person or legal entity (in particular, a religious organization whose statute (regulations) is registered as appropriate), by whose decision and on expense on whose property the institution of general secondary education has been established, or which in a different way, in accordance to the legislation, were granted rights and duties of the founder.

The institutions of general secondary education are created based on the socio-economic and demographic situation, as well as in accordance to cultural, educational, socio-economic, national and language needs of the territorial community and/or society.

In order to meet spiritual needs of the citizens, private institutions of education, in particular, established by religious organizations, whose statutes (regulations) are registered as appropriate, are entitled to define a religious focus of their educational activities.

An institution of general secondary education is established in accordance with the licensing conditions of implementing activities in the area of general secondary education.



2. In case of reorganization or liquidation of the institution of general secondary education, its founder must provide education seekers with a possibility to continue gaining general secondary education.
3. Institutions of general secondary education may be transferred by founders into the communal or state property in accordance to the legislation.

#### Article 14. The number of pupils per class at the institutions of general secondary education

1. A number of students per class at the institutions of general secondary education should not be more than 30.
2. A number of students per class at the institutions of general secondary education located in the rural area is defined by the demographic situation, but should not be less than 5 individuals. If the number of pupils in the class is smaller, education is offered in the individual or other form of study.

The institution of education may provide gaining of primary education by children (regardless of their number) both of the same or of the different age, who may form both one class (group), and different classes (groups). In this case the educational process may be organized both by one teacher, and by several teachers, or in any other form which will be most convenient and expedient to ensure gaining primary education by children in accordance to the educational standard.

3. A procedure of splitting classes into groups when studying individual subjects is established by the central executive authority that ensures formation of the public policy in education upon agreement with the central executive authority ensuring formation of the state fiscal policy.
4. The cut-off number of pupils at institutions of general secondary education for children with special educational needs is specified in regulations about such institutions of education.
5. Upon written requests from parents, other legal representatives of the pupils and in accordance with the decision of the founder, extended daycare groups funded on expense of the founder and other funds not prohibited by the law, operate at the institutions of general secondary education.

A procedure for creation of the extended daycare groups at the state and communal institutions of general secondary education is defined by the central executive authority that ensures formation and implements public policy in the sphere of education.

#### Article 15. The educational programme

1. The educational programme is an integrated complex of educational components planned and organized by the institution of general secondary education with a goal of achieving by the pupils of learning outcomes specified by the State Standard of the General Secondary Education.

The respective State Standard of the General Secondary Education is a basis for development of the educational programme.

2. The educational programme should contain:

a total study load and expected study outcomes of education seekers;

requirements to individuals that can start their study under the programme;

a list, content, duration and links between educational fields and/or subjects, disciplines, etc., a logical sequence of their study;

organizational forms of the educational process;

description and instruments of the system of internal educational quality assurance;

other educational components (by decision of the institution of general secondary education).

3. The educational programme is endorsed by the pedagogical council of the institution of education and approved by its head.

4. The educational programme should envisage educational components for selection by education seekers.

5. Educational programmes developed based on model educational programmes do not require any separate approval by the central body of quality assurance in education.

6. An educational programme may be developed for a single and for several levels of education (a comprehensive educational programme).

7. Each educational programme should envisage achievement by education seekers of learning outcomes (competences) specified by a respective State Standard of General Secondary Education.

8. Based on the educational programme, the institution of education forms and approves the educational plan that specifies organization of the educational process”;

Article 16, paragraphs 3-5 revise to read as follows:

“3. The structure of the academic year (by quarters, half-years, terms), duration of the academic week, day, lessons, rest between them, other organizational forms of the educational process are established by the institution of general secondary education within time limits envisaged by the educational programme.

Organization of the educational process should not result in overburdening of students and should ensure safe and non-threatening conditions for obtaining education.

4. The work pattern of the institution of general secondary education is established by that institution in accordance to the rules and regulations.

5. Duration of lessons at institutions of education is: at grade 1 – 35 minutes, at grades 2 to 4 – 40 minutes, at grades 5 to 11 – 45 minutes. The institution may choose other organizational forms of educational process, different from the lesson.

A difference in educational hours of grades 1 to 4 must be registered and compensated by delivering additional, individual lessons and consultations with students.”

in Article 18:

paragraph 2 after words “based on the request” shall be amended with words “of the copy of the birth certificate of the child”;

paragraph 3 should be revised to read as follows:

“3. A procedure of admission, expulsion and transfer of pupils to state and communal institutions of education for obtaining complete general secondary education is approved by the central executive authority that ensures formation and implements public policy in education.

Procedures of admission, expulsion and transfer of pupils to state and communal specialized institutions of education are approved by central executive authorities that ensure formation and implement public policy in the respective sphere.

A procedure of admission, expulsion and transfer of pupils to private and corporate institutions of education for obtaining complete general secondary education is approved by the founder(s);

omit paragraph 6;

paragraph 7 revise to read as follows:

“7. It is allowed to perform admission of pupils to lyceums, private institutions of general secondary education and specialized institutions of education on a competitive basis.

Admission of pupils to other institutions of general secondary education on a competitive basis is permitted only in cases if a number of applications submitted for a respective level of general secondary education exceeds capacity of this institution. A priority in admission to primary school belongs to children leaving at the serviced territory of this school”;

Article 20, part 2, after the word “stipulated”, be amended with words “by the Law of Ukraine “On Education”;

Article 24 revise to read as follows:

“Article 24. Educational workers

1. A educational worker should be an individual with high moral qualities, who has a respective pedagogical education and/or professional qualification of an educational worker, an appropriate level of professional training, performs pedagogical activities, ensures performance and quality of their work, whose physical and psychological health allows to perform professional duties at institutions of the system of general secondary education. A list of position of educational workers of the system of general secondary education is established by the Cabinet of Ministers of Ukraine.

2. A position of the head of the institution of general secondary education, regardless of its subordination, type and form of ownership, should be held by an individual who is a citizen of Ukraine, has higher education at least at master's level and a length of pedagogical service of at least three years, as well as organizational skills, and whose physical and mental status does not prevent this individual from performing their professional duties”;

in Article 25, paragraph 1:

in subparagraph 10, omit the word “comprehensive”;

subparagraph 12 include to read as follows:

“Distribution of pedagogical load at the institution of general secondary education is approved by its head”;

Article 26, paragraph 3 revise to read as follows:

“2. The head of the institution of general secondary education is appointed to the position and dismissed from the position by a decision of the founder(s) of the institution or of a body authorized by them.

A head of the state and communal institution of general secondary education is appointed to a position by outcomes of the competitive selection for a period of six years (for a period of two years for a person who is appointed to a position for the first time) based on a decision of the selection board comprised of representatives of the founder(s), labour collective, public association of parents of pupils (boarders) of the institution of general secondary education of the respective administrative and territorial unit. Representatives of public associations and experts on general secondary education may be involved into activity of the commission with a consultative vote.

Regulations about the competition to the position of the state and communal institution of general secondary education is developed and approved by the founder based on the model regulations approved by the central executive authority in education and science.

The same individual cannot be a head of the respective institution of general secondary education for more than two consecutive terms (the first term includes a two year period for a head of an institution of general secondary education appointed to the position for the first time). After expiry of the second term in the position, the individual can participate in a competition for a position of a head at a different institution of general secondary education or continue working in this institution in a different position.

The deputy head, educational and other workers of the institution of general secondary education are appointed to and dismissed from their positions by the head of this institution. The head of the institution of general secondary education is entitled to announce a competition for a vacancy.

In case the founder of the institution of general secondary education receives a justified submission from the board of trustees or the body of self-government of the institution of general secondary education regarding dismissal of the head of this institution, the founder is obliged to consider it and make a justified decision within the shortest possible time”;

In Article 27:

the title revise to read as follows:

“Article 27. Assessment and advanced training of educational workers”;

amend the article with paragraph 3 that reads as follows:

“3. Annual advanced training of educational workers of institutions of general secondary education is carried out in accordance with the Law of Ukraine “On Education”. A total amount of academic hours for advanced training of a educational worker within five years cannot be less than 150 hours, of which certain amount of hours must be allocated for improving knowledge, skills and expertise in the part of work with children with special educational needs”;

in Article 29:

omit paragraph 3;

amend with paragraph 4 that reads as follows:

“4. Other rights and responsibilities of parents and persons replacing them are defined by the Law of Ukraine “On Education”;

in Article 30:

in paragraph 1, words “levels of primary, middle and complete” replace with words “at the respective level”;

paragraph 2 revise to read as follows:

“2. Compliance to the State Standards of primary, middle and field-specific secondary education is mandatory for institutions of education that provide obtaining of respective education”;

Articles 31-33 revise to read as follows:

“Article 31. Development and approval of the State Standards of general secondary education

1. State Standards of general secondary education are developed by the central executive authority in educational and science, approved by the Cabinet of Ministers of Ukraine and revisited at least once every ten years.

A change in the content and scope of the State Standards of general secondary education by other bodies is not permitted.

2. The methodological support to implementation of the State Standards of general secondary education is performed by the central executive authority that ensures formation and implements public policy in education.

The methodological support to implementation of the standards of specialized education is performed by central executive authorities which ensure formation and implement public policy in respective spheres.

3. The National Academy of Sciences of Ukraine, the National Academy of Educational Sciences of Ukraine, bodies of quality assurance in education, central executive authorities supervising institutions of general secondary education, academic, industry research centres, institutions of education, other academic and methodological establishments, public associations, including professional organizations (professional associations), employers' associations, independent quality assessment and quality assurance organizations, other civil society institutes, experts etc., shall be involved into development of the State Standards of general secondary education.

Article 32. The content of the State Standards of general secondary education

1. The State Standards of general secondary education define:

requirements to mandatory learning outcomes and competences of the seeker of the general secondary education at the respective level;

total educational load of education seekers at the respective level of general secondary education;

forms of assessment of education seekers.

Article 33. Compliance to the State Standards of general secondary education

1. A responsibility of the institution of education that provides general secondary education is to create conditions for education seekers to achieve learning outcomes envisaged by the respective State Standard of general secondary education.
2. A procedure of achieving learning outcomes envisaged by the respective State Standard of general secondary education by education seekers is defined by the educational programme of the institution of education.
3. The State is obliged to ensure obtaining complete general secondary education at the level of State Standards of general secondary education.
4. To ensure achieving learning outcomes envisaged by the respective State Standard of general secondary education by individuals with special educational needs, a position of assistant teacher is introduced to the staff of the institution of education”;

Article 34, paragraph 5 shall be revised to read as follows:

“5. Graduates of institutions of education that provide middle and field-specific secondary education, are issued a respective certificate confirming education. Samples of certificates confirming general secondary education are approved by the central executive authority for education and science. Certificates confirming general secondary education are produced on expense of the State Budget of Ukraine”;

in Article 36:

subparagraph 3 shall be revised to read as follows:

“forecasting development of general secondary education, network of institutions of education providing general secondary education in accordance with educational needs of citizens”;

subparagraph 4 shall be omitted;

subparagraphs 5 to 8 shall be revised to read as follows:

“licensing institutions of general secondary education;

monitoring of compliance to the State Standards of general secondary education, methodological supervision and state inspection of institutions of education providing complete general secondary education regardless of their subordination, type and form of ownership;

provision of social protection, protection of life, health and protection of rights of educational workers, psychologists, librarians, other specialists that participate in the educational process, of pupils (boarders);

support to development of self-government at institutions of education providing complete general secondary education”;

Article 37, paragraph 3 shall be revised to read as follows:

“3. The Council of Ministers of the Autonomous Republic of Crimea, executive authorities and bodies of local self-government for general secondary education, within their mandate:

ensure implementation of the public policy on general secondary education in the respective territory;

perform functions of the founder of institutions of general secondary education in the respective territory;

create conditions for obtaining complete general secondary education by citizens;

create conditions for development of institutions of education of all forms of ownership;

in case of liquidation of the communal institutions of general secondary education in accordance with the procedure established by the legislation, take steps to place pupils (boarders) in other institutions of general secondary education;

organize normative, programme, material, methodological support, retraining, advanced training, assessment of educational workers;

provide educational workers with textbooks, manuals, literature on teaching methods;

promote innovative activities in the system of general secondary education;

provide social protection of educational workers, specialists that participate in the educational process, pupils (boarders);

exercise other powers in accordance with the Constitution of Ukraine, the Constitution of the Autonomous Republic of Crimea, Laws of Ukraine “On the Local Self-Government in Ukraine”, “On Education” and respective bylaws”;

in Article 38:

paragraph 5 shall be revised to read as follows:

“forms educational programme(s) of the institution of education”;

in paragraph 7, words “to the State Standard” shall be replaced with “to the State Standards”;

in paragraph 10, words “(except for educational workers of the state and communal institutions of general education)” shall be omitted;

after paragraph 10, two new paragraphs shall be added that read:



“plans its own activity and forms the institution development strategy;

in accordance to the Statute, creates, reorganizes and liquidates structural units.”

In connection with those paragraphs, paragraphs 11 to 14 shall be deemed respectively paragraphs 13 to 16;

Articles 39 and 40 shall be revised to read as follows:

“Article 39. Management and public self-government of the institution of general secondary education

1. Management of the institution of general secondary education is executed by the director whose mandate is specified by the law, statute of the institution and labour agreement.

2. A collegial governing body of the institution of general secondary education is its pedagogic council, whose mandate is specified by this Law and a statute of this institution.

The pedagogical council shall be established in all institution providing institution of general secondary education, regardless of their subordination, types and form of ownership, subject to availability of at least three educational workers. All educational workers should participate in the meetings of the pedagogical council.

The pedagogical council of the institution of general secondary education:

plans work of the institution;

approves educational programme(s) of the institution and assesses outcomes of its (their) implementation;

forms a system and approves procedures of internal educational quality assurance, including a system and mechanisms for ensuring academic integrity ;

considers issues regarding improvement and methodological support of the educational process;

makes decisions about transferring pupils (boarders) to the next grade and their completion of education, issuance of certificates confirming respective educational level, awards for successes in education;

discusses issues of advance training of educational workers, development of their creative initiative, determines steps to provide advance training of educational workers, approves the annual plan of advance training of educational workers;

considers issues of introduction of the best pedagogical experience and innovations into the educational process, participation in the research, experimental, innovative activities, cooperation with other institutions of education, scientific institutions, physical persons and legal entities that contribute to development of education;

approves decisions regarding distinction, moral and material encouragement of pupils (boarders), staff and other participants of the educational process;

considers issues regarding responsibility of pupils (boarders), staff of the institution and other participants of the educational process for non-performance of their duties;

has a right to initiate unscheduled institutional audit of the institution and public accreditation of the institution;

considers other issues within its mandate according to the law and/or the statute.

Decisions of the pedagogical council of the institutions of general secondary education following bodies may be active at the institution of general secondary education:

bodies of self-government of employees of the institution;

bodies of self-government of education seekers;

bodies of parents' self-government;

other bodies of public self-government of participants of the educational process.

The supreme collegial body of public self-government of the institution of general secondary education is the general meeting (conference) of the collective of the institution of education.

4. Methodological associations that involve educational process participants and specialists in a certain professional area, may operate at institutions of general secondary education.

#### Article 40. The state supervision (control) in general secondary education

1. The state supervision (control) in general secondary education is performed in accordance to the Law of Ukraine "On Education".

2. The institutional audit of the institution providing general secondary education is a comprehensive scheduled measure of the state supervision (control) in general secondary education performed once every ten years by the central executive authority on educational quality assurance.

The institutional audit includes a scheduled inspection of compliance to licensing conditions”;

in Article 42, words “the Central Institute for Advanced Pedagogical Education” shall be replaced with words “the State Higher Educational institution “University of Educational Management,” and after words “of the National Academy of Sciences of Ukraine” the following words shall be added: “other agents performing scientific and methodological support in accordance to Article 74 of the Law of Ukraine “On Education”;

in Article 43:

in paragraph 2, words “founders (owners)” shall be replaced with words “founder(s)”;

paragraphs 3 to 5 shall be added that read as follows:

“3. The State provides funding of obtaining general secondary education by an individual at the private or corporate institution of education which has a license to carry out activities in the sphere of general secondary education on expense of the state and local budgets by means of transferring dedicated funds in the amount of the financial standard (with due consideration to correcting coefficients) of the fiscal provision of one pupil obtaining complete general secondary education, and according to the procedure established by the Cabinet of Ministers of Ukraine.

4. The state and communal institutions of education are entitled to provide educational and other services according to the list approved by the Cabinet of Ministers of Ukraine. Founders of respective institutions of education have a right to approve lists of commercial educational and other services that have not been included into the list approved by the Cabinet of Ministers of Ukraine.

5. A procedure of record keeping and accounting at the institution of general secondary education is established by its head as prescribed by the legislation. According to the decision of the head of the general secondary institution, accounting may be performed by the institution of education itself or through the centralized accounting office”;

Article 45 shall be revised to read as follows:

«Article 45. Staffing tables of institution of general secondary education

1. Staffing tables of state and communal institutions of general secondary education, regardless of their subordination and types, are approved by the head of the institution of general secondary education based on the Model Staffing Standards of institutions of general secondary education approved by the central executive authority that provides formation and implements public policy in education.

2. Staffing tables of state and communal specialized institutions of education are approved by heads of respective institutions based on the Model Staffing Standards of specialized institutions of education approved by the central executive authorities that provide formation and implement public policy in respective spheres.

3. Staffing tables of private and corporative institutions of general education are established by their founder(s)";

Article 48 shall be amended with paragraph 3<sup>1</sup> that reads as follows:

«3<sup>1</sup>. By September 1, 2018, the Cabinet of Ministers of Ukraine, the Council of Ministers of the Autonomous Republic of Crimea, oblast state administration, Kyiv and Sevastopol City State Administrations and bodies of local self-governments shall ensure:

change of types of subordinate boarding schools (except for institutions of secondary education for children with mental disabilities) into gymnasium, lyceum according to requirements of this Law with preserving boarding facilities within those institutions with partial or full support of pupils (boarders) on expense of the founder(s). Termination of operation of boarding schools at such institution is possible only after appropriate settlement of the issue of obtaining education and/or obtaining respective social services by pupils (boarders) at place of their residence (registration) or place of residence (registration) of their parents;

creation of oblast (city in the Cities of Kyiv and Sevastopol) resource centres of support to inclusive education, and of district, city (district in cities) inclusive resource centres, including in amalgamated territorial communities, by means of reorganization of the existing network of psychological, medical and pedagogical counselling offices.

The Cabinet of Ministers of Ukraine within three months of enactment of the Law of Ukraine "On Education" shall approve the Regulations about the Resource Centre in Support to Inclusive Education and the Inclusive Resource Centre";

in the text of the Law, words "general educational institution" and "educational and outreach process" in all cases and numbers shall be replaced with words "institution of general secondary education" and "educational process", respectively, in respective case and number;

3) in the Law of Ukraine "On Out-of-School Education" (The Bulletin of the Verkhovna Rada of Ukraine, 2000, No. 46, p. 393 with further amendments):

in Article 1:

paragraph 2 shall be amended with words "other educational providing educational services in the system of out-of-school education";

paragraph 3 shall be revised to read as follows:

"out-of-school education is a totality of knowledge, skills and expertise obtained by pupils and students at institutions of out-of-school education, other educational agents, according to out-of-school educational programmes";

after paragraph 4, two new paragraphs shall be added that read:

“a specialized institution of out-of-school education is an institution of out-of-school education providing specialized education with artistic, athletic, military or scientific focus;

an art school is a specialized institution of artistic education: a school of music, painting, choreography, choir singing, fine arts, etc., which provides primary artistic education.”

In this connection, paragraphs 5 to 10 shall be deemed respectively paragraphs 7 to 12;

Article 4 shall be amended with paragraph 2 that reads:

“partial qualification of levels 0 to 3 of the National Qualifications Framework may be obtained in the system of out-of-school education”;

in Article 6, paragraph 2:

a new subparagraph shall be added after paragraph 1, that reads as follows:

“The out-of-school education may be obtained in parallel with obtaining pre-school, complete general secondary and professional education. Competences gained under programmes of out-of-school education may be counted towards and recognized at the respective level of education.”

In this connection, subparagraph 2 shall be deemed subparagraph 3;

in paragraph 3, the word “organizations” shall be replaced with the word “associations”;

Article 8 after paragraph 7 shall be amended with a new paragraph that reads as follows:

“obtaining by pupils and students of primary professional skills and competences necessary for their socialization, further self-realization and/or professional activity.”

In this connection, subparagraphs 8 to 16 shall be deemed respectively subparagraphs 9 to 17;

in Article 9, paragraph 1:

subparagraph 5 shall be revised to read:

“scientific character”;

after subparagraph 5, a new paragraph shall be added that reads:

“of secular character of education at state and communal institutions of out-of-school education.”

In this connection, subparagraph 6 shall be deemed subparagraph 7;

subparagraph 8 shall be added that reads as follows:

“other principles stipulated by the Law of Ukraine “On Education”.

in Article 10:

the title should be revised to read as follows:

«Article 10. Governing bodies in the out-of-school education. The state supervision (control) in the out-of-school education”;

paragraph 4 shall be revised to read as follows:

“4. The state supervision (control) in the out-of-school education is performed in accordance to the Law of Ukraine “On Education.”

paragraph 5 shall be omitted;

paragraph 6, subparagraphs 10 and 11 shall be revised to read as follows:

“perform functions of founders in regard to institutions of out-of-school education they established, generalize and disseminate experience of their activities;

create conditions for development of institutions of education of all forms of ownership.”

Article 11, paragraphs 1 and 2 shall be revised to read as follows:

“1. Management of the institution of out-of-school education is performed by its director.

A collegial governing body of the institution of out-of-school education is a pedagogical council, whose mandate is defined by the statute of this institution.

The pedagogical council is created at all institutions providing out-of-school education, regardless of their subordination, type and form of ownership.

The pedagogical council of the institution of out-of-school education:

plans work of the institution;

approves educational programme(s) of the institution and assesses outcomes of its (their) implementation;

forms a system and approves procedures of internal educational quality assurance, including a system and mechanisms for ensuring academic integrity ;

makes decisions about issuing certificates confirming education;

considers pressing issues of organization, provision and development of educational process at the institution, its structural units;

discusses issues of advance training of educational workers, development of their creative initiative, determines steps to provide advance training of educational workers, approves the annual plan of advance training of educational workers;

approves decisions regarding distinction, moral and material encouragement of pupils, students, staff and other participants of the educational process;

considers issues regarding responsibility of pupils, students, staff of the institution and other participants of the educational process for non-performance of their duties;

has a right to initiate unscheduled institutional audit of the institution and public accreditation of the institution;

considers other issues within its mandate according to the law and/or the statute.

Decisions of the pedagogical council of the institution of out-of-school education are enacted by decisions of the head of the institution.

2. The following bodies may be active at the institution of out-of-school education:

bodies of self-government of employees of the institution;

bodies of self-government of education seekers;

bodies of parents' self-government;

other bodies of public self-government of participants of the educational process.

The supreme collegial body of public self-government of the institution of out-of-school education is the general meeting (conference) of the collective of the institution of out-of-school education”;

in Article 12:

paragraph 1 shall be revised to read as follows:

“1. The institution of out-of-school education is a legal entity. A form of ownership of the institution of out-of-school education is established as prescribed by the legislation.”

paragraph 2 shall be amended with a subparagraph 4 that reads as follows:

“Rights and responsibilities of the institutions of out-of-school education envisaged by the Law of Ukraine “On Education”, this and other Laws, belong also to a physical person – entrepreneur or a structural unit of a legal person under private or public law, whose main type of activity is the educational activity in the sphere of out-of-school education”;

paragraph 3 after words “art schools” shall be amended with words “junior academies of arts (folk crafts), junior academies of sciences”;

paragraph 4, subparagraph 1 shall be revised to read as follows:

“4. Institutions of out-of-school education may be comprehensive, field-specific and specialized”;

Articles 13 and 14 shall be revised to read as follows:

“Article 13. Statutory documents of the institution of out-of-school education

1. The institution of out-of-school education acts on the basis of the statute, which is approved by the founder of the institution.

A physical person – entrepreneur or a structural unit of a legal entity under private or public law, whose main type of activity is educational activity, act based on their own regulations about them.

2. The statutory documents are developed in accordance to the Constitutions of Ukraine, the Law of Ukraine “On Education”, this Law, regulations about institutions of out-of-school education approved by the central executive bodies that ensure formation and implement public policy in the respective sphere, other laws and regulations.

3. Regulations about specialized institutions of out-of-school education are approved by central executive authorities that ensure formation and implement public policy in a respective sphere. Regulation about specialized institutions of out-of-school education provide a basis for development of statutes of such institutions.

Article 14. Creation, reorganization, liquidation and conversion of the institution of out-of-school education

1. A decision about creation, reorganization, liquidation or conversion of the institution of out-of-school education regardless of its subordination, type and form of ownership, is made by its founder(s).



A founder of the institution of out-of-school education may be a state authority on behalf of the state, a respective council on behalf of the territorial community (communities), physical person or legal entity (in particular, a religious organization whose statute (regulations) is registered as appropriate), by whose decision and on expense on whose property the institution of out-of-school education has been established, or which in a different way, in accordance to the legislation, were granted rights and duties of the founder.

2. The institutions of out-of-school education are created based on cultural, educational, socio-economic, national and language needs subject to availability of the necessary teaching and methodological resources and physical facilities, pedagogical staff, and in compliance with requirements of the health legislation.

3. Institutions of out-of-school education, regardless of their subordination, types and form of ownership, have equal rights and bear equal responsibilities regarding compliance to requirements of the legislation of Ukraine.

Institutions of out-of-school education have a right to create structural units, including separated structural units (branches) in their structure."

Article 15 after subparagraph 2 shall be amended with a subparagraph as follows:

"artistic, which provides gaining by seekers of special artistic performing competences in the process of active artistic activities."

In this connection, subparagraphs 3 to 12 shall be deemed respectively subparagraphs 3 to 13;

Article 16 shall be revised to read as follows:

"Article 16. The educational programme and planning of activities of the institution of out-of-school education

1. The educational programme is an integrated complex of educational components planned and organized by the institution of out-of-school education with a goal of achieving by the pupils, students of learning outcomes (gaining competences).

The educational programme contains requirements to pupils, students that can start their study under the programme; a list of educational component and their logical sequence; total amount of educational load and expected learning outcomes of education seekers.

2. The educational programme is endorsed by the pedagogical council of the institution of out-of-school education and approved by the head of the institution.

3. The educational programme is developed based on specificity of socio-economic development of the region, interests of pupils and students, needs of the families, requests of other institutions of education, youth and children's public associations, and has to envisage educational components for free selection by education seekers.

4. Model educational programmes of the institution of out-of-school education are approved by the central executive authority that ensures formation and implements public policy in education and science, other central executive authorities that control institutions of out-of-school education.
5. The institutions of out-of-school education may use model educational programmes or develop their own educational programmes based on the model educational programmes.
6. Based on the educational programme, the institution of out-of-school education develops and approves the annual workplan of the institution and the educational plan of the institution that specify details of organization of the educational process.
7. The state and communal institutions of out-of-school education may plan activities of clubs, classes, divisions, departments under educational programmes on out-of-school education approved according to the procedure established by the central executive authority that ensures formation and implements public policy in education and science, other central executive authorities that control institutions of out-of-school education, and under other educational programmes subject to their approval by respective local executive authorities.
8. Experimental educational plans are developed by the institutions of out-of-school education of experimental educational programmes (educational plans) is possible only by a decision of the central executive authority that ensures formation and implements public policy in education, or by other central executive authority that ensures formation and implements public policy in a respective sphere”;

Article 17, paragraph 1 shall be revised to read as follows:

“1. The structure of the academic year, duration of the academic week, lessons, rest between them, other organizational forms of the educational process are established by the institution of out-of-school education within time limits envisaged by the educational programme.

Duration of lessons at the institution of out-of-school education is defined by the educational programme, education plan and study programmes based on the psychophysiological development and appropriate load for different age categories and constitutes for pupils and students:

at the age of 3 to 6 years – 30 minutes;

at the age of 5 to 7 years – 35 minutes;

other ages – 45 minutes”;

in Article 18:

in paragraph 2, subparagraph 4, words “Model educational plans” shall be replaced with the words “model educational programmes (educational plans)”;

paragraph 2, subparagraph 3 shall be revised to read as follows:

“ Samples of certificates confirming out-of-school education are approved by the central executive authority for education and science. Samples of certificates confirming specialized out-of-school education with artistic, athletic, military or scientific focus are approved by the central executive authorities that ensure formation and implement public policy in respective spheres”;

Article 21, paragraph 3 shall be revised to read as follows:

3. A position of the head of the state and communal institution of out-of-school education should be held by an individual who is a citizen of Ukraine, has higher education at least at master’s level and a length of pedagogical service of at least three years, as well as organizational skills, and whose physical and mental status does not prevent this individual from performing their professional duties”;

in Article 22, paragraph 1, subparagraph 8, words “and is approved by a respective governing body” shall be omitted;

Articles 23 and 25 shall be revised to read as follows:

“Article 23. Labour relations in the system of out-of-school education

1. Labour relations in the system of out-of-school education are regulated by the labour legislation of Ukraine, the Law of Ukraine “On Education,” and other laws and regulations.

2. The head of the institution of out-of-school education is appointed and dismissed from the position by the founder(s) or its (their) authorized body.

3. Other workers of the institution of out-of-school education are appointed and dismissed from their positions by its head according to the procedure envisaged by the statutory documents of the institutions in accordance with legislation.

Article 25. Assessment of educational workers of the institution of out-of-school education

1. Assessment of educational workers of the institution of out-of-school education regardless of their subordination, type and form of ownership is performed, as a rule, once every five years in accordance to regulations about assessment of educational workers approved by respective central executive authorities that ensure formation and implement public policy in the respective sphere”;

in Article 26, paragraph 2:

subparagraph 3 shall be amended with the sentence that reads: “A procedure of reimbursing funds from the state and/or local budgets for obtaining out-of-school education by children from mentioned categories is approved by the Cabinet of Ministers of Ukraine”;

subparagraph 5 shall be revised to read as follows:

“Local executive authorities and bodies of local self-government reimburse funds for study of children entitled to benefits and has a right to establish additional benefits regarding tuition fee based on possibilities of local budgets, including for individuals with disabilities that study with daytime attendance at the higher, pre-tertiary vocational and/or vocational education and training , until completion of those institutions of education, but not longer than until their 23<sup>rd</sup> birthday.”

in Article 28:

paragraph 1 shall be revised to read as follows:

“The state and communal institutions of education are entitled to provide educational and other services according to the list approved by the Cabinet of Ministers of Ukraine. Founders of respective institutions of education have a right to approve lists of commercial educational and other services that have not been included into the list approved by the Cabinet of Ministers of Ukraine”;

paragraph 2 shall be omitted;

paragraph 3 after the word “stipulated” shall be amended with words “by educational programmes”;

Part VIII “Concluding provisions” shall be amended with section 3<sup>1</sup> that reads as follows:

“3<sup>1</sup>. Establish that:

1) until harmonization of the legislation and statutory documents of primary specialized artistic education institutions (schools of aesthetic education) with this Law, terms “primary specialized artistic education institutions (school of aesthetic education)” and “artistic school” are identical, and all authorities and primary specialized institutions of artistic education (schools of aesthetic education) are guided by all provisions of this Law regarding artistic schools, and by provisions of the legislation regarding specialized artistic education institutions (schools of aesthetic education) insofar as it is not at variance with this Law;

2) individuals that hold positions of educational workers of specialized artistic education institutions (schools of aesthetic education) or artistic schools retain their existing professional rights and social guarantees;

3) wage rate of educational workers of specialized artistic education institutions (schools of aesthetic education) or artistic schools cannot be reduced if those workers continue to hold respective positions, perform respective duties and retain a respective qualification category and/or pedagogical titles;

4) until harmonization of the legislation with this Law, artistic schools are subject to the conditions and procedure of funding envisaged for children's school of aesthetic education and primary specialized artistic education institutions (schools of aesthetic education)";

in the text of the Law:

words "out-of-school educational institution" in all cases and numbers shall be replaced with words "institution of out-of-school education" in a respective case and number;

words "educational institutions" in all cases shall be replaced with words "institutions of education" in a respective case;

words "educational and outreach process" in all cases and numbers shall be replaced with words "educational process", in respective case and number

words "general educational institution" in all cases and numbers shall be replaced with words "institution of general secondary education" in respective case and number;

words "vocational and higher educational institutions of accreditation levels I-II" in all cases shall be replaced with words "institutions of vocational education and training and pre-tertiary vocational education " in a respective case;

words "primary specialized artistic educational institution (school of aesthetic education)" in all cases and numbers shall be replaced with words "artistic school" in respective case and number;

words "in non-school and extracurricular time" shall be omitted;

4) in the Law of Ukraine "On Preschool Education" (The Bulletin of the Verkhovna Rada of Ukraine, 2001, No. 49, p. 259 with further amendments):

in Article 4:

the title shall be revised to read as follows:

"Article 4. Preschool education. Basic stages of formation of child's personality";

in paragraph 2, subparagraph 2, the word "versatile" shall be replaced with the word "comprehensive";

paragraphs 3 and 4 shall be revised to read as follows:

"3. Basic stages of physical, mental and social formation of child's personality are the age of the baby, early age, preschool age.

#### 4. The age periodization:

babies (up to one year old);

early age (one to three years);

preschool age (three to six (seven) years):

junior preschool age (three to four years);

middle preschool age (four to five years);

upper preschool age (five to six (seven) years)";

in Article 6:

subparagraph 7 shall be amended with words "in the state and communal institutions of preschool education";

subparagraph 11 shall be added that reads as follows:

"other principles defined by the Law of Ukraine "On Education";

Article 9, paragraph 5 shall be revised to read as follows:

"5. Children may obtain preschool education at will of their parents or persons in loco parentis:

at institutions of preschool education regardless of their subordination, type and form of ownership;

at structural units of legal entities under private and public law, including institutions of education;

in the family – under the family (home) form of obtaining preschool education;

with the help of physical persons that have pedagogical education and/or professional qualification of the educational worker, including those performing independent professional activity;

with the help of physical persons – entrepreneurs whose main types of activity is the educational activity';

in Article 11:

paragraph 2 after subparagraph 8 shall be amended with four new subparagraphs that read as follows:

“plans its activity and forms the development strategy of the institution;

forms educational programme of the institution;

ensures selection and placement of workers;

in accordance with statutory documents, creates, reorganizes and liquidates structural units (in particular, departments, groups).”

In this connection, subparagraphs nine and ten shall be deemed respectively subparagraphs thirteen and fourteen;

in paragraph three, words “The preschool educational institution based on private ownership” shall be replaced with words “The institution of preschool education”;

in paragraph four, subparagraph one the words “upon agreement with respective educational authorities and respective health care authorities” shall be omitted;

paragraph five shall be omitted;

paragraph six, subparagraph two shall be revised to read as follows:

“At private institutions of preschool education and institutions of preschool education established by religious organizations whose statutes are registered as required by the legislation, activities of respective religious organizations is permitted”;

in Article 12:

in paragraph one:

in subparagraphs two and three, words “two months” shall be replaced with the word “one”;

in subparagraph five, words “children at the age of two to seven (eight) years” shall be replaced with words “children with special educational needs at the age of two to seven (eight) years”;

in subparagraph six, words “with defects of the physical and (or) mental development” shall be replaced with words “with the physical and (or) mental disorders”;

in subparagraph nine, words “from two months to six (seven) years” shall be replaced with words “from one to six (seven, eight) years,” and after words “of compensatory type” the word “inclusive” shall be added;

subparagraphs one, three and four of paragraph three shall be revised to read as follows:

“3. To meet educational needs of citizens, the institution of preschool education may form a part of the association with other institutions of education”;

“Children with special educational needs may attend until seven (eight) years of age special institutions of preschool education (groups) and inclusive groups of institutions of preschool education.

To meet educational, social needs, organization of correctional and medical restorative activity at special schools (boarding schools), sanatorium schools (boarding schools), education and rehabilitation centres, their special structural units – preschool groups – may be established”;

Article 13 shall be revised to read as follows:

“Article 13. Statutory document of educational agents in the sphere of preschool education

1. The institution of preschool education operates based on its statute.

A physical person – entrepreneur of a structural unit of the legal entity under the private or public law whose main type of activity is educational activity, operate based on their regulations about them.

2. Statutory documents are developed in accordance to the Constitutions of Ukraine, the Law of Ukraine “On Education”, this Law, regulations about institutions of preschools education which is approved by the central executive authority in education and science, other laws and regulations”;

in Article 14:

in paragraph one, words “family, household” shall be omitted;

paragraph two after subparagraph seven shall be amended with a new subparagraph that reads as follows:

“in inclusive groups – up to 15 persons (of those no more than three children with special educational needs).”

In this connection, subparagraphs eight and nine shall be deemed respectively paragraphs nine and ten;

in subparagraph nine, words “with children” shall be omitted;

paragraph three shall be revised to read as follows:

“3. A procedure of admission, expulsion and transfer of pupils to state and communal institutions of education for obtaining preschool education is approved by the central executive authority that ensures formation and implements public policy in education.



A procedure of admission, expulsion and transfer of pupils to private and corporate institutions of education for obtaining preschool education is approved by the founder(s)”;

in Article 15:

the title and paragraph one shall be revised to read as follows:

“Article 15. The status of the institution of preschool education and other educational agents in the sphere of preschool education

1. The institution of preschool education is a legal entity.

A form of ownership of the institution of preschool education is established in accordance to the legislation. Institutions of preschool education may be established on the grounds of public-private partnership (a corporate institution of preschool education)”;

paragraphs five and six shall be added that read as follows:

“5. The status of the corporate one belongs to institution of preschool education established by several founders of different forms of ownership on the principles of public-private partnership; special aspects of its management are specified by its foundation agreement and statute.

6. Rights and responsibilities of the institution of preschool education envisaged by the Law of Ukraine “On Education,” this and other laws, belong also to the physical person – entrepreneur or a structural unit of a legal entity under private or public law, whose main type of activity is the educational activity in the sphere of preschool education.”

Article 16 shall be revised to read as follows:

“Article 16. Creation, reorganization, liquidation and conversion of the institution of preschool education

1. A decision about creation, reorganization, liquidation or conversion (change of the type) of the institution of preschool education regardless of its subordination, type and form of ownership, is made by its founder(s).

A founder of the institution of preschool education may be a state authority on behalf of the state, a respective council on behalf of the territorial community (communities), physical person and/or legal entity (in particular, a religious organization whose statute (regulations) is registered as appropriate), by whose decision and on expense on whose property the institution of preschool education has been established, or which in a different way, in accordance to the legislation, were granted rights and duties of the founder.

2. The institutions of preschool education are created based on socio-economic, national and language needs subject to availability of children of the respective age, the necessary teaching and methodological resources and physical facilities, pedagogical staff, and in compliance with requirements of the health legislation.

3. Vacated premises of liquidated state and communal institutions of preschool education shall be used solely for work with children.

Property which is in the state or communal ownership (land plots, buildings, constructions, equipment and so on), which purchase or separation is intended for obtaining preschool education by children, is used solely for work with children.

4. Institutions of preschool education may be transferred by founders into the communal or state property in accordance to the legislation”;

in Article 18:

subparagraphs two and four shall be revised to read as follows:

“creation of conditions for obtaining preschool education by children, including those with special educational needs”;

“licensing of educational activity in the sphere of preschool education as required by the legislation”;

subparagraph five shall be omitted;

in Article 19:

in paragraph one:

subparagraph three shall be omitted;

subparagraph 11 shall be revised to read as follows:

“develops and approves model lists of material and technical supply of institutions of preschool education, gaming, educational and didactic equipment”;

in paragraph two:

subparagraph two shall be revised to read as follows:

“ensure implementation of public policy in preschool education in the respective territory, including development of the network of institutions of preschool education of all forms of ownership in line with needs of the population, improvement of facilities and equipment, maintenance of communal institutions of preschool education”;

subparagraph three shall be omitted;

subparagraph four shall be revised to read as follows:

“implement functions of the founder of institutions of preschool education in the respective territory”;

in subparagraph six, the word “citizens” shall be replaced with the words “children, including those with special educational needs”;

in subparagraph eight, the words “state and” shall be omitted;

subparagraph nine shall be revised to read as follows:

“create conditions for development of institutions of preschool education of all forms of ownership”;

Articles 20, 21, 22 and 23 shall be revised to read as follows:

«Article 20. Management and public self-government of the institution of preschool education

1. Management of the institution of preschool education is performed by its director.

2. The collegial permanent governing body of the institution of preschool education is a pedagogical council, whose mandate is defined by statutory documents of this institution of preschool education. The pedagogical council is created at all institutions of preschool education, regardless of their subordination, types and forms of ownership, subject to availability of at least three educational workers.

The pedagogical council of the institution of preschool education is comprised of all educational workers of the institution, medical workers, other specialists. The pedagogical council of the institution of preschool education may include heads of parents’ committees, physical persons who perform educational activities in the sphere of preschool education.

Representatives of public associations, educational workers of institutions of secondary education, parents or persons in loco parentis may be invited to meetings of the pedagogical council. Persons invited to meetings of the pedagogical council have a consultative vote.

The head of the pedagogical council of the institution of preschool education is its director. The pedagogical council selects a secretary for the academic year from its members.

The pedagogical council of the institution of preschool education:

approves educational programme of the institution and assesses outcomes of its implementation and of implementation of the Basic Component of preschool education, performance of programmes of development, upbringing and study of children by each age group; forms a system and approves an internal educational quality assurance, including a system and mechanisms of ensuring academic integrity ;

considers an issue of improving the educational process organization at the institution;

defines a workplan of the institution and pedagogical load of educational workers;

approves health promotion measures in children;

discusses issues of advanced training of educational workers, development of their creative initiative;

approves an annual plan of advanced training of educational workers;

hears reports of educational workers that undergo assessment;

considers an issue of introducing best pedagogical experience and innovations into the pedagogical process, participation in research, experimental, innovative activities, collaboration with other institutions of education, scientific establishments, physical persons and legal entities that promote development of education;

determined ways of cooperation between the institution of education and the family;

approves decisions regarding distinction, moral and material encouragement of pupils, students, staff and other participants of the educational process

considers issues regarding responsibility of staff of the institution and other participants of the educational process for non-performance of their duties;

has a right to initiate unscheduled institutional audit of the institution and public accreditation of the institution;

considers other issues within its mandate according to the law and/or the statute.

Decisions of the pedagogical council of the institution of preschool education are enacted by decisions of the head of the institution.

2. The following bodies may be active at the institution of preschool education:

bodies of self-government of employees of the institution;

bodies of parents' self-government;

other bodies of public self-government of participants of the educational process.

The supreme collegial body of public self-government of the institution of preschool education is the general meeting (conference) of the collective of institution of preschool education.

The general meeting (conference) hears a report of the head of the institution of preschool education regarding the statutory activities and appraises his/her professional pedagogical activity, considers issues of educational, methodological, economic and financial activities of the institution of preschool education.

Article 21. The state supervision (control) in the sphere of preschool education

1. The state supervision (control) in the sphere of preschool education is performed in accordance with the Law of Ukraine "On Education".

Article 22. The basic component of preschool education

1. The basic component of preschool education is a state standard that contains norms and provisions that define state requirements to the level of development and social training of a preschool-aged child, and conditions under which they can be achieved.

Fulfilling requirements of the Basic Component of Preschool Education is obligatory for all institutions of preschool education regardless of their subordination, type and form of ownership, other forms of obtaining education.

A procedure of achieving learning outcomes (gaining competences) by education seekers as envisaged by the Basic Component of Preschool Education is defined by the educational programme of the institution of education.

The Basic Component of Preschool Education is developed by the central executive authority that ensures formation of and implements public policy in education, approved according to the established procedure, and is revised at least once every ten years.

2. The methodological support of the Basic Component of Preschool Education is performed by the central executive authority that ensures formation of and implements public policy in education.

3. The National Academy of Educational Sciences of Ukraine, bodies for quality assurance in education, academic, sectoral, research institutes, institutions of education, other research and methodological establishments, public associations, including professional organizations (professional associations), other civil society institutes, experts, etc., are involved into development of the Basic Component of Preschool Education.

## Article 23. The educational programme

1. The educational programme is an integrated complex of educational components planned and organized by the institution of preschool education with a goal of achieving by the pupils of learning outcomes (gaining competences) specified by the Basic Component of Preschool Education.

The Basic Component of Preschool Education forms the basis for development of the educational programme.

2. The educational programme should contain:

a total study load and expected study outcomes of education seekers;

a list, content, duration and links between educational fields and/or subjects, disciplines, etc., a logical sequence of their study;

organizational forms of the educational process;

description and instruments of the system of internal educational quality assurance;

other educational components (by decision of the institution of preschool education).

3. The content of the educational programme shall envisage:

formation of the fundamentals of social adaptation and life competence of the child;

educating elements of environment-conscious worldview, development of emotion- and value-based attitude to the environment;

formation of emotion- and value-based attitude to practical and spiritual human activities;

development of the need in realizing one's creative abilities.

4. The educational programme is endorsed by the pedagogical council of the institution of preschool education and approved by its head.

5. Educational programmes developed based on model educational programmes do not require any separate approval by the central body of quality assurance in education.

6. Each educational programme should envisage achievement by a child of competences specified by the Basic Component of Preschool Education.

7. Based on the educational programme, the institution of preschool education forms and approves the educational plan that specifies organization of the educational process.

8. Introduction of experimental educational programmes is possible only by a decision of the central executive authority that ensures formation and implements public policy in education.

9. Obtaining of preschool education by children who require correction of the physical and/or mental development, extended treatment and rehabilitation, is performed by separate educational programmes and methods developed by the central executive body that ensures formation of and implements public policy in education based on the State Basic Programme, by agreement with the central executive authority that ensures formation of public policy in health care.

10. Additional educational services that are not specified by the Basic Component of Preschool Education, are introduced only subject to agreement of child's parents or persons in loco parentis, on expense of parents or persons in loco parentis, physical persons or legal entities based on an agreement between parents or persons in loco parentis and the institution of preschool education within acceptable maximal load of a child";

in Article 24:

paragraph two shall be revised to read as follows:

"2. A workplan of the institution of preschool education, regardless of its type and form of ownership, is approved by the head of the institution";

paragraph three shall be omitted;

Article 25 shall be amended with subparagraph six that reads as follows:

"other agents that perform scientific and methodological support in accordance to Article 74 of the Law of Ukraine «On Education»;

in Article 27:

in subparagraph three, the word "directors" shall be replaced with words "educational workers: directors", and after words "senior nursery teachers", the words "assistant teachers" shall be added;

in subparagraph four, words "at children's homes, nurseries and nurseries-kindergartens" shall be omitted;

after subparagraph seven, a new subparagraph shall be added that reads as follows:

"assistants to children with special educational needs."

In this connection, subparagraph eight shall be deemed subparagraph nine;

subparagraph nine shall be revised to read as follows:

“physical persons who have a right to perform educational activity in the sphere of preschool education”;

in Article 28, paragraph two, subparagraph five, words “of state and communal” shall be omitted;

in Article 30:

paragraph one after words “higher pedagogical education” shall be omitted with words “and/or professional qualification of the educational worker”;

in paragraph three:

subparagraph three after words “nursery teacher” shall be amended with words “of the inclusive group”;

after subparagraph three, a new subparagraph shall be added that reads as follows:

“of the assistant teacher of the inclusive group – 36 hours”.

In this connection, subparagraphs four to fourteen shall be deemed subparagraphs five to fifteen, respectively;

subparagraph seven after words “of the compensative type” shall be amended with words “and with inclusive groups”;

after subparagraph ten, a new subparagraph shall be added that reads as follows:

“group leader – 18 hours”.

In this connection, subparagraphs eleven to fifteen shall be deemed subparagraphs twelve to sixteen, respectively;

in Article 31:

paragraphs two and three shall be revised to read as follows:

“2. A position of the head of the institution of preschool education, regardless of subordination, type and form of ownership, should be held by an individual who is a citizen of Ukraine, has higher education at least at bachelor’s level and a length of pedagogical service of at least three years, as well as organizational skills, and whose physical and mental status does not prevent this individual from performing their professional duties



3. The head of the institution of preschool education is appointed and dismissed from the position by the founder(s) or its (their) authorized body.

Other workers of the institution of preschool education are appointed and dismissed from their positions by its head according to the procedure envisaged by the statutory documents of the institutions in accordance with legislation”;

paragraph four shall be omitted;

Article 33, paragraph four shall be revised to read as follows:

“4. Children who require correction of the physical and/or mental development, extended treatment and rehabilitation are guaranteed a right to:

attend state and communal institutions of preschool education with flexible operation hours, their support at those institution on expense of the state;

receive psychological and pedagogical assistance at inclusive resource centre s acting in accordance to the regulations approved by the Cabinet of Ministers of Ukraine”;

in Article 36:

paragraph one shall be amended with subparagraph six that reads as follows:

“be a pro bono assistant to the child with special educational needs or appoint a person that will perform duties of child’s assistant”;

add paragraph three that reads as follows:

“3. Other rights and obligations of children and persons in loco parentis are defined by the Law of Ukraine “On Education”;

in Article 37:

paragraph two shall be revised to read as follows:

“2. Maintenance and development of facilities and equipment of institutions of preschool education are funded on expense of the founder(s) of those institutions”;

paragraphs three-six shall be added that read as follows:

“3. Sources of funding of the institution of preschool education, regardless of the form of ownership, may be funds of:

the founder(s);

the state and local budgets;

parents or persons in loco parentis;

voluntary contributions and special-purpose contributions of physical persons;

other legal funds.

4. Sources of funding of institutions of preschool education (departments, groups) established on the conditions of public-private partnership, are funds of the founders.

Co-funding amounts are defined by the founders subject to contract conditions.

5. The state and communal institutions of preschool education are entitled to provide educational and other services according to the list approved by the Cabinet of Ministers of Ukraine. Founders of respective institutions of education have a right to approve lists of commercial educational and other services that have not been included into the list approved by the Cabinet of Ministers of Ukraine.

6. A procedure of record keeping and accounting at the institution of preschool education is established by its head as prescribed by the legislation. According to the decision of the head of the institution of education, accounting may be performed by the institution of education itself or through the centralized accounting office”;

in Article 38:

paragraph two shall be revised to read as follows:

«2. Requirements to the material and technical supply of the institution of preschool education are defined by respective construction and sanitation and hygiene standards and rules. Model lists of material and technical supply of institutions of preschool education, gaming, educational and didactic equipment of the institution of preschool education are approved by the central executive authority in education and science”;

paragraph three shall be omitted;

in Article 41:

paragraph two shall be revised to read as follows:

“2. Non-compliance to licensing conditions by institutions of preschool education may serve as a ground for revoking their license to perform educational activity in the sphere of preschool education”;

paragraph three shall be omitted;

in the text of the Law:

words “preschool educational institution” in all cases and numbers shall be replaced with words “institutions of preschool education” in a respective case and number;

words “educational and outreach process ” in all cases and numbers shall be replaced with words “educational process” in a respective case and number;

words “director (chief)” in all cases and numbers shall be replaced with word “director” in a respective case and number;

words “children who require correction of the physical and (or) mental development, extended treatment and rehabilitation” in all cases shall be replaced with words “children with special educational needs” in a respective case;

words “respective higher pedagogical education” in all cases shall be replaced with words “higher pedagogical education in a respective specialty” in a respective case;

words “founder (owner)” in all cases and numbers shall be replaced with words “founder (s)” in a respective case and number;

words “provision of educational services” shall be replaced with words “performing educational activities”;

5) in the Law of Ukraine “On the Military Duty and Military Service” (The Bulletin of the Verkhovna Rada of Ukraine, 2006, No. 38, p. 324 with further amendments):

in Article 15, paragraph one numbers “18” shall be replaced with numbers “19”;

in Article 17:

paragraph ten shall be omitted;

in paragraph eleven, words “for medical reasons or for family reasons, to provide care for immediate relatives indicated in Article 15, paragraph eleven, subparagraph three of this Law” shall be replaced with words “exercise their right to academic mobility, as well as those restored at the institution of higher education”;

6) in the Law of Ukraine “On Culture” (The Bulletin of the Verkhovna Rada of Ukraine, 201, No. 24, p. 168):

in Article 8, paragraph two, words “out-of-school educational institutions” shall be replaced with words “institutions of specialized out-of-school education”;

in Article 9, paragraph three, words “primary specialized artistic educational institutions (schools of aesthetic education)” shall be replaced with words “artistic schools, studios”;

in Article 16, paragraph one, subparagraph four, words “primary specialized artistic educational institutions (schools of aesthetic education)” shall be replaced with words “artistic schools, studios”;

in Article 20, paragraph four, words “out-of-school institutions of aesthetic education and leisure of children and youth” shall be replaced with words “artistic schools, centres of leisure for children and youth”;

in Article 23, paragraph two, words “primary specialized artistic educational institutions (schools of aesthetic education and studios)” shall be replaced with words “artistic schools, studios”;

7) in the Law of Ukraine “On Higher Education” (The Bulletin of the Verkhovna Rada of Ukraine, 2014, No. 37-38, p. 2004 with further amendments):

in Article 1, paragraph one:

item 1<sup>1</sup> shall be added that reads as follows:

“1<sup>1</sup>) academic integrity is an aggregate of ethical principles and rules, stipulated by the Law of Ukraine “On Education”, this Law and other laws of Ukraine, which should be followed by participants of the educational process during study, teaching and implementation of scientific (creative) activities in order to ensure confidence in learning outcomes and/or scientific (creative) achievements”;

in item 17, words “educational (educational professional or educational scientific) programme” shall be replaced with words “educational (educational professional, educational scientific or educational creative) programme”;

item 19 shall be revised to read as follows:

«19) learning outcomes – knowledge, skills, mindset, values, other personal qualities gained in the process of education, upbringing and development, which may be identified, planned, evaluated and measured and which a person can demonstrate after having completed an educational programme or individual educational components”;

in item 20, words “educational professional or educational scientific” shall be replaced with the word “educational”;

item 23 shall be revised to read as follows:

“23) quality of higher education – compliance of learning outcomes to requirements established by the legislation, respective standards of higher education and/or an agreement for provision of educational services”;

in Article 3:

in paragraph two:

item 6 after words “scientific and pedagogical” shall be amended with the word “artistic”;

item 7 after words “scientific and technological” shall be amended with the word “artistic”;

in paragraph three:

item 1 after the word “science” shall be amended with the word “art”;

item 7 after words “scientific and technological” shall be amended with the word “artistic”;

in Article 5:

in paragraph one:

subparagraph one shall be revised to read as follows:

“1. Training of professionals with higher education is performed at respective educational or scientific programmes at the following levels of higher education”;

subparagraph five shall be revised to read as follows:

“third (educational and scientific/educational and creative) level”;

in paragraph seven, words “fifth qualification” shall be replaced with a word “sixth”;

in paragraph eight, words “sixth qualification” shall be replaced with a word “seventh”;

in paragraph nine, words “seventh qualification” shall be replaced with a word “eighth”;

subparagraph ten shall be revised to read as follows:

“The third (educational and scientific/educational and creative) level of higher education corresponds to the ninth level of the National Qualifications Framework”;

after subparagraph ten, two new subparagraphs shall be added that read as follows:

“The educational and scientific level of higher education envisaged mastering by an individual of theoretical knowledge, skills, expertise and other competencies sufficient for producing new ideas, solving complex problems in the area of professional and/or research and innovative activity, mastering methodology of scientific and pedagogical activity, and conducting an independent scientific research whose results have scientific novelty, theoretical and practical significance.

The educational and creative higher education envisaged mastering by an individual of the methods of the artistic and pedagogical activities, performing an independent artistic project, gaining practical skills of producing new ideas and solving theoretical and practical problems in the artistic sphere”.

In this connection, subparagraph eleven shall be deemed subparagraph thirteen;

in subparagraph thirteen, words “ninth qualification” shall be replaced with the word “tenth”;

in paragraph two:

in subparagraph one, words “(educational and professional or educational and scientific)” shall be omitted;

item 4 shall be revised to read as follows:

“4) Philosophiae Doctor / Doctor of Arts”;

in paragraph three, subparagraph one:

numbers “90-120” shall be replaced with numbers “120-150”;

a sentence shall be added that reads as follows: “The scope of educational and professional programme for obtaining the junior bachelor degree on the basis of the junior specialist degree is defined by the institution of education”;

paragraph four, subparagraph one, after words “of junior bachelor” shall be amended with words “or junior specialist”;

paragraph six shall be amended with subparagraph 5-7 that read as follows:

“Doctor of Arts is the educational and artistic degree obtained at level three of higher education on the basis of the master degree. An individual is entitled to obtain a degree of Doctor of Arts at the creative postgraduate training programme. The first stage in obtaining the degree of Doctor of Arts may be assistantship-traineeship, which is a form of training of creative performing workers of the highest

qualification. A procedure of obtaining an education and creative level of the Doctor of Arts and study at the assistantship-traineeship is approved by the Cabinet of Ministers of Ukraine upon submission by the central executive authority in the area of culture under agreement with the central executive authority in education and science.

A degree of is awarded by the specialized council on awarding a degree of Doctor of Arts of the higher educational institution of the artistic orientation according to the result of successful completion by the higher education seeker of the educational and creative programme and a public defence of the creative artistic project according to the procedure established by the Cabinet of Minister of Ukraine.

A standard period for training of the Doctor of Art at the at the artistic postgraduate programme is three years. An amount of the educational component of the educational and creative training programme leading to the Doctor of Art degree is 30-60 ECTS credits”;

Article 6, paragraph three shall be amended with subparagraph two that reads as follows:

“Attestation of individuals that seek a degree of Doctor of Art is performed by a permanent or an ad-hoc specialized councils on awarding a degree of Doctor of Art of the higher educational institution of the artistic orientation, accredited by the National Agency for Quality Assurance in Higher Education, on the grounds of a pubic defence of artistic achievements in the form of the creative artistic project. A seeker of the degree of Doctor of Art may select a specialized council on awarding a degree of Doctor of Art”;

in Article 7:

paragraph two, subparagraph five shall be revised to read as follows:

“a diploma of Philosophiae Doctor / Doctor of Art”;

paragraph four shall be revised to read as follows:

“4. A name of the institution of higher education (scientific establishment), where training was performed, a name of the institution of higher education (scientific establishment), at whose specialized scientific council (specialized council on awarding a degree of Doctor of Arts) the scientific/artistic achievements were defended, and a name of the qualification are indicated in the diploma of Philosophiae Doctor / Doctor of Art, Doctor of Sciences.

A name of the degree, field of knowledge and/or speciality are indicated in the name of the Philosophiae Doctor qualification. If the dissertation research is performed in the related fields of knowledge, degrees of the Philosophiae Doctor and Doctor of Sciences are awarded in the leading field with indication of the inter-sectoral nature of the study.

In the name of the Doctor of Art qualification, a name of the title, of speciality, and, in individual cases, of specialization are indicated”;

in paragraph five, subparagraph one, words “ Philosophiae Doctor” shall be replaced with words “Philosophiae Doctor / Doctor of Art”;

in Article 8:

paragraph one shall be revised to read as follows:

“1. In the sphere of higher education, the Unified State Electronic Database on Education includes a Registry of Institutions of Higher Education, Registry of Documents Confirming Higher Education, Registry of C External Independent Assessment Certificates, and a Registry of Student’s (Pupil’s) Identification Cards”;

after paragraph four, a new paragraph shall be added that reads as follows:

“5. Registry of Student’s (Pupil’s) Identification Cards contains information about valid student’s (pupil’s) identification cards issued by institutions of education, that confirms rights of students (pupils) envisaged by the legislation”.

In this connection, paragraphs five-eight shall be deemed respectively paragraphs six-nine;

paragraph nine shall be revised to read as follows:

“9. The regulations about the Unified State Electronic Database on Education is approved by the central executive authority in education and science”;

Article 10, paragraph four shall be revised to read as follows:

“4. The institution of higher education, based on the respective educational programme by each speciality, develops an educational plan, which determines a list and a scope of educational disciplines in ECTS credits, the sequence of study of the disciplines, forms of learning events and their length, a schedule of the educational process, and forms of formative and summative assessment.

Based on the educational plan, students’ individual educational plans, that should contain, inter alia, educational disciplines selected by higher education seekers, are developed and approved according to the procedure established by the institution of higher education”;

in Article 13, paragraph one:

items 9, 21 and 22 shall be revised to read as follows:

“9) performs licensing of educational activity in the sphere of higher education and control over compliance to licensing conditions in accordance to the legislation”;



“21) on submission by the National Agency on Quality Assurance in Higher Education, approves regulations about accreditation of educational programmes and a the institutional accreditation procedure;

22) develops licensing conditions of performing educational activities in the sphere of higher education and submits those for approval by the Cabinet of Ministers of Ukraine”;

item 22<sup>1</sup> shall be added that reads:

“22<sup>1</sup>) develops a procedure for training of higher education seekers of the Philosophiae Doctor and Doctor of Sciences degree at the institutions of higher education (scientific establishments) and submits those for approval to the Cabinet of Ministers of Ukraine”;

Article 16, paragraph two, item 8 shall be revised to read as follows:

“8) ensuring observance of academic integrity by workers of institutions of higher education and higher education seekers, including creation and ensuring operation of the effective system of prevention and detection of academic plagiarism”;

in Article 18:

in paragraph one:

items 3 i 9 shall be revised to read as follows:

“3) performs institutional accreditation”;

“9) develops the regulations about accreditation of specialized scientific councils (specialized councils on awarding the Doctor of Art degree) and submits is for approval to the central executive authority for education and science, accredits specialized scientific councils (specialized councils on awarding the Doctor of Art degree) and controls their activity”;

item 10 shall be amended with the words “keeps their registry”;

article 19 shall read as follows:

«Article 19. Composition of the National Agency for Quality Assurance in Higher Education

1. National Agency for Quality Assurance in Higher Education is composed on twenty-three persons appointed by the Cabinet of Ministers of Ukraine on the basis of the decision of the Selection Commission following the results of the selection that takes place with due consideration of gender balance and sector representation principles.

2. The composition of the National Agency for Quality Assurance in Higher Education is formed with safeguarding the representation of no more than one person from a sector and includes:

- 1) three persons, selected among representatives of all-Ukrainian employers' organizations;
- 2) two persons who represent education seekers of the first or second levels of education;
- 3) no less than one representative from among persons who work on a permanent basis at:  
the National Academy of Sciences of Ukraine;  
national sector academy of sciences (one representative per each academy);  
higher education institution of state ownership;  
higher education institution of municipal ownership;  
higher education institution of private ownership.

A person may be nominated a candidate to the National Agency for Quality Assurance in Higher Education by subjects identified in part 2 of this article or via self-nomination.

3. Membership at the National Agency for Quality Assurance in Higher Education is forbidden for persons who:

- 1) are recognized incapable by a court decision or whose capacity is limited;
- 2) has no current convictions under the Law;
- 3) is deprived by a court decision of the right to hold a certain position or be engaged in a certain activity;
- 4) is found guilty of a corruption offense by a court decision – within one year starting from the day the above court decision came into force;
- 5) is subject to administrative penalty for an offence linked with corruption - within one year starting from the day the above court decision came into force;
- 6) is subject to part 3 or 4 of the Law of Ukraine «On Purification of Power”;
- 7) whose data are recorded in the Single State Registrar of Persons who fall under provisions of the Law of Ukraine «On Purification of Power”;

Members of the Selection Commission, heads and deputy heads of the National Academy of Sciences and national sector academies of sciences, higher education institutions, research institutions, founders of private higher education institutions, civil servants cannot be members of the National Agency for Quality Assurance.

4. The term of office of the National Agency for Quality Assurance in Higher Education members is three years. One and the same person cannot be the member of National Agency for Quality Assurance in Higher Education more than two terms.

5. Chair and Deputy Chairs of the National Agency for Quality Assurance in Higher Education are elected at the first session of the National Agency for Quality Assurance in Higher Education for the term of three years.

Chair and Deputy Chairs of the National Agency for Quality Assurance in Higher Education are appointed to the position and dismissed by the Cabinet of Ministers of Ukraine on submission of the National Agency for Quality Assurance in Higher Education and are employed on a permanent basis.

6. The organization and conduct of the selection of National Agency for Quality Assurance in Higher Education is done by the Selection Commission that is established by the Cabinet of Ministers of Ukraine as an advisory body. The Selection Commission is comprised on nine persons, four of which as international members are delegated from the European Higher Education Area associations and one person from the following institutions – the central body of executive power in education and science sphere, joint representative body of all-Ukrainian association of employers, National Academy of Sciences of Ukraine, National Academy of Educational Sciences of Ukraine, national association of Ukrainian students that is a member of European Students' Union (ESU).

The term of office for the Selection Commission members is three years without the right for the second term. Membership is allowed for persons who have an academic degree and / or academic title or no less than five years of work experience in the field except for students' representatives and international representatives.

The list of Selection Commission members and Regulation on the Selection Commission are approved by the Cabinet of Ministers of Ukraine. The members of Selection Commission perform their duties pro bono.

The decision of the Selection Commission is considered taken if it is supported by the majority of the members of international representatives and majority of members of national representatives.

The work of Selection Commission is organized as sessions, participation for international representatives is allowed with the assistance of electronic videoconferencing. International representatives who take part in a session via videoconferencing confirm results of their voting in writing.

The sessions of the Selection Commission are open. Information about the sessions of Selection Commission is published on the official website of the central body of executive power in education and science sphere.

The Selection Commission develops a Regulation on the contest for the selection of National Agency for Quality Assurance in Higher Education members that is approved by the Cabinet of Ministers of Ukraine and formulates qualification requirements to candidates, that foresee the availability of an academic degree or professional work experience no less than five years, except for representatives of students' self-government.

7. The powers of the National Agency for Quality Assurance in Higher Education members are terminated in case:

- 1) the term for which he/she was appointed expired;
- 2) of submission of a resign statement in person;
- 3) of entry into force of a conviction on him/her;
- 4) termination of citizenship of Ukraine;
- 5) of recognition of him / her missing or announcement of him / her dead;
- 6) of his/her death;
- 7) detection of limitations envisaged by this article;
- 8) of cases envisaged by law.

8. The National Agency for Quality Assurance in Higher Education engages in its activities international experts, representatives of prominent foreign higher education institutions and / or expert institutions who ensure the quality of higher education in other countries.

9. Inside the National Agency for Quality Assurance in Higher Education, the Ethics Committee, Appeal Committee, as well as other committees are formed from the members of the National Agency for Quality Assurance in Higher Education. The Ethics Committee considers issues of academic plagiarism and submits relevant proposals to the National Agency for Quality Assurance in Higher Education, as well as exercises other powers delegated by the National Agency for Quality Assurance in Higher Education. Appeal Committee considers appeals, statements and complaints regarding the activities and decisions of specialized academic councils and submits relevant proposals to the National Agency for Quality Assurance in Higher Education, as well as exercises other powers delegated by the National Agency for Quality Assurance in Higher Education.

10. The decisions of the National Agency for Quality Assurance in Higher Education can be appealed by a higher education institution in accordance with procedure defined by the National Agency for Quality Assurance in Higher Education, that is to be made public. After the review of appeal, the National Agency for Quality Assurance in Higher Education takes a substantiated decision;

Article 25 shall be amended with paragraph eight that reads as follows:

“8. Certificates about accreditation of educational programmes issued by foreign accreditation agencies or agencies on quality assurance in higher education from the list approved by the Cabinet of Ministers of Ukraine are recognized in Ukraine”;

Part V shall be amended with Article 25<sup>1</sup> that reads as follows:

“Article 25<sup>1</sup>. The institutional accreditation of the institution of higher education

1. The institution of higher education that wishes to obtain institutional accreditation, submits to the National Agency on Quality Assurance in Higher Education a written request and documents confirming compliance of its system of internal quality assurance to requirements to the system of quality assurance in higher education.
2. The institutional accreditation of the institution of higher education is voluntary and may be performed on the initiative of the head and the collegial governing body of the institution of higher education.
3. The certificate about the institutional accreditation is issued for the period of five years.
4. The outcome of the institutional accreditation is confirmed by the certificate that gives the institution of higher education a right to self-accreditation of educational programmes (except for those educational programmes which are being accredited for the first time in the framework of respective field of knowledge). The institution of higher education that performed self-accreditation of the educational programme, submits a written request to the National Agency for Quality Assurance in Higher Education and receives a certificate about accreditation of the educational programme on its basis.
5. The institutional accreditation procedure is approved by the central executive authority for education and science based on the submission of the National Agency for Quality Assurance in Higher Education”;

Article 27, paragraph one shall be revised to read as follows:

“1. The institution of higher education as an economic operator may act in one of the following statuses:

a state-funded establishment;

a non-commercial institution of higher education;

a commercial institution of higher education.

At the private institution of higher education, its composition, an operating procedure and a mandate of governing bodies, working and advisory bodies, bodies of public and students' self-government, scientific societies, procedures of selection or appointment of heads of the institution and its subdivisions may be determined in the statute of this institution without observing requirements of this Law”;

Article 28, paragraph one, item 3 shall be revised to read as follows:

“3) college – an institution of higher education or a structural unit of the university, academy or institute, which performs educational activities related with obtaining a bachelor and/or junior bachelor degree, conducts applied scientific research and/or creative artistic activity. A college is also entitled, in accordance to the license(s), to provide obtaining of the field-specific, vocational education and training , and pre-tertiary vocational education .

A status of the college is granted to the institution of education (a structural unit of the institution of education), where a licensed number of education seekers trained at the bachelor and/or junior bachelor level is at least 30 percent of the total licensed number”;

in Article 32, paragraph two:

item 6 after words “ Philosophiae Doctor” shall be amended with words “/Doctor of Arts”;

item 7 after the word “educational” shall be amended with the word “artistic”;

item 9 after the word “educational” shall be amended with the word “artistic”;

item 12 shall be amended with the words “(the Doctor of Art degree by accredited specialized councils on awarding the Doctor of Art degree)”;

item 13 shall be revised to read as follows:

“13) create institutions of general secondary education upon agreement with local government bodies”;

item 13<sup>1</sup> shall be added that reads as follows:

“13<sup>1</sup>) be a founder or co-founder of institutions of vocational education and training , pre-tertiary vocational education , colleges”;

in Article 33:

paragraph one shall be amended with a sentence that reads: “A structure of the institution of higher education, which is not a state-funded establishment, may be defined in the institution’s statute without observing requirements of this Article”;

in paragraph three, words “of the higher educational institution” shall be replaced with words “institutions of higher education (except for colleges that do not provide training of bachelors)”;

in paragraph eight:

in subparagraph one, words “of medical and pharmaceutical specialization” shall be replaced with words “in the sphere of health care”, and words “of medical education” shall be replaced with words “of education in the sphere of health care”;

in subparagraphs two and three, words “of medical education” shall be replaced with words “of education in the sphere of health care”;

in Article 36:

in paragraph two:

in item 7, the word “deans” shall be omitted;

item 14<sup>1</sup> shall be added that reads as follows:

“14<sup>1</sup>) makes final decisions about recognition of documents about higher education issued by institutions of higher religious education, whose statutes (regulations) are registered as appropriate, when admitting entrants”;

in paragraph three, subparagraph one, words “attending physicians” shall be omitted;

in Article 37:

paragraphs one and three shall be revised to read as follows:

“1. The supervisory board of the institution of higher education is created by a decision of the founder(s) to supervise management of the property of the institution of higher education, observance of the goal of its creation”;

“3. The supervisory board members have a right to:

participate in the work of the highest collegial body of public self-government of the institution of higher education with a consultative vote;

participate in determining the development strategy of the institution of higher education and control its implementation;

contribute to attracting additional sources of funding;

analyse and assess activity of the institution of higher education and its head;

monitor implementation of the estimated budget and/or budget of the institution of higher education and make respective recommendations and suggestions that are mandatory for consideration nu the head of the institution of higher education;

make submissions to the founder of the institution of higher education about commendation or recalling of the head of the institution of higher education on the grounds specified by the law;

exercise other rights specified by the statutory documents of the institution of higher education;

paragraph four after words “pubic self-government” shall be amended with words “and/or the founder(s)”;

paragraph five after words “cannot be comprised of” shall be amended with words “seekers of higher education and”;

Article 42, paragraph one, subparagraph one after words “scientific degree” shall be amended with words “(for institutions of higher education of artistic specialization – academic degree and scientific degree or a degree of Doctor of Art)”;

Article 43, paragraph one shall be revised to read as follows:

“1. A head of the department (academic institute) is elected by the scientific council of the department (academic institute) of the institution of higher education by a majority of votes of its composition based on the propositions of the labour collective of the department (academic institute). Other issues regarding an election procedure of the head of the department (academic institute) are specified by the statute of the institution of higher education.

The head of the institution of higher education appoints a head of the department (academic institute) for the period of five years and concludes with him/her a respective contract. The head of the institution of higher education has a right to reasonably refuse in appointing and concluding a contract. The scientific council of the department (academic institute) of the institution of higher education has a right to confirm its previous decision by two thirds of votes of its composition; after that, the head of the institution of higher education must, within 10 business days, appoint the respective person and conclude with this person a respective contract.

The head of the department (academic institute) exercises their powers on a permanent basis”;

The second sentence of Article 44, paragraph ten shall be revised to read as follows: “An individual may enter the institution of higher education to obtain a master degree based on the bachelor or master degree obtained by a different speciality, on the condition of successful additional entrance tests taking into consideration the average grade of the document about higher education of the bachelor or master”;

in Article 45:

paragraph two, subparagraph one shall be revised to read as follows:



“2. The external independent assessment is performed based on the external independent assessment programmes approved by the central executive authority for education and science. A content of the external independent assessment programmes should be available for information by persons who will take such assessment in the beginning of their obtaining of education of the respective level”;

paragraph seven shall be revised to read as follows:

“7. Funding of external independent assessment arrangements is performed on expense of the state budget according to the procedure established by the legislation and on expense of other legal sources”;

Article 46, paragraph one, item 4 after the word “non-performance” shall be amended with the word “individual”;

Article 58 shall be amended with item 31 that reads as follows:

“31) observe academic integrity in the educational process and scientific (creative) activities and ensure its observance by higher education seekers”;

in Article 59, paragraph two, numbers “20” shall be replaced with numbers “25”;

Article 60, paragraph one shall be amended with subparagraph two that reads as follows:

“Postgraduate education includes obtaining the second (next) higher education – obtaining a bachelor (master) degree under a different specialization based in the obtained higher education at least on the bachelor level and practical experience”;

in Article 61:

in paragraph two:

item 3 shall be amended with words “/Doctor of Art”;

item 6 shall be added that reads as follows:

“6) assistant-trainee – a person who has a higher education at the master level, studies at the assistantship-traineeship of the institution of higher education in artistic specialties with a goal to improve creative mastery”;

in paragraph three:

items 2 shall be omitted;

item 4 after words “subdepartments” shall be amended with words “or residence bases”;

items 5 shall be omitted;

in Article 62, paragraph one:

item 8 after the word “dormitory” shall be amended with words “and a round the clock access to it”;

in item 15 the word “working” shall be omitted;

in item 19 the words “clinical residency” shall be omitted;

Article 63, paragraph one, item 3 shall be revised to read as follows:

“3) fulfil requirements of the educational (scientific) programme (an individual educational plan if available), while observing academic integrity , and achieve learning outcomes envisaged for the respective level of higher education”;

A title of Part XI shall be revised to read as follows:

“Part XI

SCIENTIFIC, SCIENCE AND TECHNOLOGY, ARTISTIC AND INNOVATIVE ACTIVITY AT INSTITUTIONS OF HIGHER EDUCATION”

in Article 65:

the title after words “science and technology” shall be amended with the word “artistic”;

paragraph one shall be amended with subparagraph two that reads as follows:

“The artistic activity is an integral component of educational activity of institutions of higher education of cultural and/or artistic specialization and is implemented with a goal to enhance professional competences, innovative activity in arts, which contributes to creation of the new cultural and artistic product”;

paragraph two after words “science and technology” shall be amended with the word “artistic”;

Article 69, paragraph six shall be revised to read as follows:

“6. Institutions of higher education and scientific establishments implement measures to prevent academic plagiarism - release (completely or partially) of scientific (creative) results obtained by other individuals as results of one’s own research (creative activity) and/or reproduction of published texts (released works of art) of other authors without attribution”;

in Part XV "CONCLUDING AND TRANSITIONAL PROVISIONS"

in item 2:

second sentence of sub-item 3 shall be revised to read as follows: "The last admission for obtaining higher education at the educational and qualification level of the junior specialist is conducted in 2019";

sub-items 5 and 6 shall be revised to read as follows:

"5) institutions of higher education that provide training of professionals at the educational and qualification level of the junior specialist has a right to continue their educational activities on training professionals at the educational and qualification level of the junior bachelor on the condition they secure a respective license. In such case requirements of licensing conditions regarding availability of academic workers and respective length of academic work may be applied to those institutions of higher education from the moment they receive in accordance with sub-item 121 of this item a right to include positions of academic workers into their staffing plan. For the licensing purposes, a length of pedagogical service at the institutions of higher education of academic workers that have a scientific degree and/or a scientific title is counted towards a length of academic work. Accreditation of educational programmes for training of professionals at the educational and qualification level of the junior bachelor is performed on the usual terms in accordance to this Law;

6) institutions of higher education that in the system of higher education provide training of professionals at the educational and qualification level of the junior specialist only and do not obtain a license for training at the educational and professional level of junior bachelor and/or bachelor, may continue training junior specialists in the system of pre-tertiary vocational education ";

sub-items 6<sup>1</sup> and 6<sup>2</sup> shall be added that read as follows:

"6<sup>1</sup>) institutions of higher education of accreditation levels one and two, within two years from the moment of obtaining a license for training of the junior bachelor have to bring their type and statute of the institution of higher education in line with this Law;

6<sup>2</sup>) Article 28, paragraph one, item 3, subparagraph two enters into force on January 1, 2020. With that, a requirement regarding the licensed amount of training of higher education seekers at the bachelor and/or junior bachelor degree acts:

from January 1, 2020 in the amount of 10 percent;

from January 1, 2021 in the amount of 20 percent;

from January 1, 2022 in the amount of 30 percent";

sub-item 7 shall be revised to read as follows:

“7) training of candidates and doctors of sciences performed by institutions of higher education and scientific establishments, that has been started before September 1, 2016 is continued within the envisaged term of training in accordance to the legislation in place at the moment of entry into force by this Law. According to the outcomes of defense of dissertations for a degree of a candidate of sciences and a degree of a doctor of sciences at specialized scientific councils created by the central executive authority for education and sciences, seekers of scientific degrees are awarded a scientific degree of a candidate or a doctor of sciences in accordance to the legislation that have been in force before entry into force of this Law, and are issued a diploma of a candidate or doctor of science by the central executive authority for education and science before December 31, 2020. This term may be extended for the period of academic or social leave, military service or a long-lasting disease”;

sub-item 12<sup>1</sup> shall be added that reads as follows:

“12<sup>1</sup>) colleges (including colleges that are structural units of universities, academies, and institutes) that received a license to train professionals with a junior bachelor degree or a bachelor degree, include respective positions of academic workers into their staffing table. Academic workers of such colleges and persons who obtain there higher education leading to a junior bachelor or bachelor degree, enjoy conditions of remuneration, pension coverage, standards of pedagogical load, standards of stipend provision at the level of institutions of higher education of accreditation level III-IV. Educational workers of those colleges who meet requirements of this Law to academic workers and provide training of professionals with a junior bachelor or bachelor degree, receive a status of academic workers and are transferred to respective academic positions from the beginning of implementation of the respective educational programme or from September 1, 2017, if the educational programme of training professionals with a bachelor degree is being implemented already”;

in sub-item 16:

words “entry into force by this Law” shall be replaced with words “creation of academic positions in the college”, and words “academic title” shall be replaced with words “academic (honorary) title”;

words and numbers “Article 43, paragraph one” shall be replaced with words and numbers “Article 35, paragraphs two and six, Article 42, paragraph one”;

sub-item 20 shall be added that reads as follows:

“20) until approval, according to the procedure established by this Law, of the regulations about accreditation of educational programmes, such accreditation is performed by the central executive authority for education and science according to the procedure envisaged for accreditation of fields of study and specialities”;

in item 5, item 6m subparagraph six, words «On the day of entry into force of this Law” shall be replaced with words “until September 1, 2018”;

in the text of the Law, words “higher educational institution” and “higher spiritual educational institution” in all cases and numbers shall be replaced respectively with words “institution of education” and “institution of spiritual education” in a respective case and number;

8) Article 7, paragraph one, item 6 of the Law of Ukraine “On Licensing of Types of Economic Activity” (The Bulletin of the Verkhovna Rada of Ukraine, 2015, No. 23, Art. 158) shall be revised to read as follows:

“6) educational activity which is licensed based on special aspects defined by special laws in the sphere of education”;

9) in the Law of Ukraine “On Scientific and Technological Activities” (The Bulletin of the Verkhovna Rada of Ukraine, 2016, No. 3, p. 25):

Article 26, paragraph two, subparagraph two, after a word “respective” shall be amended with words “state and/or”;

in Article 59:

paragraph one after a word “competitive” shall be amended with words “institutions of specialized education of scientific orientation (scientific lyceums, scientific lyceums-boarding schools)”;

paragraph three, subparagraph two shall be amended with words “as well as institutions of specialized education of scientific orientation (scientific lyceums, scientific lyceums-boarding schools)”.

5. To recommend founders of institutions of education, within five years, bring statutory documents of institutions of education in line with this Law.

6. The Cabinet of Ministers of Ukraine:

to ensure, until the year of 2023, gradual implementation of the provision of paragraph two of Article 61 of this Law, envisaging annual increase in the position salary of an academic worker of the lowest qualification category, reaching four minimum living standards, in proportion to the increase of the revenues of State Budget of Ukraine in comparison with the previous year, and approve respective position salary schemes (wage rates);

2) within one year from the day of entry into force by this Law:

to prepare and submit for consideration by the Verkhovna Rada of Ukraine a proposal regarding bringing laws of Ukraine in line with this Law;

to prepare and submit for consideration by the Verkhovna Rada of Ukraine a draft Law of Ukraine “On Pre-tertiary vocational education”;

to prepare and submit for consideration by the Verkhovna Rada of Ukraine draft laws about making amendments to the Tax and Customs Codes of Ukraine with a goal to exempt institutions of education and scientific establishments from taxes, payment of customs duties for educational, scientific and production equipment and supply that are moved across the customs border of Ukraine for educational and scientific goals;

to ensure development of methods of normative financing of institution of education;

to create the National Qualifications Agency;

to bring its regulations in line with this Law, ensure bringing regulations of ministers and other central executive authorities in line with this Law;

to ensure adoption of regulations envisaged by this Law;

3) within six months from the day of entry into force by this Law:

involving a joint representative body on the part of employers at the national level and a joint representative body on the part of trade unions at the national level, professional associations of the national level, to prepare and submit for consideration by the Verkhovna Rada of Ukraine a draft Law "On National Qualifications System";

to establish, on the basis of the State Inspection of Institution of Education of Ukraine, the State Service of Quality in Education and its territorial bodies.

Head of the Verkhovna Rada of Ukraine

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Завантажити документ

Law on Education ENG .doc

## ПОВ'ЯЗАНІ ДОКУМЕНТИ

Закон України

Постанова № 2145-VIII

**Про освіту**